



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 6
TUESDAY, 14 JULY 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 6

Tuesday, July 14, 2026

CALL TO ORDER

At 2:00 p.m., Tuesday, July 14, 2026, the Senate President, Hon. Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

PRAYER

Sen. Christopher Lawrence T. Go led the prayer, to wit:

Almighty and loving God, O Allah, we come before You today with humility, mindful of the solemn duty entrusted to us and the weight of the decisions that lie ahead. Grant us wisdom to discern what is right, courage to uphold the truth, and fairness in every judgment we make. Keep us from prejudice, anger, personal interest, and political pressure. Help us listen with patience, speak with honesty, and act according to conscience, the Constitution, and the welfare of the Filipino people.

Gabayan Ninyo kaming lahat ng may tungkulin sa mga pagdinig na ito. Nawa ay ang bawat panig ay mabigyan ng pagkakataong marinig, ang bawat ebidensya ay mapag-aralang mabuti, at ang bawat pasya ay nakabatay sa katotohanan, katarungan, at tamang proseso.

Remind us that public office is a sacred trust. May we never lose sight of the people whose lives are affected by our words, our actions, and our decisions. Let the pursuit of truth strengthen our institutions and deepen our commitment to serve with integrity and compassion.

Lord, bring healing to our nation. Where there is division, grant us understanding, patience, and unity. Where there is distrust, restore faith. Where there is fear and anger, give us calmness and restraint.

When these proceedings are concluded, help us move forward together. *Nawa ay makabalik na kami sa aming pangunahing tungkulin: ang magserbisyo at maglingkod sa ating mga kababayan. Nawa ay maituon naming muli ang aming buong pansin sa paglilingkod sa ating mga kababayan, lalo na sa mga higit na nangangailangan.*

Lastly, may the Philippine Senate remain united in fulfilling its role as the last bastion of democracy. Within these Halls, may truth prevail, and the true voice of the Filipinos be heard. May compassion for others be a steadfast virtue we live by in our words and in our actions, and may we, Your senator-judges, be instruments of Your Grace in the pursuit of peace, justice, and the common good.

All these we ask in Your Holy Name.

Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Padilla, R.
Ejercito, J. V.	Pangilinan, F. N.
Escudero, F. G.	Sotto III, V. C.
Gatchalian, W. T.	Tulfo, E. T.
Go, C. L. T.	Tulfo, R. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Legarda, L.	Zubiri, J. M. F.
Marcos, I. R.	

With 19 Senator-Judges present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A) and Cayetano (P) were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Dela Rosa was absent.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, Senator Francis "Chiz" G. Escudero, there being no objection, the Body dispensed with the reading of the *Journal* of the Senate sitting as an Impeachment Court on July 13, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court, Atty. Renato N. Bantug Jr., called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Representative Lorenz R. Defensor entered the appearances previously entered, on behalf of the Prosecution.

Atty. Mark Vinluan entered the same appearances on behalf of the Respondent.



PRESENTATION OF WITNESS

Presiding Officer Escudero recognized Atty. Jeremy C. Lotoc, Regional Director of the National Bureau of Investigation (NBI) in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM), to continue his testimony. He also reminded Attorney Lotoc that he was testifying under the same oath from the previous day's proceedings.

Upon request of Representative Defensor, Atty. Amando Virgil D. Ligutan, was recognized as Counsel for the Prosecution.

Atty. Mark Vinluan appeared as Counsel for the Respondent.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

(Continuation)

Attorney Vinluan continued his cross-examination of the witness:

Mr. Vinluan. Good afternoon, Attorney Lotoc.

Mr. Lotoc. Good afternoon, Sir.

Mr. Vinluan. So, yesterday you identified videos, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And specifically, portions of the November 23, 2024 presscon.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. Now, in that presscon, VP Sara spoke about a lot of topics.

Mr. Lotoc. Uh-huh, right.

Mr. Vinluan. In other words—

The Presiding Officer. Mr. Witness, kindly answer yes or no, and not simply say "Uh-huh."

Mr. Lotoc. Yes, Sir. Sorry, Your Honor.

Mr. Vinluan. In other words, she said many statements in that presscon.

Mr. Lotoc. She said many statements, Sir.

Mr. Vinluan. All right. My question is this: do you know for sure that VP Sara's statements during that presscon happened in real life?

Mr. Lotoc. In real life? Well—

Mr. Ligutan. Objection, Your Honor, incompetent. The statements happening in real life as to the real life of the Vice President, this witness is being asked that question, of course, the witness is incompetent, Your Honor, please.

The Presiding Officer. Counsel, Counsel, kindly reform. It seems the witness did not understand the question though.

Mr. Vinluan. Let me—let me help you. I am showing you also a portion of our Exhibit "D-1-145-A," this is the whole version of the video that you—the portions that you identified yesterday. And particularly, I will show you timestamp 51:07 onwards of the video. In this video, the Vice President mentioned about events that happened inside the Batasang Pambansa. Can you play that video, please?

[Video presentation]

Mr. Vinluan. All right. My question to you is this—

Mr. Ligutan. Your Honor, point of clarification. If I may, Your Honor, please.

The Presiding Officer. Counsel for the Prosecution is recognized.

Mr. Ligutan. Your Honor, there is a video that is marked in evidence, capturing the events on November 23, 2024, and here we have the Defense—

Mr. Vinluan. Your Honor, may we just know the objection, Your Honor?

Mr. Ligutan. Wait, wait, I am still explaining.

Mr. Vinluan. This is not a time for lecture, Your Honor.

The Presiding Officer. Counsel, I have not yet recognized you. Let Counsel for the Prosecution finish.

Mr. Ligutan. Your Honor, point of clarification. They are presenting a video with anecdotes. I am now questioning the propriety of the Defense presenting a video without laying the basis where this video came from, who is the source of those annotations thereto. Because, Your Honor, there is a video, they are confronting this witness with that video by presenting their own annotated—it is like a prop, Your Honor, please. This is highly irregular in the court of law.

The Presiding Officer. Counsel for the Respondent, is this the video previously marked in evidence?

Mr. Vinluan. Your Honor, as I mentioned, we marked it in evidence as “D-4-3,” Your Honor. And this was also marked by the Prosecution as their own. They have a separate marking for this, Your Honor.

Mr. Ligutan. No, no.

The Presiding Officer. This is part of the two-hour and so-and-so minute video.

Mr. Vinluan. Correct, Your Honor. At any rate, Your Honor—

Mr. Ligutan. Your Honor—

Mr. Vinluan. If I may be allowed to finish.

The Presiding Officer. Counsel for the Prosecution, kindly hold on.

Mr. Vinluan. At any rate, Your Honor—

The Presiding Officer. Counsel for the Respondent, the Chair is not yet done, and the annotation below the video, is that part of the marked video?

Mr. Vinluan. This is part, Your Honor, of a separate exhibit that is also part of the Articles of Impeachment, Annex G, Your Honor. This is Mr. Calilung’s own transcription of the video—just to be clarified on that matter.

The Presiding Officer. But who put it there?

Mr. Vinluan. We just placed it there, Your Honor. So, we will—we are making him identify, actually, the video as well as the appropriate transcription, which are both part of the Articles of Impeachment and Annex G-9.

The Presiding Officer. The Presiding Officer will allow it. The witness may answer.

Mr. Vinluan. So, the question is: Can you confirm, for certain, that these statements—or any part thereof— happened in real life?

Mr. Lotoc. And can you give me the timestamp, Your Honor, *para ma-compare ko siya kung*—

Mr. Vinluan. Timestamp 51:07.

Mr. Lotoc. Your Honor, if I may refer to my notes—

The Presiding Officer. You may do so, Sir.

Mr. Lotoc. Anong timestamp, Sir?

The Presiding Officer. 51:07.

Mr. Vinluan. To help this honorable Court, Your Honor, it appears on page 84, or more or less, of the Articles of Impeachment, Annex G-9, Your Honor. This is the transcription of Agent John Mark Calilung dated December 26, 2024, for the *Record*.

The Presiding Officer. Noted.

Mr. Vinluan. Your Honor, in the interest of time, can we confront the witness with our own copy?

The Presiding Officer. Your own copy of what, Counsel?

Mr. Vinluan. Of the Articles of Impeachment, Annex G-9, Your Honor.

The Presiding Officer. Well, Assisting Counsel for the Prosecution. If there... if in case there are any problems, kindly confirm if indeed that is the document being shown to the witness.

Mr. Vinluan. That is page 14 of the Affidavit of Transcription.

Your Honor, I manifest that we are showing that specific portion on the transcript prepared by Agent Calilung of the NBI. But actually, Your Honor, even without consultation with the transcript, my question is very simple. My only question is: Does he know for certain that these statements, or any part of these statements, happened in real life?

Mr. Lotoc. Your Honor, *nabasa ko po rito sa copy ko, 'yung nandiyan*.

The Presiding Officer. So, do you confirm that the statements were made by the Vice President, Mr. Witness?

Mr. Lotoc. It's here in the transcription, Your Honor, yes.

Mr. Vinluan. No, no. My question is not whether she made the statement. My question is: If you know, based on your personal knowledge, if any statement or a portion thereof happened in real life, that's the question.

Mr. Lotoc. Well, Your Honor, the fact that we have the video on November 26 when the Vice President reiterated what she uttered in November 23, 2024—

Mr. Vinluan. Your Honor, I'm not even—

The Presiding Officer. Let's allow the witness to answer.

Mr. Lotoc. Your Honor, we invited the media personalities who have personal knowledge on that date and on that online press conference, and *noong tinanong namin sila kung nag-participate sila, sabi nila yes, nakausap nila yung Bise Presidente, nagbigay sila ng mga katanungan*. So, definitely, yes, *nangyari po iyon*.

Mr. Vinluan. Your Honor, may we manifest—Your Honor, make a manifestation.

The Presiding Officer. Yes, Counsel—

Mr. Vinluan. Your Honor, it appears that the witness is not being responsive to our question. He's talking about something that I did not ask. We are only focusing on this particular statement. We will show other statements later on, and we cannot get an answer from him—if he knows.

The Presiding Officer. Counsel, even I am confused with the question "happened in real life." I think some of us are too.

Mr. Vinluan. I'll be more specific, Your Honor.

The Presiding Officer. The question is, "*kung alam n'yo bang nangyari ito sa totooong buhay?*" *Ang sagot ng testigo ay sa pagkakaalam niya ay "Oo," base sa kanilang imbestigasyon at sinabi ng mga inimitahan nilang testigo.*

Mr. Vinluan. All right. I'll clarify the question, Your Honor.

The Presiding Officer. Kindly do so, Counsel—

Mr. Vinluan. All right. In the statement, for example, the Vice President said, "There were threats to my life inside the Batasang Pambansa." Are you confirming that?

Mr. Lotoc. That is within the transcription here, Sir.

Mr. Vinluan. All right. Now, my question to you is this: Did you investigate those threats?

Mr. Ligutan. Objection—

Mr. Vinluan. I'm not yet done.

Mr. Ligutan. All right.

Mr. Vinluan. I'm not yet done.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Did you investigate the threat to VP Sara's life during that time?

Mr. Ligutan. Objection. Now, misleading, Your Honor.

The Presiding Officer. What is—

Mr. Ligutan. Because the question was: "Do you confirm that that statement is found in the transcription as to the Vice President saying that there were threats to her life?" And then the witness said, "Yes, I confirm that,"—"I can find it in the transcription." Now, the next question of the good Counsel is: "So, did you investigate the threat?" That is the classic misleading question.

Mr. Vinluan. Can we get a ruling, Your Honor?

The Presiding Officer. Counsel, he's a lawyer. Attorney Lotoc is a lawyer and he knows exactly what's going on.

Attorney Lotoc, kindly answer.

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. What's—what's your answer?

Mr. Lotoc. What's the question, Sir?

Mr. Vinluan. The question is: Did you in— she mentioned there about the threats to her life. My question is simple: Did you investigate the threats to VP Sara's life during that time?

Mr. Lotoc. You mean during the livestream, Sir?

Mr. Vinluan. During that time, correct. During that livestream. She mentioned that there were threats to her life.

Mr. Lotoc. Well, based on our investigation, *nangyari yung* livestream between 11:00 PM ng 22 to 1:00 AM ng 23, and then *nalaman namin noong kumalat siya sa* social media, *mga hapon na, kaya nag-start kami ng* investigation. At that time, *hindi pa namin alam 'yung buong laman ng— ng video na iyan, kasi nag-start pa lang kami.* So, I instructed Agent Calilung na siya ang *maging agent-on-case*, and then *kunin niya 'yung video*, the whole video, *para sa authentication.*

The Presiding Officer. Attorney Lotoc, kindly answer the question directly.

So, I get from your long answer that the answer is "no."

Mr. Lotoc. Specifically, at that livestream moment *na ho*, Sir, *hindi pa namin alam 'yung—*

The Presiding Officer. That was the question of Attorney Vinluan— if you investigated at that time. So, the answer is "no."

Mr. Lotoc. Yes, Sir.

The Presiding Officer. Okay. Please proceed.

Mr. Vinluan. But later on, you said you did an investigation. So, are you admitting that there were threats to the life of VP Sara?

Mr. Lotoc. Precisely. That's the reason why we sent the December 2, 2024 letter for VP Sara to shed light on our investigation.

Mr. Vinluan. All right. I'll move on to a different part of the video.

On page— also of Exhibit D-1-145-A, this now pertains to timestamp 59:30 onwards of the video recording. So, page 15 of the Affidavit of Transcription, also by Agent Calilung of the NBI, dated December 26, 2024. Can we show that video and then provide the appropriate transcript? Can you play that again, please?

[Video presentation]

Mr. Vinluan. All right. So, my question to you is this. Having watched that video and read the transcript, my question is very simple, "Do you know for sure if this statement by the Vice President, or any part thereof, happened in real life?"

Mr. Lotoc. Well, Your Honor, as I've said to the Counsel already, *noong inimbestigahan namin yan, 'yung video*—

Mr. Vinluan. Your Honor, a "yes" or "no" answer will suffice, Your Honor.

The Presiding Officer. ...Kindly answer more directly to save the Court's time, Attorney Lotoc.

Mr. Lotoc. Your Honor, based on our investigation, yes, it happens in the natural order of things. *Nangyari talaga iyan.*

Mr. Vinluan. So, in other words, you're admitting that Martin Romualdez goes around the country to distribute money?

Mr. Lotoc. I'm saying, *nangyari ho iyong utterances na iyan.*

Mr. Vinluan. That's not my question. That's precisely my point. I'm not asking if she made these statements. I'm asking if the truth of these statements you have personal knowledge of. So, be more direct in your answer.

Mr. Ligutan. That's why I have to object now, Your Honor.

Now, there are several statements made and then the witness is being asked, do you confirm the statements? Compound question. Exactly, that's the reason why we don't allow. There are so many statements—*o sinasabi, gumawa ng batas*. So, *siguro iyong tanong* is, is this... this... this happened—that did this happen in real life. So, this witness being confronted with several statements and he is being asked to answer a yes or no. That's why it's compound question.

Mr. Vinluan. Your Honor, my question is the statements or any part thereof, Your Honor. The witness is smart enough to answer. He can just clarify.

The Presiding Officer. The objection is sustained but not on that ground but rather on the ground that the witness is incompetent to testify as to the truth of the matter stated by the Vice President. He can only testify as to the fact that those statements were made only as to tenor but not as to the truth. Given that he only investigated and was not there.

You may proceed, Counsel.

Mr. Vinluan. In that case, Your Honor, if we confront also—just a manifestation, Your Honor.

The Presiding Officer. Yes. You may proceed.

Mr. Vinluan. In other words, Your Honor—we would like to manifest, Your Honor, based on that ruling of the Court that even if VP Sara said that she already talked to a person, then we cannot confirm the truth because this witness does not have personal knowledge.

Mr. Ligutan. That's a conclusion. Objection.

Mr. Vinluan. That's just a manifestation for the Court's appreciation. Can I just proceed with my next question, Your Honor?

Mr. Ligutan. Counter manifestation, Your Honor, please. To put into record, Your Honor, please.

The Presiding Officer . For about 15 seconds, Counsel, yes.



Mr. Ligutan. Okay. The defense is entitled to their own conception of things. They're entitled to their own imagination. That's all.

The Presiding Officer. Counsel may proceed with his cross.

Mr. Vinluan. Just to belabor this point, Your Honor. Annex D-I-145-A—anyway, Your Honor, they showed around seven to eight videos yesterday. So, we'll show about four. This pertains to timestamp 1:08:58 and we will also present page 17 of the affidavit of transcription also by Agent Calilung dated December 26, 2024.

In this video clip, the Vice President mentioned about the former speaker of the House and the confidential funds of the Office of the President.

Can we play that video?

[Video presentation]

Mr. Vinluan. All right. Again, my question based on this video is very simple. She spoke about Speaker Martin Romualdez as well as the President.

Can you confirm or do you know for sure that these statements about Martin Romualdez or the President are true?

Mr. Ligutan. Okay. Your Honor, I will object on the same ground and I hope that the Presiding Officer will do the same ruling. This witness is incompetent. I know what the defense is doing, Your Honor. Objection, incompetent. This witness is highly incompetent as to whether he knows, whether those statements are, in fact, happening.

Mr. Vinluan. What's the ground for the objection? Can we just be informed of the ground for the objection?

Mr. Ligutan. I just said it, incompetent. This witness— is incompetent.

Mr. Vinluan. Can we get the ruling, Your Honor?

The Presiding Officer. The Chair made an earlier ruling already that the witness is incompetent to testify as to the truth of the matter but since Attorney Lotoc, you're a lawyer, I will give it this time to the Counsel for the Respondent. Kindly respond since you're a lawyer. You should know the proper answer to this question. Kindly respond to the question of the Counsel for respondent.

Mr. Lotoc. Again, I do not know personally about the factual circumstances. What I know is that she uttered those statements.

Mr. Vinluan. We are satisfied with that answer, Your Honor. One last video.

The Presiding Officer. Proceed, Counsel.

Mr. Vinluan. One last video. On page 87 of the Articles of Impeachment, Annex G9. This is timestamp 1:12:43. This is quite a lengthy video but not as lengthy but this is our last video so we beg the Court's indulgence. The affidavit of transcription, page 17, also of Agent Calilung, dated December 26, 2024.

Are we ready with that video?

Mr. Ligutan. Your Honor, to save—

The Presiding Officer. Counsel for the prosecutors.

Mr. Ligutan. —because I know Counsel will ask the same question. So, to save time, Your Honor, please since Counsel—

Mr. Vinluan. Your Honor, what is the objection?

Mr. Ligutan. Wait. I'm not yet done. I'm not yet done.

The Presiding Officer. Kindly let the Counsel for the prosecutor finish.

Mr. Ligutan. Relax. Now, Your Honor, if the same line of question will be asked, okay—

Mr. Vinluan. Your Honor, he cannot preempt, Your Honor.

Mr. Ligutan. I'm not yet done. I'm not yet done.

The prosecution is willing to stipulate that, yes, the Vice President, uttered that statement as to the fact of her uttering the statement.

Mr. Vinluan. We have a different question, Your Honor, just to satisfy his query.

Mr. Ligutan. All right.

The Presiding Officer. So, I guess the objection is withdrawn and the manifestation is withdrawn. Counsel for respondent may proceed for the showing of—the playing of the video.

Mr. Vinluan. Play the video, please.

[Video presentation]

Mr. Vinluan. Attorney Lotoc, she said a lot of statements in that portion of the video.

Mr. Lotoc. Yes, Your Honor, correct.

Mr. Vinluan. In fact, that statement included the statement which you investigated, correct?

Mr. Lotoc. Included in the transcription, Sir, yes.

Mr. Vinluan. All right. Now, you get the point. My question to you is this: Can you confirm now that the statements she made about BBM, FL, and the former Speaker and the Congressmen relating to various acts of corruption are true and happened in real life?

Mr. Lotoc. As to the existence of those utterances, yes, Sir.

Mr. Vinluan. All right. So, you just admitted that the Congressmen are all corrupt.

Mr. Lotoc. As to the existence of utterances, yes, Sir.

Mr. Vinluan. Thank you for that.

Mr. Ligutan. Your Honor, objection. That is a foul side remark.

Mr. Vinluan. I wasn't the one who said it, Your Honor.

Mr. Ligutan. The Counsel is twisting the answer of the witness.

Mr. Vinluan. The witness is the one who said "yes."

Mr. Ligutan. Can I finish?

The Presiding Officer. Counsel for the parties, kindly settle down.

Mr. Ligutan. Can I finish—

The Presiding Officer. The witness said that he confirmed as to the fact that the utterances were made.

Mr. Ligutan. That is why, Your Honor, I objected—

The Presiding Officer. Kindly be more specific.

Attorney Lotoc, you know what is being asked for.

Mr. Lotoc. Yes, Sir.

The Presiding Officer. Finish and complete your answer to avoid the misunderstanding.

Mr. Lotoc. Based on our investigation, as to the existence of those utterances, yeah, *dahil may mga* pieces of evidence kami. But whether or not *nangyari iyan, wala ho akong* personal knowledge, Sir.

Mr. Vinluan. All right. In the same way, you also do not have personal knowledge that VP Sara contracted an assassin, correct?

Mr. Lotoc. Your Honor, the video dated November 26, 2024, the Vice President reiterated and in fact—

Mr. Vinluan. Just answerable by yes or no, Your Honor. How can he be—

Mr. Ligutan. He is answering.

The Presiding Officer. Counsels, kindly settle down. This is not a college debate.

Attorney Lotoc, the question was simple: Kindly answer the question directly.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. You do not have personal knowledge.

Mr. Lotoc. That utterances made by the Vice President that she contracted a person, I do believe that, Sir, because of the pieces of evidence that we have gathered, Sir.

Mr. Vinluan. No. I am not asking whether or not she said those statements. I am asking if you have personal knowledge based on this, that the Vice President really contracted an assassin—

Mr. Ligutan. Asked and answered, Your Honor.

Mr. Vinluan. —or, sorry, a person.

Mr. Ligutan. Objection. Asked and answered, second time around.

The Presiding Officer. Witness will answer.

Mr. Lotoc. Based on our investigation, Your Honor, we do believe that the Vice President—

The Presiding Officer. Attorney Lotoc, the question was: Do you have personal knowledge?

Mr. Lotoc. As to the fact that the utterances and then when the Vice President reiterated that in—

Mr. Vinluan. Attorney Lotoc, you're a smart man, just answer the question. Do you have personal knowledge? You said that as to the other parts, you do not have personal knowledge. But now, my question to you is as to the part whether VP Sara talked to that person about BBM, and FL, and the Speaker, do you have personal knowledge or not?

Mr. Lotoc. *Puwede ko pong i-explain*, Your Honor?

Mr. Vinluan. No. Just answer the question, yes or no.

The Presiding Officer. Attorney Lotoc, this is not the first time you attended a trial. I am sure Counsel for the prosecutors, in redirect, will be able to clarify whatever you want to clarify. But in the meantime, answer the question of Counsel for the respondent.

Mr. Lotoc. Yeah. We do believe that the Vice President had contracted, but I don't have personal knowledge, kung personal knowledge ang gusto *ninyong malaman*. Pero, we do believe based on the evidence that we've gathered and based on our investigation.

Mr. Lotoc. But I don't have personal knowledge *kung personal knowledge ang gusto ninyong malaman*. Pero, we do believe based on the evidence that we've gathered and based on our investigation.

Mr. Vinluan. Thank you for that admission.

The Presiding Officer. You may proceed, Counsel.

Mr. Vinluan. All right. The presscon was broadcasted to the general public, correct?

Mr. Lotoc. Social media, Sir, yes.

Mr. Vinluan. In other words, everybody listening to it could hear the statements made by VP Sara.

Mr. Lotoc. We believe so, Sir, yes.

Mr. Vinluan. Are you aware that the Vice President is a lawyer?

Mr. Lotoc. Yes, Sir, of course.

Mr. Vinluan. That she has, of course, a law degree and passed the bar exams?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. With the first attempt and with the rating of 80%, are you aware of this?

Mr. Lotoc. I heard it in the news, Sir.

Mr. Vinluan. She has a higher grade than most of the lawyers here. But are you aware that she also worked—

Mr. Ligutan. Objection, relevance, Your Honor.

Mr. Vinluan. —as a court attorney?

Mr. Ligutan. Relevance. Objection, relevance.

The Presiding Officer. Counsel for the respondent, kindly avoid those—

Mr. Vinluan. —Yes, we will comply, Your Honor—

The Presiding Officer. —disparaging statements given that there are a lot of lawyers here and you do not know what their grades are. I can—

Mr. Vinluan. We will comply, Your Honor.

So, my question to you is this: If she was serious about her alleged plan involving BBM, FL, and the former speaker, does it make sense for her that she would publicly announce this to the general public? If you know.

Mr. Lotoc. I don't know that, Your Honor.

Mr. Vinluan. All right. In fact, you showed in your direct examination, you also showed portions of the October 18 presscon,

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And that presscon was also done before the general public, correct?

Mr. Lotoc. I believe so, Sir.

Mr. Vinluan. All right. Based on your investigation or your experience as an investigator, *kapag may balak bang patayin ang isang tao, sinasabi ba nila iyong plano nila sa general public?*

Mr. Lotoc. Well, *kapag may grave threats, Sir, naririnig iyon ng ibang tao.*

Mr. Vinluan. All right. My more important question to you is this: Did VP Sara directly say her statements to BBM, FL, and the former speaker?

Mr. Lotoc. Well, the fact *na sinabi niya iyan* in public—

Mr. Vinluan. Again, Your Honor—

Mr. Lotoc. —definitely, *narinig na iyan ng Presidente—*

Mr. Vinluan. —may we ask for a more responsive answer?

The Presiding Officer. Attorney Lotoc, kindly answer. The question is actually quite obvious. It's a simple question. Did the Vice President utter those statements directly towards the person allegedly threatened?

Mr. Lotoc. We believe so, Your Honor, because the utterances were made in public.

Mr. Vinluan. So, what's the answer? Did VP Sara directly say those statements to BBM, FL, and the former speaker?

Mr. Ligutan. Asked and answered. He said, "We believe so."

Mr. Vinluan. But we did not get a responsive answer, Your Honor—

Mr. Ligutan. That's the answer, "We believe so"—

Mr. Vinluan. May we ask the witness to give a more responsive answer?

Mr. Ligutan. That's his answer. "We believe so." Yes. That's a "yes." That's so clear.

The Presiding Officer. Without putting words into the mouth of the witness, I will be the one to ask. Attorney Lotoc, you meant yes, right?

Mr. Lotoc. Yes, Sir.

The Presiding Officer. Proceed, Counsel.

Mr. Vinluan. All right. Are you aware that in one interview following the presscon, BBM mentioned that he was open for reconciliation with the Vice President?

Mr. Lotoc. I'm not aware of that.

Mr. Vinluan. Not aware. Okay. I'll make you aware today. Can we play D-IV-12, please?

[Video presentation]

All right. Attorney Lotoc, so based on that video, BBM was open to reconcile with VP Sara, correct?

Mr. Lotoc. *Anong date po ng video, Sir?*

Mr. Vinluan. We will provide the date in a while. They're researching on it. But even without the date, you can confirm.

Mr. Lotoc. *Hindi, gusto kong malaman kung anong date, Sir.*

Mr. Vinluan. So, you cannot answer the question without us providing the date—

Mr. Lotoc. *Titingnan ko po kung ilang buwan na iyan after noong November 23.*

Mr. Vinluan. All right.

The Presiding Officer. Move on, Counsel, while you're checking on the date. You can go back to that topic.

Mr. Vinluan. Now, assuming that this happened after, do you still maintain that BBM really believed, in his mind, that VP Sara would harm or kill him?

Mr. Lotoc. How would I know that, Your Honor—

Mr. Vinluan. Precisely. So, you don't know. You cannot know that, correct?

Mr. Lotoc. Yes.

Mr. Vinluan. Because you cannot enter the state of mind of the President. Are you admitting that?

Mr. Lotoc. Unless there is a basis, Your Honor, *gaya ng investigation namin sa utterances ni VP na may mga circumstances. Kapag iyan lang ang nakita ko, siyempre hindi namin ma-establish iyong state of mind ng Presidente.*

Mr. Vinluan. But isn't it in your Affidavit of Investigation, you mentioned about the state of mind of the President?

Mr. Lotoc. State of mind of the President, based—

Mr. Vinluan. Correct. After the statements of VP Sara, you interpreted the mind—it's like you went into the mind of the alleged offended parties: BBM, FL, and the Speaker, and based on your own interpretation, you determined or concluded that they were threatened. Is that not the case?

Mr. Lotoc. Yeah. *Ang sinabi doon ng Presidente, nakakabahala iyong mga narinig natin nitong mga nakaraang araw. And then isa itong kriminal na pagtatangka, ito'y aking papalagan. So, at that moment, the President took the utterances serious and real, Sir.*

Mr. Vinluan. But you just based that on his own statement. You did not enter his state of mind, correct?

Mr. Ligutan. Objection, Your Honor. I think—where is this leading?

Mr. Vinluan. What's the objection?

Mr. Ligutan. Our witness is being asked—

Mr. Vinluan. What's the basis for objection, Your Honor?

Mr. Ligutan. Incompetent.

The Presiding Officer. Kindly wait for the Counsel for the prosecutor to finish his objection.

Mr. Ligutan. Incompetent, Your Honor. The witness already said that based on the investigation, based on the statement of the President, after the event, he said that they determined that the President felt threatened. And the question now is, did you enter his state of mind? Your Honor, please, I think, I'm now objecting on the reason that his person is incompetent to—

Mr. Vinluan. Your Honor, we will be satisfied with just the basis. If he had said incompetence, we would have asked for a ruling already. He doesn't have to lecture, Your Honor, and for the record—

The Presiding Officer. Kindly reform, Counsel. I think I know where you're getting at.

Mr. Vinluan. All right. My question to you is this: Do you have background on forensic psychology?

Mr. Lotoc. No.

Mr. Vinluan. Do you have a background on behavioral psychology?

Mr. Lotoc. Well, we were taught about—

Mr. Vinluan. Just yes or no—

Mr. Lotoc. —that subject matter in the academy—

Mr. Vinluan. Yes or no will do. Do you have a forensic psychology department in NBI's Cybercrime Division?

Mr. Lotoc. Forensic psychology?

Mr. Vinluan. Yes.

Mr. Lotoc. We have BSD, we have Medico-Legal Department—

Mr. Vinluan. Medico-Legal, okay—

Mr. Lotoc. We have a psychiatrist, psychologist; we have all of those, Sir.

Mr. Vinluan. All right. In other words, you do not have a professional assessment of the mind of BBM when you conducted this Affidavit of Investigation, correct?

Mr. Lotoc. Okay, Sir. The investigation. *Ganito po ang nangyari. Noong nag-comment iyong Presidente na nakakabahala iyong mga utterances, puwera lang ho doon, tiningnan namin iyong comment ng iba't ibang government agencies na ganoon din iyong kanilang reaksiyon, "nakakabahala iyong sinabi ng Bise Presidente, magiging issue iyan ng national security."*

Puwera lang ho iyon, kinonsider din namin iyong comments at impression ng mga media personalities na nag-participate doon sa online press conference. Ang sabi nila, na-shock sila, nabigla sila, hindi sila—na parang totoo iyong galit ng Vice President.

And then, aside from that, from those facts, *ganoon din ang ginawa namin sa former Speaker sa kaniyang reaction. So, taking all these facts and circumstances, na-establish namin na indeed iyong reaction ng Presidente is trinato niya na seryoso at totoo iyong utterances na iyon na ginawa ni VP Sara noong 23.*

So, *ito ho. Kaya lang dito po, ipapakita ninyo sa akin iyan, iyan lang mag-isa, hindi namin nakita iyong ibang circumstances, hindi ho ako makakapagsabi kung sa mind ng Presidente is pinatawad na ba niya, ayaw na niya, hindi na ba niya kinu-consider iyong mga threat na iyon.*

Pag ganiyan lang, Your Honor, sa investigation kasi, kailangan makita namin iyong iba't ibang sirkumstansiya para ma-establish namin whether or not ito iyong ibig niyang sabihin, ito iyon intention niya.

Mr. Vinluan. For the record, Your Honor, the date of the video is May 19, 2025. So, this came after.

Mr. Lotoc. 2025. So, mga seven months, Sir?

Mr. Vinluan. Yeah, seven months. All right. So, based on your experience as an investigator, *baka puwedeng ano na, na baguhin iyong—*

Mr. Lotoc. *Hindi siya sufficient para makita namin kasi we know for a fact na—*

Mr. Vinluan. Anyway, we're satisfied with your first answer.

Mr. Ligutan. Your Honor, the witness is still answering.

Mr. Vinluan. I didn't even ask a question, Your Honor.

The Presiding Officer. You did, Counsel, when you gave the date and asked for his opinion. Kindly finish your answer, Attorney Lotoc.

Mr. Lotoc. Thank you, Your Honor.

As lawyers, we know for a fact that the state of mind can manifest based on the overt acts of the speaker. So, *dito kasi, kung ito lang ang pagbabatayan namin*, then we try to establish *iyong intent or iyong state of mind ng Presidente, kulang ho iyan.*

So, *siguro, kung may makikita pa kaming ibang circumstances na magpapatunay na binalewala niya na iyong utterances, pinatawad niya na iyong Bise Presidente*, and things like that, then we can somehow say, *"Mukha ngang totoo iyong sinabi ng Presidente na pinatawad na niya."*

Mr. Vinluan. All right. I'll move on to a different point.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

The Presiding Officer. Before Counsel for the respondent continues, what is the pleasure of Senator-Judge Cayetano (A)?

Senator-Judge Cayetano (A). Just one specific clarification on that point, just so that we don't lose the point, with your permission.

The Presiding Officer. The gentleman may proceed.

Senator-Judge Cayetano (A). Excuse me *lang sa* Prosecution and *sa* defense.

Witness, one-point *lang*, maybe one or two questions on that point.

Mr. Lotoc. Yes, Sir; yes, Your Honor.

Senator-Judge Cayetano (A). *Sabi mo*, the President, *sa pananaw mo*, and *iyong iba*, Speaker Martin, felt threatened.

Mr. Lotoc. *Base doon sa* investigation *namin*, Sir.

Senator-Judge Cayetano (A). *Base sa imbestigasyon at base sa* video?

Mr. Lotoc. *Base sa* video, *sa* investigation, *at sa ibang* testimony.

Senator-Judge Cayetano (A). So, if they felt threatened, that means, *tingin nila totoo iyong sinabi ni VP Sara na patayin sila*. Kasi, they wouldn't feel threatened if they don't think *na* she meant it, *na patayin silang tatlo*, right?

Mr. Lotoc. In our investigation, *trinato nila iyong* utterances as *seryoso*, as *banta ito*.

Senator-Judge Cayetano (A). Yes. They won't feel threatened unless *tingin nila seryoso iyong* threat.

Mr. Lotoc. According to them, *seryoso* *iyong* threat, Sir.

Senator-Judge Cayetano (A). Yes. Okay. But the threat was, "*Pag pinatay n'yo ako, papatayin ko kayo.*" So, *kung hindi naman nila balak patayin*, why would they feel threatened? Unless you're saying now, you think, *balak nga nilang ipapatay si Vice President*.

Mr. Lotoc. Actually, Sir, *ito ho*, from the point of view of law enforcement like us, *iyon nga iyang naging alarming na issue doon na, sa amin*, Sir, *sa aming part*—

Senator-Judge Cayetano (A). No, I agree. Mr. Witness, I'm also alarmed with the language, with saying that. I'm alarmed with what's happening in our country, in flood control, et cetera, but that's not my point.

My point is, in your investigation, *para maging grave threat, kailangan iyang party na tinreten* (threaten), feels threatened. *Pero ang sinabi ni VP Sara, "Pag pinatay ako, patayin silang tatlo."* So, *kung wala naman silang tatlo balak na patayin siya*, why would they feel threatened? Did that not come into your mind as an investigator?

Mr. Lotoc. What comes into your mind, Your Honor, is, *iyon nga, iyang possibility na, God forbid, may mangyari sa VP na hindi naman alam noong tatlo, then mati-trigger ngayon iyang instruction, then papatayin yung tatlo na hindi naman nila alam*. At the same time, *may mga ibang grupo*—

Senator-Judge Cayetano (A). No. Then in that case, *hindi ba* logical, because you are the President of the Philippines, you order the PSC to make sure that *walang mangyari sa kaniya*, rather than *baliktad, na tinanggalan siya ng security*.

Mr. Lotoc. *Noong tinanggal*—

Senator-Judge Cayetano (A). I'm just following your logic. I won't argue. Finish your *ano...*

I'm satisfied, Mr. President. I'm just trying to figure out *nga* how you came about *iyong* grave threats, *given na ang sinabi niya, "Kung papatayin ako."* So, finish your answer so that we can—

Mr. Lotoc. We qualify that grave threats sa term *namin* as "event-based condition," *na iyon nga, pag nangyari iyang event, magti-trigger ngayon iyang threat ng Vice President*.

Now, insofar as, *na-threaten sila, iyang sinasabi mo po, Sir, na pag namatay si Vice President 'tsaka papatayin ngayon noong tao na inutusan niya yung tatlo, ang isa sa alarming, na very alarming part na nakita namin, iyang mga sasakay ho na grupo po. Kasi, God forbid, puwedeng mawala ang Bise Presidente*, but not necessarily *sila iyang dahilan. Puwedeng namatay siya* for one reason or the other, then ang impression *na ng marami, ang may kasalanan nito, iyang tatlo*.

So, again, *magkakalabo-labo na iyan. May sasakay na sa issue, thinking na pag pinatay nila iyang tatlo, ang sisitihin ngayon iyang kampo ni Bise Presidente kasi may utterances na ginawa ang Bise Presidente* to that effect. So, *iyon ho iyang sa investigation namin*.

Now, insofar as *pumasok ho iyang elements ng grave threats*, yeah, we believe *na pumasok yung elements ng grave threats, kasi na-satisfy ho lahat ng elements ng grave threat based on the revised findings*.

Senator-Judge Cayetano (A). I'm assessing your answer, but *malayo na malapit iyang sagot mo doon sa triggering events. Kasi parang logical, di ba? Dahil sinabi niya iyon, baka may gumawa. Hindi nga. Magti-trigger, papatay sa kaniya*.

So, *para ma-trigger na patayin ang Pangulo*, you're saying that VP Sara is asking other people to kill her, so that they can kill Marcos. *Sana sinabi na lang niya, "Patayin n'yo si Marcos."*

Sabi mo i-trigger, but anyway, I'm trying to process. But *hindi logical iyang sinabi mong* that event will trigger because the event that will trigger the assassination on the three is the killing of the Vice President. And the Vice President will not tell people, "Kill me, so that you kill them."

Mr. Lotoc. Precisely, Your Honor. Ang death kasi, for instance, *mamatay iyang Bise Presidente*, it does not necessarily follow *na iyang tatlo iyang nagpapatay base doon sa utterances. Puwede kasing mamatay iyang Bise Presidente* for one reason or the other. And again, since *walang makakaalam kung sino ang pumatay diyan, ang impression ng mga tao ngayon*,

mati-trigger ngayon iyong instruction. Pag na-trigger iyong instruction, puwede na ngayong sumakay iyong iba-ibang grupo thinking na kahit mabulilyaso, ang sisisihin dito, ang Bise Presidente, kasi nga may utterances na ginawa ang Bise Presidente in public.

From the point of view of law enforcement, *ang gulo noon*, Your Honor. Matter of national security *po iyon*. It's a matter of national security, Your Honor.

CROSS-EXAMINATION BY COUNSEL FOR THE RESPONDENT
(Continuation)

The Presiding Officer. Counsel for the respondent may proceed with his cross.

Mr. Vinluan. Before I leave this point, at any rate, you made all those observations and conclusions without any background on forensic psychology, correct?

Mr. Lotoc. I don't have background for forensic psychology, Sir.

Mr. Vinluan. All right. Okay. That's enough.

Now, I'll go on to a different point. Let's talk about the context of these statements. The presscon included a question-and-answer portion?

Mr. Lotoc. Again, Sir.

Mr. Vinluan. The presscon included a question-and-answer portion?

Mr. Lotoc. Yes, Sir. I think so.

Mr. Vinluan. And VP Sara's statement, which you investigated, was an answer to a question that was asked during the presscon?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And in fact, the focus of your investigation was VP Sara's answer, correct?

Mr. Lotoc. What kind of answer, Sir?

Mr. Vinluan. Answer to the question asked in the presscon.

Mr. Lotoc. Can you tell me the specific questions and the specific answers, Sir?

Mr. Vinluan. You were the one who investigated it, and you don't know the statement that you investigated?

Mr. Ligutan. Objection. I will now object—vague.

Mr. Lotoc. *Marami hong question doon, maraming answer, Sir. Saan po doon ang tinutukoy mo?*

The Presiding Officer. Sustained. Kindly reform, Counsel.

Mr. Vinluan. All right. In our Exhibit D-I-145-A, I will read the transcription. This is the transcription also by John Mark Calilung, dated December 26, 2024. A certain Princess Maui asked—

The Presiding Officer. Counsel may approach from both parties to assist the witness.

Mr. Vinluan. "*Mag-iingat po kayo kasi sa dinami-rami po ng inyong mga pasabog ngayong gabi, it seems like marami po talaga kayong alam about them dahil sa pagkakasama niyo sa kanila during the campaign and during the 2022 elections.*"

"Baka po mamaya kasi totoo yung mga naririnig namin, I don't know if it's true, na meron daw silang Operation Romanov and baka balak kayong ubusin, ang inyong pamilya, dahil hadlang kayo sa kanilang mga balak in the future. So mag-iingat po kayo xxx."

My question to you is this: Will you agree that based on this question by one Princess Maui, there was also a threat against VP Sara and her family, namely, Operation Romanov?

Mr. Lotoc. Well, *sabi ko nga, narinig ko iyong term na "Romanov" noong binigkas iyon ni*

Mayor Baste *noong* January during the Maisug Rally. Other than that, *wala ho kaming* validated *na* about Romanov Operation.

Mr. Vinluan. But you watched this video, correct? So, you heard it also during that time?

Mr. Lotoc. *Iyan ho iyong sinabi ni Princess Maui, Sir.*

Mr. Vinluan. So, you heard it.

Mr. Lotoc. *Nag-invite kami kay Princess Maui. Tinanong ko 'yung agent-on-case kung nag-invite ba tayo kay Princess Maui. Ang sabi ng agent-on-case, hindi raw siya nag-appear kasi we want to clarify things.*

The Presiding Officer. With the permission of the Counsel for the Respondent, what is the pleasure of Senator-Judge Raffy Tulfo?

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Mr. Presiding Officer, *kahapon kasi nabanggit 'yung Romanov* and I did mention *na para sa akin, nagmula 'yung salitang "Romanov" kay Mayor Baste Duterte* during a rally *'yung sa Maisug in Davao. So, ang tanong ko ngayon kay Mr. Witness, natatandaan mo pa ba kung ano 'yung sinabi ni Mayor Baste Duterte patungkol doon sa Romanov that night?*

Mr. Lotoc. Yes, Your Honor, I will try, if—

Senator-Judge Tulfo (R). Can you tell us?

Mr. Lotoc. —I remember it right. *Ang sabi niya, Mr. President—ano bang sabi niya? "Remember what happened to the Romanovs." If I'm not mistaken, Sir. Parang ang sinasabi niya, kasi mayroong—*

Senator-Judge Tulfo (R). No, I think, "When you go to bed tonight..." Continue.

Mr. Lotoc. Yes, Sir. *'Yun, sabi po 'yun. "When you go to bed tonight, think about the Romanovs." Iyon po yata 'yung pagkasabi. Parang sinasabi niya na baka mangyari sa pamilya ninyo iyon gaya ng nangyari sa inyo noong 1986. Kung tama 'yung memory ko, Sir. Parang ganoon po ang sinasabi ni Mayor Baste.*

Senator-Judge Tulfo (R). *Kaya nga, Mr. Presiding Officer, nagtataka ako na binanggit iyan ni Princess Maui, doon sa press conference—sa online press conference ni VP Sara 'yung Romanov na banta for Sara Duterte, when in fact, it was Baste Duterte ang nagbitaw ng salita na iyon, warning sa First Family. So, which is which, Mr. Witness? Para sa iyo, saan ba talaga 'yung Romanov nag-umpisa at sino ba talaga ang dapat mag-ingat doon sa banta na Romanov?*

Mr. Lotoc. Yeah, insofar as our investigation is concerned, since *nag-start iyan doon kay Mayor Baste at wala ho kaming ma-validate na ibang Romanov operations na nangyari, I think, nag-start iyan sa kanila, Sir, sa kapatid ng Bise Presidente.*

Senator-Judge Tulfo (R). Thank you, Mr. Witness. No other questions, Mr. Presiding Officer.

The Presiding Officer. Noted, entered into the records, and Counsel for the Respondent may continue with his cross.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

(Continuation)

Mr. Vinluan. All right. So, you mentioned that—just now—that Mayor Baste said, "Think about the Romanovs," correct?

Mr. Lotoc. *Iyan 'yung statement ni Mayor Baste, Sir.*

Mr. Vinluan. But I'm asking "Operation Romanov." So, *hindi naman "Think about the Romanovs." My question to you is this—*

The Presiding Officer. With the permission of Counsel for the Respondent, Senator Tulfo (R) seeks recognition again. What is the pleasure of Senator-Judge?

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). I just want to make it clear, Mr. Presiding Officer, *na 'yung threat na iyon, 'yung Romanov na salita*, it was used to warn as a threat to the First Family. The word "Romanov" came from the mouth of President—I mean Mayor Baste Duterte, *na para bang binabantaan niya 'yung First Family*. You follow me, Mr. Witness?

Mr. Lotoc. Yes, Sir, *tama po iyon*.

Senator-Judge Tulfo (R). Thank you.

The Presiding Officer. Noted. Counsel may proceed.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

(Continuation)

Mr. Vinluan. Your Honor, that is my question. Can the witness be allowed to answer that question? With the manifestation first before he allows.

The Presiding Officer. Kindly repeat the question because even I forgot the question, Counsel.

Mr. Vinluan. All right. You mentioned that Mayor Baste said that statement, "Think about the Romanovs," et cetera.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. But he did not mention Operation Romanov. It was Princess Maui who mentioned the word "Operation Romanov." And I know you don't have—I mean, I personally don't have any knowledge about what Mayor Baste said and that is not the subject of this case. Let's just stick to the facts of this case, okay.

In the video, it was Princess Maui who said "Operation Romanov," all right? Now, will you agree with me that based on that question, there was also a threat against VP Sara and her family? That's the question.

Mr. Lotoc. According to the question, Sir, yes.

Mr. Vinluan. All right. Now, you mentioned yesterday that you can *motu proprio* investigate threats against the Vice President.

Mr. Lotoc. Under the law, Sir, yes.

Mr. Vinluan. All right. My next question is very simple: Did you conduct a separate investigation on Operation Romanov?

Mr. Lotoc. Well, since *ang focus ng operations namin*, Sir, is cybercrime investigation, I think *ang makakasagot niyan ay 'yung intelligence service namin*, Sir. Insofar as the Cybercrime Division is concerned, *ang focus lang namin*, crimes committed by, through, and with the use of information and communication technology. As to the fact whether or not *may* Operation Romanov, *ang makakasagot po niyan* either *'yung intelligence service* or *'yung director po namin*, Sir.

Mr. Vinluan. So, insofar as you are concerned, there is no ongoing investigation on Operation Romanov.

Mr. Lotoc. Again, *ang focus po ng investigation namin doon sa grave threat* and inciting to sedition against the Vice President. Insofar as the existence of whether or not *may* Operation Romanov, *siguro ang makakasagot niyan*, Sir, *'yung intelligence service, 'yung director po namin*.

Mr. Vinluan. All right, so, no. At any rate, are you aware if the Vice President was the target of unauthorized intelligence or surveillance operations?

Mr. Lotoc. We're not aware, Sir.

Mr. Vinluan. All right.

The Presiding Officer. With the permission of Counsel, the Chair will recognize Senator-Judge Pangilinan; thereafter, Senator-Judge Erwin Tulfo.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Just one or two quick questions—

The Presiding Officer. You may proceed, Sir.

Senator-Judge Pangilinan. —on the issue of Princess Maui.

Mr. Lotoc. *Opo.*

Senator-Judge Pangilinan. And *itong imbestigasyon na sinasabing imbestigahan ba 'yung threat against the Vice President.*

Kung hypothetically, dumating si Princess Maui at nagpaliwanag tungkol sa Operation Romanov at sinabi niya ang detalye, kikilos ba ang NBI?

Mr. Lotoc. Definitely, Sir.

Senator-Judge Pangilinan. *Ano ang gagawin ninyo kung nakuha ninyo 'yung ganoong klaseng impormasyon?*

Mr. Lotoc. We will validate the information first, Sir.

Senator-Judge Pangilinan. *Ang problema, sabi nga ninyo kanina, hindi nga humarap.*

Mr. Lotoc. *Opo, Sir.*

Senator-Judge Pangilinan. But as in any other case, *kung may humarap at pinag-usapan at sinabing ganito 'yung threat, what is the standard operating procedure of the NBI?*

Mr. Lotoc. We validate first the information, Sir, and then, *kapag confirmed na, then, we will start the case build-up, Sir.*

Senator-Judge Pangilinan. Thank you.

The Presiding Officer. Senator-Judge Erwin Tulfo, what is your pleasure, Sir?

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer. I just want to direct my question to the witness here.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Tulfo (E). *'Yung Romanov plot—well, aside from what Senator-Judge Tulfo (R) said, it came from Baste. But I picked it up doon sa video na pinalabas kanina ng defense—*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Tulfo (E). —*'yung Romanov plot versus Sara, according to Princess Maui. Did you take that information seriously or not?*

Mr. Lotoc. Yes, Your Honor. That's the reason why *noong marinig namin o makita namin 'yung question ni Princess Maui about the Romanov, we conducted an open source investigation. Tiningnan po namin baka mayroon—iyon nga, nakita namin 'yung January 2024 during Maisug rally, if I'm not mistaken, 'yung the term—the word "Romanov," ang nagbigkas po noon ay si Mayor Baste, Your Honor.*

Senator-Judge Tulfo (E). All right. So, *'yung statement ni Princess Maui sa video, how do you rate that info? Sa inyo po sa NBI, sa mga intelligence agencies, 'yung mga information po ninyo, may rating, tama po ba? Correct me if I'm wrong here, Mr. Witness. For example, kapag 'yung information po ninyo—pag 'yung information na natanggap ninyo ay may mga rating po: A1, completely reliable; A2, completely reliable, information probably true; B1, usually reliable source, information confirmed; B2, usually reliable, information probably true but needs validation; C1, fairly reliable source-information confirmed; C2, fairly reliable source-information needs validation; D to F, source is doubtful, unreliable, or reliability cannot be assessed. So, saan n'yong nilagay 'yung sinabi ni Princess Maui? Saan dito sa classification po na ito ng source of*

information? Is it A1, A2, B1, B2, C1, *hanggang* D-F, *saan po?* Kasi *po ngayon*, Sir, *napakarami na pong mga impormasyon na mga fake news.*

Mr. Lotoc. *Opo*, Sir. *Kung pwede na pong sumagot?*

Senator-Judge Tulfo (E). Go ahead.

Mr. Lotoc. Sir, *'yung una po naming ginawa*, we tried to invite Princess Maui to shed light *doon sa sinasabi nilang Romanov.* Since *hindi ho nag-appear si Princess Maui*, *wala ho kaming basis*, so, *kin-classify muna natin ito na non-validated information.* *Naghanap kami sa open source.* *Iyon nga, nakita namin ang unang nagbigkas niyan, si Mayor Baste*, so *medyo nakita namin, teka muna parang baliktad yata ang sitwasyon.* *Kung kay Mayor Baste nagsimula ang Romanov, bakit dito—ito 'yung tinatanong ni Princess Maui sa Bise Presidente.* So, *medyo it doesn't make sense, Sir. Kaya wala kaming na-validate*, since *hindi nag-appear si Princess Maui*, so we classified the information as unvalidated information.

Senator-Judge Tulfo (E). So what you did, *noong hindi mo ma-confirm iyon kay Princess Maui na information*, *naghanap ka ng counter source.*

Mr. Lotoc. *Opo.* Yes, Sir. Open source, Sir.

Senator-Judge Tulfo (E). Open source to validate.

Mr. Lotoc. Yes, Sir.

Senator-Judge Tulfo (E). And what happened to that source?

Mr. Lotoc. Yeah, based *doon sa video na iyon*, January, if I am not mistaken, *iyon nga 'yung Maisug rally, Your Honor, ang unang nagbanggit ng Romanov, si Mayor Baste, parang tinatakot niya iyong Presidente doon.*

Senator-Judge Tulfo (E). Okay. Mr. Witness, I'm running out of time. So *isa lang po ang tanong ko.* So *'yung information po ni Princess Maui doon sa video, 'yung sinabi niya kay VP ay hindi po reliable?*

Mr. Lotoc. *Hindi reliable*, insofar as the Cybercrime Division is concerned.

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer.

The Presiding Officer. The interventions of the Senator-Judge are noted.

What is the pleasure of Senator-Judge Villanueva?

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Thank you, Mr. Presiding Officer, Mr. President.

Just a very quick question on this particular topic.

The Presiding Officer. The gentleman may proceed.

Senator-Judge Villanueva. Thank you, Mr. President.

I will no longer dwell on the Operation Romanov, despite the fact that—thank you to Senator-Judge Raffy Tulfo, who told me about the dates. I will not even mention or tackle the conditional threat. But I was looking at this NBI letter dated 2 December 2024, marked as Annex I, this is prosecution's P-IV-5 exhibit, invited respondent Duterte to appear in connection with the investigation of the alleged grave threats.

Mr. Witness, *nakasaad din po dito sa sulat na iniimbestigahan ng NBI 'yung mga banta laban sa kaniya, at makakatulong po dito ang kaniyang pagharap sa investigation. Tama po ba ito, Attorney?*

Mr. Lotoc. Yes *po*, Your Honor. *Tama po iyon.*

Senator-Judge Villanueva. *At dahil po hindi personal na pumunta ang ating Bise Presidente, ano po 'yung naging epekto nito sa imbestigasyon ninyo sa mga banta laban sa kaniyang buhay? Gusto ko lang pong malaman, ipinagpatuloy n'yo po ba ang imbestigasyon ng NBI? What is now the status of this investigation?*

gn

Mr. Lotoc. Yes, Sir. *Una*, since 'yung second letter ng Vice President through her lawyer, may sinasabi doon na may threat sa life six months ago pa, so noong tinray (try) naming i-check iyon, Your Honor, ang nakita lang naming relevant information as to the security, 'yung pagbabawas ho ng 75 PNP personnel from BPSPG, if I'm not mistaken. And then, I think tinransfer ho yata 'yung mga personnel na iyon sa Manila. And then when we checked the record, iyon nga, based on the COA record, meron pang 335 more or less, if I'm not mistaken, na security personnel ang Bise Presidente.

So, other than those facts, wala ho kaming makitang relevant na security issue dahil iyon nga, hindi naman nag-appear ang ating Bise Presidente. Hindi naman sila nagbigay ng any information na pwede naming ipagsimulan po, but—

Senator-Judge Villanueva. So after that, you did not pursue any more the investigation on the threats against the Vice President?

Mr. Lotoc. Ang alam ko ho ang aming intelligence service ay may monitoring na ginagawa from time to time.

Senator-Judge Villanueva. I ask this question, Mr. Witness, and for our people. Kasi ang—hindi na po iyong Operation Romanov, hindi na po itong conditional threat, kung hindi ito ba ay nabigyan—accorded the same level of attention doon sa mga threats na inyong nakukuha gaya ng binabanggit natin na threat diumano ng ating Bise Presidente. Kasi ang tanong, hindi rin naman po nagpunta sa inyo ang Pangulo o ang Speaker of the House, and yet, you pursued your investigation. So, in that way, paano n'yo mai-explain ito Attorney Lotoc na—na ginawa n'yo talaga 'yung lahat ng inyong magagawa para imbestigahan din iyong threat laban sa Pangalawang Pangulo?

Mr. Lotoc. Opo, Your Honor. Magkaiba po siya. Iyong grave threats na in-utter ng Vice President against the President, apparent po siya, Your Honor. Nakita po namin. Nasa video, in-authenticate namin 'yung video, nag-testify 'yung mga may personal knowledge na, in fact, sinabi niya iyon. So malinaw ho na nag-exist 'yung utterances na iyon that qualifies the crime of grave threats.

Dito ho sa threat ng Bise Presidente, wala ho kaming ganoong same na information na nakuha. Wala kaming nakikitang apparent na mayroong threat against sa life ng Bise Presidente, kasi nga, hindi sila nagbigay ng specific information. Hindi ho nagpakita ang Bise Presidente para mag-shed light doon sa investigation namin.

So, hindi ho namin siya makita na parehas, magkaiba po iyon. Ang sa Presidente, apparent siya, so, definitely, under the law, ang NBI can motu proprio undertake an investigation. Dito sa Bise Presidente, allegation siya, wala kaming ma-validate na information, so hindi pa ho magti-trigger 'yung investigation doon. But, I am sure, insofar as the intelligence service of the NBI is concerned, continuous ho 'yung monitoring niyan at naghahanap po sila ng mga lead para ma-solidify 'yung information na iyon.

Senator-Judge Villanueva. Thank you, Mr. Witness. I know the law. Presidente, Bise Presidente, Speaker, pwede n'yong tingnan at imbestigahan iyan, but I feel na importanteng maipakita natin sa taong-bayan that same level of attention ang ibinigay po natin. At, we also, you know, if we need to walk the extra mile of investigating, we have to do it in the name of fairness.

Mr. Lotoc. Opo.

Senator-Judge Villanueva. So iyon ho 'yung nakita ko and siguro 'yung sinasabi n'yo nga po, hindi sumapat 'yung inyong mga nakalap na mga impormasyon, whether the information ay kulang or hindi n'yo—hindi kayo nagkaroon ng access sa mga information na ito, kaya po hindi nagtuloy.

Mr. Lotoc. Opo, Your Honor. That is insofar as the Cybercrime Division is concerned.

Senator-Judge Villanueva. Thank you. Thank you very much, Mr. President.

The Presiding Officer. What is the pleasure of Senator-Judge Lacson?

Thank you, Senator-Judge Villanueva.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. I just want to pursue the point raised by Senator-Judge Raffy Tulfo and the others.

The Presiding Officer. The gentleman may proceed and he has two minutes.

Senator-Judge Lacson. I don't know about the other Senator-Judges, *pero* until today, when Senator-Judge Raffy Tulfo clarified *na iyon palang* Oplan Romanov *ay* threat against the First Family.

Mr. Lotoc. Yes, Sir.

Senator-Judge Lacson. *Ang* impression *ko* since last week, you know, *noong pinag-uusapan natin 'yung* Oplan Romanov *ay* threat *ito* against the Vice President. And since *sabi n'yo*, part *ng* investigation *n'yo*, open source, *di ba?*

Mr. Lotoc. Yes, Sir. *Opo.*

Senator-Judge Lacson. *Iyon bang* speech *ni* Mayor Baste Duterte *sa* Maisug, naging part *ba ng* open source *n'yo iyon* in this particular investigation that you conducted?

Mr. Lotoc. *Hindi po siya nag-form* part.

Senator-Judge Lacson. So, *kulang 'yung inyong* open source information?

Mr. Lotoc. *Hindi po kami naka-focus sa* Romanov, Your Honor.

Senator-Judge Lacson. Okay. Was it also your impression *na 'yung* threat *doon sa* Romanov, was directed against VP Sara until today? Please be honest.

Mr. Lotoc. Yeah.

Senator-Judge Lacson. Don't be ashamed.

Mr. Lotoc. Yeah, I don't think so, Your Honor. *Kasi unang-una, ang* context *ng* Operation Romanov is against the First Family.

Senator-Judge Lacson. I know.

Mr. Lotoc. So, definitely against the President and his family, Your Honor. *Ngayon, noong tinanong ho siya ni* Princess Maui, *doon nga kami nagtaka. Anong ibig sabihin ng* Romanov; *anong* context *niya ng* Romanov; *bakit* against the Vice President? *Hindi naman sila yung* First Family. So, *iyon 'yung* reason *po*, Your Honor, *kung bakit* we try to invite Princess Maui *na* shed us some light *para makita namin ano bang ibig mong sabihin doon, ano ba 'yung puwede naming i-validate na* information, *para makapag-case build-up kami kapag mayroon.*

Senator-Judge Lacson. Yes. So *bakit hindi* naging part *ng* investigation *n'yo doon sa* threat against the life of the President and the First Lady *kasi* family *'yung binabanggit ni* Mayor Baste, *hindi ba? Hindi kasama 'yung si* Speaker Romualdez, *hindi kasama 'yung* Chief Justice, *hindi ba?*

Mr. Lotoc. *Opo.* Yes, Sir.

Senator-Judge Lacson. *Pero* threat against the family, the First Family—

Mr. Lotoc. Yes, Sir.

Senator-Judge Lacson. —as mentioned by Senator-Judge Raffy Tulfo.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Lacson. So *ang sabi mo, hindi* naging part *ng* investigation *n'yo doon sa inyong* investigation report or *sa* Affidavit of Investigation *'yung* open source *ng* Maisug speech?

Mr. Lotoc. *Hindi po siya nakasama.*

Senator-Judge Lacson. *Bakit hindi napasama eh* open source *din iyon?* That could reinforce *'yung inyong* theory *o 'yung* conclusion *n'yo na* meron *tagalang* serious threat against the—

Mr. Lotoc. The First Family.

Senator-Judge Lacson. —President and the others. *Bakit hindi n'yo ginawang part doon sa Affidavit of Investigation? Unless pareho tayo ng impression na until today, ang alam natin sa Romanov ay threat against VP Sara. Iyon ang impression ko since last week, ha.*

Mr. Lotoc. *Iyon po iyong impression namin noong hindi pa namin nakikita sa open source.*

Senator-Judge Lacson. That's exactly my question, Attorney Lotoc.

So ngayon niyo lang rin na-realize na iyon palang "Oplan Romanov," ay threat pala sa First Family.

Mr. Lotoc. Opo, Your Honor.

Senator-Judge Lacson. Thank you.

The Presiding Officer. Noted and entered into the records.

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). This is a manifestation and point of information.

As Senator-Judge Lacson said, it's for each judge to appreciate. But let me put context. I'm not close to VP Sara. I'm not close to Mayor Baste. *Ang kasama ko sa Congress si former Deputy Speaker Pulong. But in the last four years, I think I've seen him twice or thrice.*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Cayetano (A). Okay. But my reading *noong sinabi ni Mayor Baste is, "Pag natulog ka sa gabi, remember the Romanovs."* So, we have to look at our history. The Romanovs were evicted *via a revolution, di ba?* So, Mayor Baste was doing a parallel. *Noong 1986, napaalis iyong mga Marcoses via a revolution. But unlike the Romanovs, the Marcoses were given asylum, or whatever you call it, in Hawaii, and over time nakabalik until the President became President. Ang Romanovs, inubos sila para nga hindi makabalik.*

Now, if Mayor Baste was making Romanovs *uubusin kay Marcos, dapat na-offend si Senator-Judge Imee R. Marcos, because she's a Marcos. So secondly, if he made that threat—so if he was saying, "May Oplan Romanov, or maro-Romanov kayo," I'm sure the PNP or the Presidential Security Command, the National Council, would have filed a case against Baste. So, I just want—it's fair that you mentioned him, it's fair sa investigation mo, but I don't think we should draw a conclusion here that Mayor Baste was threatening the First Family because remember, there's a thin line between a warning and a threat. So, pag sinabi ko sa'yo ngayon, witness, pareho tayong abogado. Kumpanyero, pareho tayong taga-Ateneo, mag-ingat ka sa sasabihin mo. That could be a fair warning. That could not be a threat, di ba? But, kapag may threat talaga na pinarating ko sa iyo, "Pag hindi ko gusto, anuhin mo, kakasuhan kita." That could be an illegal threat, di ba? Pero puwedeng warning.*

So, I just want that on the record, Mr. Presiding Officer, Mr. Senate President. Because everyone's watching and in the same manner, we have to be fair to the First Family. We have to be fair also to Mayor Baste and to the Dutertes, rather than draw a conclusion that there was an actual.

So, the counsel for the defense was making a distinction. Mentioning Romanov and *Oplan Romanov* are two different things. It may be the same, it may be different things.

For all we know, *narinig ni Mayor Baste na sila iro-Romanov, kaya binanggit niya pabalik. We don't know. I don't know. I haven't discussed it with anyone. I haven't discussed it with the few senators na kaibigan ko dito.*

So, let's just be circumspect and careful from making conclusions. But as far as it is relevant, Mr. Presiding Officer, I appreciate the answer of the witness.

Thank you.

Mr. Lotoc. Thank you, Your Honor.

The Presiding Officer. Senator-Judge Go, you have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE GO

Senator-Judge Go. Thank you, Mr. Presiding Officer.

Balik muna tayo dito sa ating bayan. Masyado nang malayo ang inabot natin. Mr. Witness, some questions lang po.

Mr. Lotoc. Yes, *po* Your Honor.

Senator-Judge Go. *Nabanggit niyo kahapon na 20 years na ho kayo sa NBI.*

Mr. Lotoc. Twelve years, Your Honor.

Senator-Judge Go. Be specific. *Anong year po kayo nakapasok?*

Mr. Lotoc. 2014, Your Honor, *nagsimula po ako* from the NBI Academy.

Senator-Judge Go. 2014?

Mr. Lotoc. 2014. Twelve years *na po*, Your Honor.

Senator-Judge Go. *Ah, hindi 20 years?*

Mr. Lotoc. *Hindi*, 20 years, Your Honor. Twelve years, Your Honor.

Senator-Judge Go. So, *kailan ho kayo nag-head ng cybercrime?*

Mr. Lotoc. February 2023, Your Honor.

Senator-Judge Go. February of 2023. *Maupay na adlaw pala.*

Mr. Lotoc. *Maupay na adlaw gihapon*, Sir.

Senator-Judge Go. To our prosecutor...

Mr. Ligutan. *Maayong hapon*, Sir.

Senator-Judge Go. *Maupay na kulop.*

Mr. Ligutan. *Maupay man.*

Senator-Judge Go. *Kailan ho kayo naging RD?*

Mr. Lotoc. July 2025, Sir.

Senator-Judge Go. July 2025. *So naging cybercrime head kayo* February of 2023?

Mr. Lotoc. Yes, Sir.

Senator-Judge Go. Before that, *saan po kayo na-assign?*

Mr. Lotoc. Chief ng Digital Forensics, Sir, 2022.

Senator-Judge Go. So, *mayroon po bang nag-recommend sa inyo? Wala? Nag-apply lang kayo o sino nag-recommend?*

Mr. Lotoc. *Ng ano po*, Sir?

Senator-Judge Go. *Naging head kayo ng cybercrime?*

Mr. Lotoc. As Chief of the Digital Forensics, I was designated by the then Dir. Medardo G. de Lemos. Then, as Chief of the Cybercrime Division, I was also designated by the then Dir. Medardo G. de Lemos, Sir.

Senator-Judge Go. From 2016 to 2022, *saan po kayo na-assign?*

Mr. Lotoc. In 2016, I think Anti-Organized and Transnational Crime Division (AOTCD).

Senator-Judge Go. Up to 2022?

Mr. Lotoc. AOPCD, Your Honor. Then 2018, *nasa Cybercrime Division na po ako.*

Senator-Judge Go. So *hindi po kayo head doon?*

Mr. Lotoc. *Hindi pa, as investigation agent po noong 2018, Sir.*

Senator-Judge Go. *Anyway... Nabanggit ninyo po kanina about the sworn affidavit. And then nabanggit niyo about journalists na part nung press conference. Tama po ba?*

Mr. Lotoc. *Yes, Sir.*

Senator-Judge Go. *Marami sila, di ba? Maraming nabanggit noong mga nakaraang araw, including last week, di ba?*

Mr. Lotoc. *Yes, Your Honor.*

Senator-Judge Go. *Bakit po hindi ninyo kinuha ang sariling sworn affidavit ng mga journalists na personal na naroon po sa press conference, sa halip ay affidavits po ng agents na naglalaman po ng inyong summary ng mga sinabi po ninyo? Bakit hindi niyo pinursige iyong mga affidavits ng mga nandoon sa press conference?*

Mr. Lotoc. *Yes, Your Honor. Noong nag-appear po iyong mga media personalities na nag-participate noong online press conference on November 23, 2024, may kasama po silang lawyer, and then we want them to execute an affidavit. Ang advice sa kanila ng lawyer, hindi na raw. Puwede lang silang mag-participate sa interview. Puwede silang mag-sign sa minutes of the meeting. So, hindi na po namin pinilit.*

Senator-Judge Go. *So wala pong journalists or mga vloggers na kasama po doon sa sworn affidavit?*

Mr. Lotoc. *Wala ho.*

Senator-Judge Go. *So purely puro po ito galing sa NBI lang po?*

Mr. Lotoc. *Yes, Sir, kasi ayaw po ng lawyer nila na mag-execute sila ng affidavit. Pero may kasama po silang lawyer doon, Sir.*

Senator-Judge Go. *Iyong mga detalyeng nakasaad sa inyong affidavit tungkol sa naganap na press conference, galing po ba ito sa personal knowledge ng mga agents, o batay po sa sinabi ng mga journalists na nakausap po ng agents pagkatapos?*

Mr. Lotoc. *Yes, Your Honor, Q&A iyong mode nung interview. At nag-reflect ho iyan doon sa minutes of the meeting. And then nag-execute ng affidavit iyong nag-interview na agent. So, magkasama po iyong mga dokumento na iyon, Sir.*

Senator-Judge Go. *Mako-consider mo ba ito na second-hand account? Paano ninyo masisigurong naging actual po iyong pag-interpret nyo sa mga sinabi?*

Mr. Lotoc. *Ano pong interpret, Sir?*

Senator-Judge Go. *I mean, kung batay po ito sa second-hand account, paano ninyo masisiguro na sakto, walang naidagdag, o hindi na-misinterpret sa pagitan ng actual na sinabi ng mga journalists at ng mga nakasulat sa inyong affidavit?*

Mr. Lotoc. *Yes, Your Honor. That's the reason why in-authenticate namin iyong video mula simula hanggang sa matapos, para hindi kami mawala sa tunay na nangyari. That's the reason why na-transcribed din ng ating agent on case kung ano ang laman ng video, kung ano iyong naging tanungan doon, para po hindi kami mawala sa imbestigasyon namin.*

And in fact, Your Honor, when we tried to establish whether or not nag-utter ba talaga ang Bise Presidente na may kinausap na siyang tao para pumatay sa tatlo, na-confirm namin ito noong November 26 video. Kasi ni-reiterate ng Bise Presidente, in-admit niya, instead na sinabi niyang hindi ko sinabi iyon, sinabi niya noong November 26 na video, na indeed may kinausap na siyang tao para pumatay doon sa tatlo. So, nabuo iyong aming investigation na ang tawag po namin doon is admission against interest, doon po sa ginawa ni Vice President during the November 26, 2024, Sir.

Senator-Judge Go. *Anyway, last question na lang po on sedition. How do you reconcile the fact that the Vice President discouraged her supporters from going to the streets with a claim of inciting to sedition?*

Mr. Lotoc. *Ano po iyang—sorry, sorry.*

Senator-Judge Go. On sedition charges.

Mr. Lotoc. Yes, yes Sir.

Senator-Judge Go. How do you reconcile the fact that the Vice President discouraged her supporters from going to the streets with the claim of inciting to sedition?

Mr. Lotoc. Well, in inciting to sedition, Your Honor, specifically in the case of *People vs. Nabong*, it is not necessary *na magkaroon ng* actual sedition. The law also penalizes if the seditious words would encourage people to do illegal acts or to overthrow government. In other words, if the speeches would stir up the people to go against the government, if the speeches would disturb the peace of the community, if the speeches would undermine public order, public security, *hindi po* necessary *na magkaroon ng* actual *na* sedition. That's under the law, Sir.

Senator-Judge Go. *Mayroon po bang nagawa iyang Bise Presidente na gaya ng sinasabi ninyo ngayon?*

Mr. Lotoc. *Nagawa pong* inciting to sedition, Sir?

Senator-Judge Go. *Oo, oo.*

Mr. Lotoc. Based *sa* findings *namin*, Sir, yes. Based *po sa* findings *namin*. *Ganito po, ang nangyari: kinompare po namin*, based on the content and context of the utterances made by the Vice President in November 23, 2024, the utterances made by the Vice President in October 18, 2024, then the utterances made by the Vice President in 26 November 2024, another facts and circumstances, *noong na-try po naming i-compare siya, may nakita po kami na mga* utterances that would stir up the people against the government.

For example, Your Honor, *noong* October 18, *ang sabi ng Bise Presidente*, “*Walang No. 1 ang Pilipinas na ito, hanggang No. 2 lang ito para sa akin. Wala itong No. 1.*” *Kinumpara po namin noong* November 23, *ang sabi po sa* November 23, “*I do not recognize anybody above me.*” It's a reiteration *doon sa kaniyang sinabi*. That's No. 1, Your Honor.

Then No. 2, *may sinabi siya noong* October 18 *na* “*Ano ang magagawa ko? Hindi marunong maging Presidente iyang nakaupo, kasalanan ko ba iyon?*” And then November 23, *kinumpara namin iyon, ang sabi niya doon*, “*This country will go to hell because the person na nakaupo is hindi marunong maging Presidente and who is a liar.*” So, *nakita namin iyang pattern, tsaka consistent na* utterances. Then *tiningnan namin iyang pangatlong line, ang sabi niya doon*, “*Alam ko si BBM may limang impeachable offenses pero papasa ba diyan sa House, syempre hindi.*” Then *pagdating sa* November 23, *sinabi naman niya doon na* the President is lying through his teeth *para makuha lang niya iyang boto ng mga tao, tapos minura niya sila PI ka, BBM, Liza Marcos, and former Speaker of the House.*

So, *tiningnan namin, sino ba iyang nagsasalita? Kung ang nagsasalita*, Your Honor, is *iyong ikalawa sa pinakamataas na posisyon* in public, *at iyon ang kanyang* utterances, definitely, Your Honor, there is a tendency to stir up the people against lawful government.

The Presiding Officer. Kindly wind up, Senator Go.

Senator-Judge Go. No more question, Mr. Presiding Officer.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT (Continuation)

Mr. Vinluan. Just a manifestation, Your Honor, in relation to the query or the manifestation of Senator-Judge Villanueva.

The Presiding Officer. In relation to the query of Senator—

Mr. Vinluan. No, no, his manifestation, Your Honor.

The Presiding Officer. No need, Counsel. Proceed unless he asks you a question, to save the court's time. Please proceed with your cross examination.

Mr. Vinluan. I will just transform it to a question. You were asked about that December 2, 2024 letter, correct?

Mr. Lotoc. December 2, yes, Sir.

Mr. Vinluan. That is the letter where he gave a schedule for the Vice President to attend, correct?

Mr. Lotoc. Yes, signed by our assistant director.

Mr. Vinluan. All right. But the schedule that you gave was November 11, 2024, at 10:00 a.m., and then you gave the address. So, in other words—

Mr. Lotoc. *Sinabi ko na po iyan kahapon*, typographical error *iyon*.

Mr. Vinluan. Okay. My question *naman* is this, *if tama iyong schedule sana at nakapunta si VP Sara*, would it have affected your investigation?

Mr. Lotoc. Your Honor, even up till now, ready *po kaming tanggapin kung ano mang information na threat* against the life *ng Presidente—ng Bise Presidente*, continuous *po iyon*. In fact, *sabi ko nga kanina, iyong intelligence service namin is may ginagawang monitoring* from time to time *doon sa threat to life* against the Vice President, President, et cetera.

Mr. Vinluan. Okay. I'll move on to a new point.

Now, let me show you a portion of the interview of Dempsey Reyes of the Philippine Daily Inquirer. Please direct your attention to paragraph 13 of the minutes of the meeting. This is also the transcription made by Agent Calilung, page 173 of Annex G9 as well.

So, here, it says, "*May presscon kasi earlier than that, sabi niya na parang sabi niya lang, gusto daw siyang patayin daw* according to her *ni Speaker*. That was during a press conference the day before, November 2022." So, being—considering that this is part of the minutes of the meeting, this is also part of the NBI's own records, correct?

Mr. Lotoc. Yes Sir.

Mr. Vinluan. All right. Now, my question is this: did you issue a subpoena against Speaker Martin Romualdez, former Speaker Martin Romualdez?

Mr. Lotoc. Did you issue a subpoena? *Kay Speaker Romualdez*, Sir?

Mr. Vinluan. Yes.

Mr. Lotoc. *Kasi bakit ako mag-i-issue ng subpoena? Wala pa kaming sufficient na—*

Mr. Vinluan. So what's a—you did not issue?

Mr. Lotoc. *Hindi kami nag-issue*, Sir.

Mr. Vinluan. All right. So, in other words, for VP Sara, you issued not just one but two subpoenas. But for the former Speaker, you did not issue a subpoena. That's just the question.

Mr. Lotoc. There is an apparent commission of the crime of grave threats and inciting to sedition, Sir.

Mr. Vinluan. I see. So, for this particular portion, you just turned the blind eye and did not issue. Anyway—

Mr. Lotoc. There is no validated information on that, Sir.

Mr. Ligutan. Let the witness answer, Your Honor. Let the witness answer. There was a question that—

Mr. Vinluan. But based on your—

The Presiding Officer. Counsel, kindly don't argue with the witness.

Mr. Vinluan. But based on your testimony yesterday, you said that you have a system of evaluating factors, correct? My question to you is, based on that system, does Martin Romualdez have the capacity to execute a death threat, for example?

Mr. Lotoc. We haven't established any apparent crime committed by the former Speaker, Your Honor. So, *hindi kami nag-delve diyan sa issue na iyan.*

Mr. Vinluan. Yes, at any rate, this minutes of the meeting which you all confirmed that is part of the NBI's own record, isn't this information regarding the death threat against VP Sara?

Mr. Lotoc. Well, *ang sabi po diyan*, if I may read, "*May presscon kasi earlier than that sabi niya parang sabi lang niya, gusto daw siyang patayin daw* according to her, *ni Speaker.* That was during a press conference the day before." Precisely, Your Honor, the reason why we issued a letter *noong* November 22 is to ask the Vice President *kung ano po iyong* facts and circumstances *diyan sa issue na iyan.* But since *hindi po nag-appear ang Bise Presidente, wala po talaga kaming mapagsimulan.* *Wala kaming validated information.*

Mr. Vinluan. But you issued a subpoena against Dempsey Reyes, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. *Pero ang tinanong ninyo kay Dempsey Reyes, iyong case lang* against VP Sara. *Hindi niyo siya tinanong ng threats* to her, correct?

Mr. Lotoc. Well, *unang-una, ang ini-establish namin—ang focus po ng investigation namin,* the reason why we subpoenaed the late Dempsey Reyes, is whether or not *nag-utter ba iyong* Vice President *doon sa statement niya na nag-contract na siya ng tao para patayin si BBM, si Liza Marcos, at si former Speaker.*

Mr. Vinluan. That's okay.

Mr. Lotoc. *Iyon po ang focus noong investigation namin.*

Mr. Vinluan. So, despite that track, you still maintain that this part of the investigation, you did not have bias?

Mr. Lotoc. We don't have bias.

Mr. Ligutan. Objection, you mean to—argumentative.

Mr. Vinluan. I'll move on.

The Presiding Officer. Move on, counsel.

Mr. Vinluan. Let's go back to the investigation that you did against VP Sara. So, you mentioned yesterday that the offended parties in this case, if at all, are BBM, FL, and the former Speaker, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Did you subpoena any of them?

Mr. Lotoc. No, Sir.

Mr. Vinluan. Did they appear before the NBI?

Mr. Lotoc. No, Sir.

Mr. Vinluan. *Nakausap niyo ba sila nang personal?*

Mr. Lotoc. No, Sir.

Mr. Vinluan. And yet, you concluded that they were victims of grave threats, correct?

Mr. Lotoc. Based on the evidence we have gathered, yes Sir.

Mr. Vinluan. So, without any personal correspondences with them, you came to that conclusion?

Mr. Lotoc. The evidence is clear, Sir.

Mr. Vinluan. According to you.

Mr. Ligutan. Objection, Your Honor. I move that—wait, wait, wait, wait. We cannot let this pass.

The Presiding Officer. Counsel—

Mr. Ligutan. I move, Your Honor, that the Defense Counsel with all due respect, be admonished from stating those unprofessional remarks. We are in front of national TV. That is his answer, if you are not satisfied with his answer, please don't lay any value to what the witness answered.

Your Honor, may I move that we the counsel—

The Presiding Officer. This is a reminder for counsel for both parties: kindly avoid side remarks. Henceforth, the Presiding Officer will have it stricken off the record. And whatever question you pose and afterwards withdraw, will likewise be stricken off from the record so as avoid any attempts of showmanship usually seen on TV, yes, but will not be tolerated by this Impeachment Court.

Counsels are so reminded.

Mr. Vinluan. We will comply, Your Honor.

The Presiding Officer. Please proceed, Counsel for the Respondent.

Mr. Vinluan. To clarify, Mr. Witness, *iyong* NBI subpoena against VP Sara that you issued was her being a respondent, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Pero as a complainant, you did not issue?

Mr. Lotoc. We issued a letter, Sir.

Mr. Vinluan. No, no, no. As the complainant, *na siya ang* subject *naman ng* threats, *walang* subpoena as to that effect?

Mr. Lotoc. *Walang* subpoena, Sir.

Mr. Vinluan. So, in other words, *hindi talaga siya naka-explain kasi* what you sent out was a letter and not a subpoena?

Mr. Lotoc. *Iyong* letter is to inform the Vice President *na iniimbestigahan din namin iyong* threat against *sa* life *niya*. So, therefore, *kailangan namin ang* presence *niya* or any information *na puwedeng makatulong sa* investigation.

Mr. Vinluan. *Iyon na nga. Pero hindi ninyo siya sinendan ng* subpoena. Isn't it that in a regular case, the prosecutor sends out a subpoena both to the complainant and to the respondent?

Mr. Lotoc. The prosecutor, Sir?

Mr. Vinluan. Yes. You are a lawyer, you know this.

When you file a case before the prosecutor's office, the handling prosecutor issues out the subpoena *sa parehong* parties, *tama*?

Mr. Lotoc. *Ang alam ko*, during the case concerned, Sir, I think *nag-appear yata ang Bise Presidente sa DOJ. Doon ako na-inform*, Sir.

Mr. Vinluan. All right.

I'll move on to a new point. Let's talk about the reversal by the DOJ. *Hindi ba*, there was an initial finding on February 5, and then it was eventually reversed?

Now, would you agree with me that the rectifications that you made for the first Affidavit of Investigation were procedural deficiencies?

Mr. Lotoc. Procedural deficiencies?

Mr. Vinluan. Like the TSN.

Mr. Lotoc. No. It's part of the case build-up, Your Honor.

Mr. Vinluan. But what you added were TSNs, affidavits of your own agents, correct? Don't you consider that as...

Mr. Lotoc. Those were affidavits.

Mr. Vinluan. Yes. But don't you consider those as procedural and not substantive?

Mr. Lotoc. Part of the evaluation on case build-up, yes, Sir.

Mr. Vinluan. All right. But, in effect, the substance of the case remained the same?

Mr. Lotoc. *Walang nabago ho sa affidavit. Sa una at sa pangalawa, parehas po iyon*, Sir.

Mr. Vinluan. Very good. So, in other words, no additional discussion on the merits of the case?

Mr. Lotoc. On the merits of the case, *iyong findings namin, hindi ho nabago iyon*, Sir.

Mr. Vinluan. All right. Very good. So, no additional witnesses were interviewed?

Mr. Lotoc. What do you mean, interviewed, Sir?

Mr. Vinluan. *Wala nang additional interviews. Kung ano iyong sa first affidavit ninyo, iyon na rin ang sa second affidavit. Wala nang additional interviewees?*

Mr. Lotoc. I think, *ang naaalala ko, anim ho na media personalities ang na-interview namin, at iyon ho ang nag-reflect sa affidavit. At the same time, we tried to issue subpoena sa, I think, head ng ABS-CBN.*

Mr. Vinluan. I understand that, but be more responsive.

Mr. Ligutan. Your Honor, if I may. The witness is still in the process of answering.

Mr. Vinluan. Yes. But, Your Honor, the answer is not responsive.

Mr. Ligutan. Exactly.

Mr. Vinluan. My question is very simple.

Mr. Ligutan. Let him finish first, with all due respect, Your Honor.

The Presiding Officer. With the permission of the counsel for the parties.

Atty. Lotoc, the question was, *sa pagitan noong una at pangalawang sinubmit ninyo sa DOJ, may mga testigo ba kayong dinagdag sa pangalawa ninyong submission sa DOJ? O pareho din po ang mga testigo, nilakip lang ang mga affidavit na hindi nailakip doon sa unang pagsubmit?*

Mr. Lotoc. Yeah. In so far as I'm concerned, Your Honor, *parehas lang po.*

The Presiding Officer. All right. You may proceed, Counsel.

Mr. Vinluan. But we will never know that for sure because you never released your first Affidavit of Investigation, correct?

Mr. Lotoc. Well, I think it's in the DOJ. *Ang ibinigay sa amin iyong certification kung ano iyong mga requirements na dapat naming i-comply.*

Mr. Vinluan. Yes. But what you attached when you received the subpoena from the House Committee on Justice, which was used as the basis for the Articles of Impeachment, the first Affidavit of Investigation was never included, correct?

Mr. Lotoc. *Ang nag-submit ho diyan, Your Honor, sina Agent Calilung. Wala ho akong idea doon.*

Mr. Vinluan. All right. That's okay.

So, I have a question about, the Affidavit of Investigation, okay? I'll just be more specific. Your second Affidavit of Investigation was subscribed and sworn to, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. On February 10, 2025?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. Before who?

Mr. Lotoc. Can I check, Sir?

Mr. Vinluan. Sure.

The Presiding Officer. Witness may consult the document before him.

Mr. Lotoc. Thank you, Your Honor.

The Presiding Officer. Counsel for the parties may assist him.

Mr. Vinluan. Your Honor, we'll just confront him with our own...

Mr. Lotoc. Subscribed and sworn to before, Assistant Director Glenn A. Ricarte, Sir.

Mr. Vinluan. All right.

So, do you remember that you subscribed, along with the other agents, before General Ricarte now?

Mr. Lotoc. Yes, Sir. *May signature kami rito.*

Mr. Vinluan. All right. And you did this because the first Affidavit of Investigation cannot be altered anymore?

Mr. Lotoc. What do you mean, Sir?

Mr. Vinluan. An affidavit, as you know, you are a lawyer, once an affidavit is subscribed and sworn to, it is a complete document already.

Mr. Lotoc. Yes.

Mr. Vinluan. Okay? Meaning, even if you take out one page, or you add an annex, you already altered the meaning of that document. Will you agree with me?

Mr. Lotoc. Your Honor, the process is legal evaluation by the prosecutor and case build-up. So, *pag nakita ho ng prosecution na...*

Mr. Vinluan. No. Your Honor, I'm just talking about the nature of the affidavit. I'm not talking about...

The Presiding Officer. Atty. Lotoc, kindly answer the question. It's a general question pertaining to an affidavit in general, not this particular one.

Mr. Lotoc. *Ano ang question po?*

Mr. Vinluan. All right. An affidavit, once you subscribe and swear to it, that already becomes, if I may use the term "untouchable affidavit," such that you cannot take out one page, you cannot alter one paragraph, you cannot add annex.

Mr. Lotoc. Well, I think *kung sinubmit na niya ho iyan* officially, *halimbawa, sa korte, hindi na ho pwede yan. Pero ang process ho namin, ang evaluation saka case build-up, nag-uusap ho ang prosecutor saka ang investigator. So, sinasabi ng pros: "Pag may kulang ka, ito, ito. So, itong unang affidavit, since may kulang sa mga attachment, ayusin niyo, baguhin ninyo, i-comply ninyo ang mga requirements."*

Since *ang affidavit na iyon is naka-date nung January 30, at magko-comply pa lang kami, anong na-comply namin, nag-submit kami sa DOJ, and that is already February 10, 2025. So, magkaiba ho ang date. So, definitely, babaguhin namin ang date, kasi nga dumaan kami sa process ng compliance based on the...*

Mr. Vinluan. Wait. In other words, when you subscribed and sworn to your January 30, 2025 Affidavit, you added documents or pages to it?

Mr. Lotoc. *Ang sabi ko po, Sir, ang sabi ng DOJ, may kulang kayong Affidavit of Authentication, may kulang kayong TSN. Iyon ho ang in-attach namin doon sa affidavit.*

Mr. Vinluan. Precisely. So, in other words, you added documents to your January 30, 2025 affidavit?

Mr. Lotoc. Attachments, Sir, attachments.

Mr. Vinluan. So, you admit that you added attachments to it?

Mr. Lotoc. Part of compliance *doon sa* case build-up *at doon sa* evaluation *na* requirement ng Department of Justice.

Mr. Vinluan. All right. But Mr. Witness, isn't it that...

Mr. Ligutan. Your Honor, again, can I respectfully request the Presiding Officer...

Mr. Vinluan. Your Honor, may I just be allowed to proceed?

The Presiding Officer. Counsel for the Respondent, let the Counsel for the Prosecutors finish with his observation or objection.

Mr. Ligutan. Can I make a respectful request to the Defense to let the witness finish the answer before they propound the next question, Your Honor, please? For orderly proceeding, Your Honor, please.

The Presiding Officer. Point well taken. Counsel, please proceed accordingly. And may I also remind the witness, Atty. Lotoc, kindly answer yes or no instead of "yeah."

Mr. Lotoc. Yes, Sir. I am sorry po.

The Presiding Officer. So that it's clear for our records.

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. You may proceed, Counsel for the Respondent.

Mr. Vinluan. So, you admit that after you subscribed and swear to that January 30, 2025 affidavit, you added documents to it so that it will comply with the requirements of the DOJ. Is that what you're saying?

Mr. Lotoc. Attachment— based on the requirement of the DOJ, Sir. *Iyon ang idinagdag namin.*

Mr. Vinluan. All right. Thank you for that admission.

Just one last point on this. Can we flash Affidavit of Investigation? Can we flash page 1? This is page 13, Your Honor, of the AOI's Annex G9, for the guidance of this Honorable Court. The one that was flashed earlier.

The Presiding Officer. Tech is instructed to do so.

Mr. Vinluan. All right.

So, this is the first page of the Affidavit of Investigation. Will you agree with me that this particular document, as is, was not received by the DOJ?

Mr. Lotoc. I don't have personal knowledge. *Ang inutusan ko po diyan iyong* executive officer and agent-on-case *na makipag-communicate sa* Department of Justice.

Mr. Vinluan. But you are a co-signer of this, correct?

Mr. Lotoc. Yeah, insofar as the content of the affidavit.

Mr. Vinluan. All right. So, you mean to say that you did not cause the filing of this case with the DOJ?

Mr. Lotoc. *Inutusan ko po ang* executive officers *at si* Agent Calilung *na sila ang* mag-process *po na dalahin iyong* referral *na iyan sa* Department of Justice, Sir.

Mr. Vinluan. At any rate, you are smart enough to peruse the first page, and you can see that there is no received stamp appearing thereto, correct?

Mr. Lotoc. Received from DOJ, or by DOJ, sir?

Mr. Vinluan. By DOJ.

Mr. Lotoc. Again, *ang makakasagot po niyan iyong* nag-process *niyan, si* executive officer *nga namin at si* Agent Calilung.

Mr. Vinluan. Yeah, but based only—

Mr. Ligutan. Again, again. The witness is still in the process of answering that question.

The Presiding Officer. Counsel, take it easy. Let the witness complete his answer.

Mr. Vinluan. Okay, Your Honor. But based—as it appears only, as it appears on this document, this is part of the records and also uploaded in the Senate website already last July 12, so that the public can peruse—Annex GGG, this is page 13. Based on this document and observation, can you notice any received stamp on this document?

Mr. Lotoc. Based on that document, *wala hong naka-stamp* or received.

Mr. Vinluan. All right. Precisely my point, that this was attached—if this was really received by the DOJ, there should have been an IDF, right? Or a transmittal letter attached to this?

Mr. Lotoc. Again, *iyong makakasagot po niyan, iyong executive officers, Agent Calilung, and the Prosecution, Sir, kasi sila ho ang nag-uusap diyan, sila ang nagdala ng dokumento na iyan.*

Mr. Vinluan. All right. I will move on to a new point. Now, Article 4 of—

QUESTIONS OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P). Mr. Presiding Officer.

The Presiding Officer. What is the pleasure of Senator-Judge Pia Cayetano?

Senator-Judge Cayetano (P). Mr. Presiding Officer, I wanted to take the Floor before the Defense went to another point, so I would not interrupt his chain of thoughts.

The Presiding Officer. The lady has two minutes and may proceed when she is ready.

Senator-Judge Cayetano (P). Thank you, Mr. Presiding Officer.

My question is actually addressed to both counsels and to the witness.

Mr. Lotoc. Yes, ma'am.

Senator-Judge Cayetano (P). So, the witness also happens to be a lawyer, *apat na abogado po tayo mag-uusap dito. Pero ang pakiusap ko, speak in layman's term because we want the public to understand. Very simple question. I want to understand your appreciation of the crime of grave threats, okay. It sounds like a simple question but when I look at the elements—so, i-explain ko rin sa mga nakikinig—pag tiningnan natin ang definition ng crime, nandiyan iyong elements. So, the prosecution must always prove iyong elements of the crime.*

Ang question ko ay: in your appreciation, dapat ba na ang supposed victim nakaramdam talaga siya ng threats, or is it enough that the general public considers the statement threatening? Okay, so is it personal, or is it a general sentiment?

Now, before I proceed, *gusto kong magbigay ng example para maintindihan ng mga kababayan natin. Kung magkapitbahay, nagkapikunan doon sa bakod, tapos sabi noong isa, "Bobolohin ko ito." Is that a grave threat? Second example, dalawang boksingero, nagkainitan, "Susuntukin kita." This is among two professional boxers. Is that a grave threat? Third example, pulis, sabi, "Bubunutan ko ito ng baril." Is that a grave threat? Maybe it is just offensive dahil sa profession nila, you should not say that to a fellow police. And my fourth example is a senator, pag sinabi niyang, "Bibitbitin kita, kukuwelyuhan kita, palalayasin kita." Is that a grave threat? I will add some details. If that is supposedly addressed to a fellow senator, and she is a female senator like me na kahit na hindi naman isa hong kilalang runner, marathoner, but a non-violent person, is that a grave threat?*

Well, I will just tell you my personal opinion, and then I will tell you now: I felt that was a grave threat. So, may I ask the counsels and the witness to now answer my question? Thank you.

Mr. Ligutan. If you may, Your Honor, please, *iyong prosecution po.*

The Presiding Officer. Senator-Judge Pia, who do you want to answer first, in the order that you prefer.

Senator-Judge Cayetano (P). Good question. *Pag-iisipan ko ng matagal iyan, Mr. Presiding Officer. I give you the decision on that one, Mr. Presiding Officer. Siguro prosecution kasi sila naman ang kailangan mag-prove ng case nila, and then the witness, and then the defense counsel.*

The Presiding Officer. Again, an admonition from the Chair: without stating conclusions of fact and law, that again is reserved for the Impeachment Court, you may state your opinions with respect to the elements of the crime of grave threats specifically identified by the senator-judge.

Senator-Judge Cayetano (P). Definitely. And, if I may, Mr. Presiding Officer, feel free to interrupt them if you feel that they have crossed the line, as I will?

I repeat my question: I want to understand your appreciation of the crime. You may—*ano, Mr. Presiding Officer? Will we allow them to cite jurisprudence? I leave it up to you. I just want to understand the appreciation kasi, what do you think?*

The Presiding Officer. *Doon sa partikular pong katanungang iyon ni Senator-Judge Pia Cayetano na dapat ba may takot na naramdaman—correct me if I am wrong, Senator-Judge Pia—iyong taong tinatakot o subject matter nung grave threats, o pampublikong pagtanggap ba na nakakatakot iyong mga sinabi niya laban doon sa taong tinatakot niya?*

Senator-Judge Cayetano (P). *Siguro a simple yes or no with a very short explanation would suffice, Mr. Presiding Officer?*

The Presiding Officer. Attorney Ligutan, you have two minutes, please.

Mr. Ligutan. *Maraming salamat, Senator Pia Cayetano. Maraming salamat sa pagkakataon.*

Iyong sagot sa tanong na iyan, iyong sagot po ng prosecution, hindi po galing sa opinyon ng aking mga kasama. Ito po ay isang decision, no less than the Supreme Court of the Philippines. It just so happened, Your Honors, as an answer—in answer po sa tanong ni Senator Pia Cayetano, may dalawang kaso na po iyong Supreme Court: iyong isa is Paera vs. People—G.R. No. 181626, May 30, 2011. Sinabi ng Supreme Court doon, wala pong batas na nagre-require na may private complainant. Ibig sabihin, hindi po required na iyong biktima mag-execute ng affidavit upang iyong akusado pupuwedeng ma-found guilty ng grave threats— Paera vs. People.

But more than that, Your Honor, please, *may isang kaso pa, no less than the Supreme Court of the Philippines, sinabi doon, hindi po kailangan na iyong recipient mismo nakaramdam ng takot or that sineryoso iyong pagbabanta. Your Honor, to repeat, ito ang sinabi ng Supreme Court, “all that needs to be proven is that they were intended by the accused to have that effect.” Iyong sagot sa tanong, hindi po galing sa prosecution, hindi po opinyon, galing mismo sa Supreme Court of the Philippines, Your Honor.*

Senator-Judge Cayetano (P). Thank you for that.

So, Mr. Presiding Officer, can we now ask the—

The Presiding Officer. If I may add, Senator-Judge Pia, if I remember my memory correctly, there are only certain private crimes that need a private complainant, and most of these are personal crimes such as concubinage, adultery, seduction, abduction, rape, and acts of lasciviousness. Although these crimes are all entitled, People of the Philippines versus the accused, without a private complainant, these crimes cannot be filed by the prosecutor in court without the cooperation or affidavit of the private complainant.

Counsel for Respondent will please reply to the query of Senator-Judge Pia Cayetano. You also have two minutes, sir.

Mr. Vinluan. All right. I will try to avoid making conclusions of fact and law, Your Honor, but I will answer in light of the facts of this case, and leave it up to the discretion of this Honorable Court.

The Presiding Officer. Please, sir, you may proceed.

Mr. Vinluan. It is our position that the statements made by the Vice President were not threats in the first place. That is why we were categorizing it as response— a mere response to a Q&A— number one.

Number two, it was never aimed directly at BBM, FL, and the former Speaker. In other words, had they not watched the video, for example, we would not have known about it. So, in other words, Your Honor, it is—there was no threat to begin with, and even the discussion on the elements is not really applicable insofar as determining the innocence or guilt of the Vice President. That is basically our position.

One more thing, and practically we maintain this position all throughout our pleadings. We never referred to that statement as threats; we always say that if at all they were alleged threats. But we referred to the statements of the Vice President as statements, as responses, and even in my speech that's what I said. It was a response, Your Honor.

That would be all.

The Presiding Officer. Noted.

Attorney Lotoc, your response to Senator-Judge Pia's question, based on your investigation. You may proceed, sir.

Mr. Lotoc. Yes, Your Honor. In establishing, Your Honor, whether or not the crime of grave threat exists, we follow the rule: first, whether there is an act of *actus reus*, and then second, whether there is *mens rea*.

So, *actus reus*, Your Honor, means whether the offender in fact uttered the threatening remarks. We were able to establish that, that's why *in-authenticate po ng NBI iyong video na kung saan nandodoon yung* utterances. The test of *mens rea*, Your Honor, what we did: we interpret the utterances objectively, and in the light of the circumstances in which they were uttered, in the manner in which those utterances were spoken, the person to whom they were addressed, the utterances were addressed, the relationship between the parties—meaning the offender and the recipients—and then the reactions of the recipients, whether they treat the utterances serious or real.

But again, I would agree with what Attorney Ligutan said, in fact, *ang basis po namin diyan, yung Garma versus People. Ang isa sa sinabi ng Garma versus People, hindi ho kailangan na ma-intimidate o itrato ng recipient na seryoso yung threat na yan. Sufficient na na maipakita lang na yun yung intensyon ng offender, na ma-intimidate at i-treat na seryoso yung utterances or threatening remarks na ginawa niya. Yun po yung naging basehan po namin*, Your Honor.

The Presiding Officer. I hope that satisfies Senator-Judge Pia Cayetano.

Senator-Judge Cayetano (P). It actually does, but if I still have time, I have a follow-up question for all. Do I?

Well, anyway, everyone went overtime, so since my bell hasn't rung—

The Presiding Officer. No, you don't, but you can ask your final question, Madam.

Senator-Judge Cayetano (P). Yeah. Just a quick follow-up, *siguro sa witness na lang*.

You mentioned the word "threat." So, can you just elaborate on that? What, to you, would be the difference between a threat and a—sorry, a threat and a—sorry, sorry, I don't know if you uttered the word that I want to ask you now, no? But you did—you referred to "threat," of course. What would be the difference between a mere warning and a threat?

Mr. Lotoc. A mere warning and a threat, Ma'am.

Senator-Judge Cayetano (P). At what point does a warning become a threat?

Mr. Lotoc. Well, Your Honor, if I'm going to—based on our investigation, *kung i-a-apply ko ho iyong—*

Senator-Judge Cayetano (P). *Hindi na.* You don't have to. I'm just asking you your legal opinion. You're a lawyer. You may answer. Is that correct, Mr. President?

The Presiding Officer. If he knows.

Mr. Lotoc. Just in my own opinion though—warning is maybe there is a what we call an event-based condition, *pwedeng ganoon, na "pag inulit mo 'to, ito, itong gagawin ko sa'yo," pwede hong warning iyon—*

Senator-Judge Cayetano (P). *Hindi ba ganoon iyong threat?*

Mr. Lotoc. *Iyong threat, Your Honor—kapag ang threat is with a condition, pwede ho siyang mag-fall ng ganoon. 'Pag sinabi ng threat is, "pag ginawa mo 'to, ito ang gagawin ko sa'yo, papatayin kita, papatayin ko yung pamilya mo, papatayin ko yung ganyan." So, para siyang nag-o-overlap, depende sa appreciation ng—for us—ng investigator, Your Honor.*

But insofar as the NBI Cybercrime Division is concerned, what we did is we established the elements of the grave threats based on the surrounding facts and circumstances, and then we conclude that indeed *nag-violate ho ang ating Bise Presidente.*

Senator-Judge Cayetano (P). Okay.

The Presiding Officer. Attorney Lotoc, "warning" in Filipino is "*babala.*"

Mr. Lotoc. Yes, *opo.*

The Presiding Officer. But "threat" in Filipino is "*banta.*"

Mr. Lotoc. Yes *po, opo.*

The Presiding Officer. *Kaya, 'di ba, "babala, bawal magtapon ng basura dito."*

Mr. Lotoc. *Pwede, pwede po 'yon, sir.*

The Presiding Officer. *'Di ba ang tanong ni Senator Pia: "kailan nagiging banta yun?"*

Mr. Lotoc. Well, *depende ho sa konteksto siguro, Your Honor. May warning din po kasi na "I warn you, I warn you," "sinasabi ko, 'pag inulit mo 'to, ito na ang mangyari sa'yo." May konteksto ho na ganoon, Your Honor, na somehow nag-o-overlap siya roon sa elements ng grave threats na conditional, na sinabi na "'pag ito ang nangyari, ito ang gagawin ko sa'yo." So, depende ho sa konteksto, Your Honor.*

The Presiding Officer. So, *depende sa konteksto, sa delivery, sa taas ng boses, gaano kagalit, may kapasidad.*

Mr. Lotoc. Yes *po.*

The Presiding Officer. *Maraming bagay.*

Mr. Lotoc. Yes *po, Your Honor.*

The Presiding Officer. Senator-Judge Pia?

Senator-Judge Cayetano (P). Yeah. So, in other words, it depends on the circumstances surrounding the incident at the time that the utterance was made.

Mr. Lotoc. Yes, Ma'am.

Senator-Judge Cayetano (P). Okay. So, *laging contextual. Okay. Maraming salamat sa lahat.* I just want to emphasize na, Mr. Presiding, I posted my question to each of the counsels and the witness precisely so that *hindi tayo masabihan na may bias, isa lang yung binibigyan natin ng opportunity to explain their side. I really genuinely just wanted to know what their appreciation of the definition of grave threats is.*

Thank you so much.

The Presiding Officer. We thank the good Senator-Judge for intervention. All of the comments are noted.

Counsel for the respondent, proceed with your cross. When you're ready.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT*(Continuation)*

Mr. Vinluan. All right. I'll move on to a new point.

Now, Article 4 of the Articles of Impeachment against VP Sara deals with three accusations: 1) contracting for the assassination; 2) making grave threats; and 3) actively inciting sedition.

So, on page 28 of your Affidavit of Investigation, which is page 40 of Annex G9 again, you recommended only one count of inciting to sedition and three counts of grave threats. You confirm this?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. All right. And the three counts of grave threats were for BBM, FL, and the former Speaker.

Mr. Lotoc. Yes, sir.

Mr. Vinluan. My next question is very simple: Did you include any charge relating to a contracting for the assassination?

Mr. Lotoc. Relating to contracting for the assassination? No, sir. *Iyong* charge namin is grave threats—

Mr. Vinluan. All right.

Mr. Lotoc. —inciting to sedition, and on that grave threat, *doon na pumasok 'yong* utterances *na may kinontrata ang Bise Presidente*.

Mr. Vinluan. All right. So, *pinagsama niyo na lahat*, even *'yong* contracting on assassin, *sinama niyo na sa* grave threats. According to you now?

Mr. Lotoc. *Iyon ho ang basis, iyong* grave threats *namin na—*.

Mr. Vinluan. All right. In fact, let's go to page 13 of the Affidavit of Investigations, [Annex] G9. Can you—we flashed it on the screen. There. It says, "One (1) count of inciting to sedition and—" *ano ba 'to?* "Three (1)". So, three *na* one count of grave threats. So *ano po?*—

Mr. Lotoc. Typo *po*.

Mr. Vinluan. Typographical error *na naman?*

All right. So, so with all these *mga* infirmities — and you mentioned yesterday that your case is airtight, don't you think that these errors constitute a violation of due process?

Mr. Lotoc. Your Honor, the existence of these typographical errors does not alter the fact that the video exists, does not alter the fact that the Vice President uttered those statements, does not alter the fact *na ang* NBI *mayroong* findings *at ang* findings *nila*: the Vice President committed the crime of Grave Threats and Inciting to Sedition.

Mr. Vinluan. Okay. Now, Inciting to Sedition punishes someone who incites others to overthrow the government. Is that accurate?

Mr. Lotoc. Who incites others—

Mr. Vinluan. Correct.

Mr. Lotoc. —who steers.

Mr. Vinluan. Now, it has been over one and a half years since VP Sara's speech. My question is, has the government been overthrown following her speech?

Mr. Lotoc. Again, as I've said as I've explained that, Your Honor, it is not necessary to be a seditious—

Mr. Vinluan. Your Honor, can you ask that the witness answer in a more responsive manner.

The Presiding Officer. Witness, kindly—Atty. Lotoc, kindly answer the question directly so that the court's time is not wasted.

Mr. Lotoc. Again, the question, sir?

Mr. Vinluan. Has the government been overthrown following VP Sara's speech—yes or no?

Mr. Lotoc. Not necessary, sir. No.

Mr. Vinluan. Okay.

Mr. Lotoc. It's not necessary, sir.

Mr. Vinluan. Has any agency or department of the government been overthrown following her speech?

Mr. Lotoc. Not necessary, sir, no.

Mr. Vinluan. All right. Now, I am showing you a news article entitled, "Palace Dismisses the Stab Rumors vs. Marcos Admin." This was marked as our D-IV-66. If I may ask my co-counsel to confront the witness with this.

The Presiding Officer. You may do so, with the participation, if you so desire, by assisting counsel for the prosecutors.

Mr. Vinluan. For the benefit of this honorable court as well as the people watching, we also flashed that news article.

So, based on this article, do you confirm that Claire Castro speaks on behalf of BBM?

Mr. Lotoc. I don't have personal knowledge of that event, sir.

Mr. Vinluan. Don't have personal. All right. That's okay. But based on her statement in this news article or title, do you confirm that there has been no destabilization efforts against BBM?

Mr. Lotoc. Again, I don't have personal knowledge on that statement made by Atty. Claire Castro.

Mr. Vinluan. Okay. That's okay. I'm showing you another recent article, June 12, 2026. This has been marked, Your Honor, as our D-IV-67. Can we confront the witness and show also the document on screen?

Mr. Ligutan. Your Honor, before the good counsel proceed, can I make a manifestation? Again, this document subject to be authenticated. So, for the record, it's like presenting these documents without proper basis and proper authentication, which I do believe should have been done before a witness is confronted with his documents. As per—

Mr. Vinluan. Your Honor—

Mr. Ligutan. Wait, wait. I'm not yet done. I'm not yet done. As per our rules, Your Honor.

The Presiding Officer. It's not an objection, counsel for the respondent. The remarks and comment of the counsel for prosecutors is noted. But, counsel, for clarity this is a pre-marked exhibit for the respondent.

Mr. Vinluan. Correct, Your Honor.

The Presiding Officer. You may proceed, sir.

Mr. Vinluan. So again, based on this—just your basic reading of this—says Sara Duterte: "I won't grab Marcos's position." Is this news article consistent also with the previous article that no destabilization efforts are present against the government?

Mr. Lotoc. Again, I don't have personal knowledge, sir.

Mr. Ligutan. Can I make a counter-manifestation, Your Honor? This is dated June 12, 2026. Two years after the event. Manifestation, Your Honor, please. Two years after the Vice President uttered the threats.

The Presiding Officer. Noted. Counsel may proceed.

Mr. Vinluan. Okay. I want to talk about the discussion in your affidavit of investigation. I want to go through it very quickly. The affidavit of investigation is also marked as our D-I-145-A.

You mentioned in your affidavit of investigation the case of *Garma vs. People*, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. All right. And you cited the doctrine of this case, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. Were you the one who typed that portion in your revised affidavit of investigation?

Mr. Lotoc. I'm the one who typed?

Mr. Vinluan. Yes.

Mr. Lotoc. Being the chief, sir, *iniutos ko ho iyon sa* executive officers.

Mr. Vinluan. All right. But did you read the case in full?

Mr. Lotoc. Yes, I think, *pero* not thoroughly. *Isang basahan lang.*

Mr. Vinluan. Not thoroughly. Now, did you read—was there a video recording involved in that case?

Mr. Lotoc. No.

Mr. Vinluan. All right. Did that case include a public official like the Vice President?

Mr. Lotoc. No. No, sir.

Mr. Vinluan. In fact, it involved a group of three farmers, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. All right. Let's go to the case of *Reyes vs. People*. You also cited that, page 29 of your affidavit of investigation. Did you read this case in full?

Mr. Lotoc. If, if I may check my affidavit, Your Honor?

Mr. Vinluan. Sure.

The Presiding Officer. The witness may do so.

Mr. Lotoc. Thank you. Okay, sir. *Reyes vs. People*.

Mr. Vinluan. Did you read this case in full?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. Did you read the facts of this case?

Mr. Lotoc. I think it's about *iyong* threat against a person *noong nasa parang* Navy office *siya*, and then *sinundan siya hanggang sa bahay. May dalang mga placard. Iyon yata iyon*, sir.

Mr. Vinluan. All right. But did it involve a video recording?

Mr. Lotoc. No, sir.

Mr. Vinluan. Did it involve an official like the Vice President?

Mr. Lotoc. No, sir.

Mr. Vinluan. You cited the *Ruaza vs. People*, page 29. Did you read this case in full?

Mr. Lotoc. *Ruaza. Saan iyong Ruaza?* Ah, yes, sir.

Mr. Vinluan. You read the case. Did it involve, again, a video recording?

Mr. Lotoc. No, sir.

Mr. Vinluan. Did it involve a public official like the Vice President?

Mr. Lotoc. No, sir.

Mr. Vinluan. In fact, it involved tree-cutting activities. Do you confirm that?

Mr. Lotoc. Based on the—

Mr. Vinluan. Okay. Tree-cutting. Okay. But, at any rate, in paragraph 48 of your affidavit of investigation—and I'll flash that on the screen—after citing all these cases that you mentioned, you concluded—and I will read: "Further, the threat is intended by VP Duterte to create to the mind of President BBM, FL, former House Speaker that regardless of the reason of death of VP Duterte, they will be killed by the person contracted by her."

So, in other words, she spoke about the mind of BBM, FL, and the former Speaker, correct?

Mr. Lotoc. Your Honor, what we cited is the principle laid out by the Supreme Court and not the facts of those cases, Your Honor. And those principle is applicable in this case, Your Honor.

Mr. Vinluan. But that is based only on your own opinion, correct?

Mr. Lotoc. That is based on our investigation and the evidence that we've gathered, sir.

Mr. Vinluan. In fact, I have a different opinion than yours that I will show you—

Mr. Ligutan. Argumentative, Your Honor.

Mr. Vinluan. No, no, no.

Mr. Ligutan. Argumentative.

Mr. Vinluan. Your Honor, I will introduce a new article.

Mr. Ligutan. Objection, argumentative. You don't argue with a witness. You ask questions. If you're not satisfied with the answer, move on.

Mr. Vinluan. Then I will—

The Presiding Officer. Atty. Ligutan, kindly allow the counsel for the respondent to finish his question.

Mr. Vinluan. Thank you, Your Honor.

The opinion is not mine. This is the opinion of the late Juan Ponce Enrile, who served under BBM as Chief Presidential Legal Counsel. This has been marked as our Exhibit D-IV-64.

Can we flash that article? Just the title, since we don't have time. This is Juan Ponce Enrile. I'll just read the title: "No criminal charge could be made vs. Sarah Duterte over kill remark." So, isn't this opinion inconsistent with your own?

Mr. Lotoc. I don't have personal knowledge on that, sir.

Mr. Vinluan. All right. No personal knowledge again. That's okay.

I'll be winding up, but do you know the difference between a felony and a crime? There's a difference between the two, correct?

Mr. Lotoc. Yeah, tell me, sir.

Mr. Vinluan. No. I'm not on the witness stand, so you answer the question.

The Presiding Officer. Mr. Witness, kindly—kindly respond to the question. The question is: do you know? So, it's answerable by a yes or no.

Mr. Lotoc. I think felony, sir, is in the revised penal code, and a crime can be in the special law or—

Mr. Vinluan. I agree. So, in other words, like homicide, for example it is a felony because it is defined and punished under the RPC, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. Clear. Now, a crime is broader than a felony in that it pertains to acts or omissions that are not punishable under the RPC but punishable under special laws, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. Like BP 22, for example. It's not within the RPC, but it's covered by special laws, correct?

Mr. Ligutan. Your Honor, Your Honor, respectfully. Can I now object as to the relevance to an impeachment case the distinction between felony and a crime?

Mr. Vinluan. Just laying the basis, Your Honor. I'll go to that.

The Presiding Officer. He's on cross. I will give you some leeway, but kindly get your point, Counsel. *[inaudible]*

Mr. Vinluan. All right. Now—but you confirm that there are felonies, there are crimes, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. Now, there are other high crimes which is another category than felony or crime, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. And according to Article IV of this Articles of Impeachment, there was high crime that was charged against VP Sara, correct?

Mr. Lotoc. Yes, sir.

Mr. Vinluan. In other words, it is a different category than felony or crime, correct?

Mr. Lotoc. What do you mean by that?

Mr. Vinluan. High crimes, it is a different category than felony or crimes.

Mr. Lotoc. *Well, may mga high crimes po, Sir, na nasa Revised Penal Code.*

Mr. Vinluan. Can you give us an example?

Mr. Ligutan. Is that a question, Your Honor, please?

The Presiding Officer. If he knows, Counsel.

Mr. Vinluan. If you know.

The Presiding Officer. If he knows.

Mr. Ligutan. It is like a classroom recitation, Your Honor.

The Presiding Officer. Attorney Lotoc, you are very well aware of the fact that you are here as a witness in an Impeachment proceeding, and that the crime you investigated is being used to charge the Vice President.

Mr. Lotoc. Yes, Sir.

The Presiding Officer. And as a lawyer, you also are aware of Article XI of the Constitution with respect to accountability of public officers.

So, if you know, you may answer. If you don't, you may say that you are not competent, or that you do not know. So please respond.

Mr. Lotoc. *Well, kasi ho kayo, nagbabasa; wala akong binabasa, nagre-rely ako sa memory.* I cannot answer for now, Your Honor. I need to recheck the—

The Presiding Officer. It does not reflect on your competence or knowledge of the law, Attorney Lotoc. It's okay. You were not asked to prepare for this, anyway.

Mr. Lotoc. Thank you, Your Honor.

The Presiding Officer. Again, these are questions on cross. So, we are giving the Counsel for Respondent some leeway.

Counsel, please proceed.



Mr. Vinluan. All right. My next question is very simple. Is Grave Threats a felony?

Mr. Lotoc. Grave Threats that is under the Revised Penal Code, yes, Sir.

Mr. Vinluan. Exactly. So, it is a felony because it is defined and punished by the RPC and it is punishable by *arresto mayor*, or one month and one day to six months of imprisonment, correct?

Mr. Ligutan. Your Honor, again, objection. What is the relevance of—

Mr. Vinluan. Your Honor—

Mr. Ligutan. Counsel, let me finish, please. Easy.

The Presiding Officer. Allow him to finish, Counsel.

Mr. Ligutan. Now, as to what is the penalty for Grave Threats, that is irrelevant as to the impeachment complaint that we are litigating, Your Honor, on the ground of relevance. Unless the Counsel is able to prove the relevance, I will withdraw my objection, Your Honor, please.

Mr. Vinluan. This is—

The Presiding Officer. Show the connection. Counsel, again, you are on short leash, but I know where you are getting at. Get to it, please.

Mr. Vinluan. All right. In other words, Grave Threats is under the jurisdiction of the MTC or RTC, as the case may be, correct?

Mr. Lotoc. Grave threats?

Mr. Vinluan. Yes.

Mr. Lotoc. Yes, *'pag* Grave Threats *lang*, Sir.

Mr. Vinluan. All right. It is even bailable, correct?

Mr. Lotoc. *'Pag* Grave Threats *lang*, Sir. *Pero* *'pag* in relation to Section 6 of Republic Act 10175, that is one degree higher, Sir.

Mr. Vinluan. Yes. But does it change in jurisdiction, or still with MTC or RTC?

Mr. Lotoc. *Ano iyang sabi mo*, Sir? *Ano iyon, prisión correccional*?

Mr. Vinluan. *Arresto mayor*.

Mr. Lotoc. *Arresto mayor*? *Ang sunod na mas mataas po niyan is—*

Mr. Vinluan. *Prisión correccional*.

The Presiding Officer. *Correccional*, six months to six years.

Mr. Lotoc. Yes.

Mr. Vinluan. All right. So, but either way, it is still under—

Mr. Lotoc. *Pasok siya sa* RPC.

Mr. Vinluan. It is still under the trial courts, correct?

Mr. Lotoc. Trial courts, yes.

Mr. Vinluan. All right. My next question is very simple again. Is Inciting to Sedition, a felony?

Mr. Lotoc. Under the Revised Penal Code, yes, Sir.

Mr. Vinluan. Also, under the jurisdiction of the trial courts, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. It is even bailable, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. So, both Grave threats and inciting to Sedition are felonies, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. In other words, they are not impeachable offenses, if you know.

Mr. Lotoc. Well, if you mean by impeachable offenses, whether or not *magka-qualify ba siya* as betrayal of public trust, it is the appreciation of the judges, Your Honor. *Wala po sa amin.*

Mr. Vinluan. Appreciation of the judges. By that you mean the trial court judges not the senator-judges?

Mr. Lotoc. Since impeachment *ito*, Impeachment Court *po*, Your Honor.

Mr. Vinluan. Yes. But there is a possibility that if it is in conflict with the trial court judge's decision, then we have to—

Mr. Ligutan. Objection, Your Honor, argumentative.

Mr. Vinluan. I will withdraw that.

The Presiding Officer. Sustained.

Mr. Vinluan. All right. Grave Threats and Inciting to Sedition, you said that it is not high crimes. It is a felony.

Mr. Ligutan. Objection. The witness did not say that. Misleading.

The Presiding Officer. Misleading. Sustained.

Kindly reform, Counsel.

Mr. Vinluan. I will just move on to a new point, Your Honor.

The Presiding Officer. Counsel may proceed.

Senator-Judge Tulfo (R). Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

The Presiding Officer. Senator-Judge Raffy Tulfo is recognized for his intervention. You have two minutes, Sir.

Senator-Judge Tulfo (R). Thank you, Mr. Presiding Judge.

Napag-usapan din namin itong Inciting to Sedition. *Nag-file ka ng kasong* Inciting to Sedition against VP Sara based *doon sa* utterances *niya*, *iyong sa* online presscon plus *meron pa bang iba?*

Mr. Lotoc. Yes *po*, Your Honor. *Iyong basis po namin, una, iyong* utterances in October 18, 2024; and then *kinumpara ho namin siya sa* utterances in November 23, 2024.

Senator-Judge Tulfo (R). All right. So, *meron bang* elements of sedition *doon sa mga* utterances *niya?*

Mr. Lotoc. *Ang* elements *na ini-establish po namin*, which is under the law, is whether or not the speeches would tend to stir the people against the government.

Senator-Judge Tulfo (R). So, how would you know *kung mag-i-stir iyon ng uprising o mako-convince ang mga tao na mag-alsa masa base doon sa* utterances *ni* VP Sara?

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Tulfo (R). How did you know?

Mr. Lotoc. If I may explain, Sir. *Pangalawa ho*, if the speeches would tend to disturb the peace of the community, and if the speeches would tend to undermine the public safety of the community.

Senator-Judge Tulfo (R). So, how would you know if it would tend to disturb or undermine the peace of the community?

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Tulfo (R). *Paano mo malalaman based doon sa utterances niya?*

Mr. Lotoc. The fact po na nag-issue ng statement iyong mga government agencies, tasked to protect national security, at ang sabi ho nila, "That is an active threat, that is an issue of national security." So, definitely na-disturb ho iyong ating—

Senator-Judge Tulfo (R). How?

Mr. Lotoc. Well, nag-alala ho ang nasa gobyerno. Kami ho, per se, iyong sabi ko kanina na—

Senator-Judge Tulfo (R). Nag-alala kayo o nag-alala iyong taumbayan? Kasi, iba iyong "nag-aalala kayo—kayong nasa gobyerno, kayo nag-iimbestiga," versus "Nag-aalala iyong nakarinig at iyong mga, at that time, ay nagsusubaybay doon sa mga sinasabi ng VP."

Mr. Lotoc. Yes po, nag-alala po ang taumbayan, definitely.

Senator-Judge Tulfo (R). How?

Mr. Lotoc. Well, marami ho kaming nakita sa news, sa comments ng social media.

Senator-Judge Tulfo (R). Comments. So, that means you factored in iyong comments and reactions sa social media at doon sa ginawa niyang press conference doon sa mga utterances niya, kung ano iyong reaksiyon ng mga netizens na nakapanood.

Mr. Lotoc. Yes po, Your Honor.

Senator-Judge Tulfo (R). At ano naman iyong mga sinabi doon?

Mr. Lotoc. Well, iyon nga, iyong iba nagwo-worry, "Ano na ba iyong mangyayari sa bansa natin, bakit magulo iyong mga nasa taas?" Iyong iba nagsasabi, "Ano ba ito, saan ba ito patungo?"

Senator-Judge Tulfo (R). So, hindi pala seditious iyon. Nagwo-worry lang sila saan patungo. Ang seditious is, "Tama ka diyan, VP Sara. Go, go tayo, gawin natin iyan. Nasa likod ninyo kami." Iyon ang sedition.

Mr. Lotoc. Meron hong ganoon na comment din po, Your Honor.

Senator-Judge Tulfo (R). Meron?

Mr. Lotoc. Meron po. In fact—

Senator-Judge Tulfo (R). Ano iyong comments na iyon, kung meron?

Mr. Lotoc. Iyong supporter po ng—

Senator-Judge Tulfo (R). Ano ang sinabi?

Mr. Lotoc. Na iyon nga, iyong sa People Power, iyong sa "Nasa likod mo kami," kung ano iyong—

Senator-Judge Tulfo (R). "Nasa likod mo kami, People Power." Nabanggit iyon sa comment section?

Mr. Lotoc. Sa ano, Your Honor, during interview with the Vice President doon sa November 23, 2024.

Senator-Judge Tulfo (R). So, meaning, binase mo, isa doon sa mga reasons kung bakit ka nag-file ng kasong Sedition kay VP Sara base sa kaniyang utterances, dahil finactor in mo iyong mga comments noong mga nakapanood?

Mr. Lotoc. Yes, Sir.

Senator-Judge Tulfo (R). Iyong sinasabi mong supporters.

Mr. Lotoc. Opo. Yes, Sir.

Senator-Judge Tulfo (R). Okay. Kasi, 'pag sinabi ng mga nagko-comment na "nagwo-worry kami," I don't think nandoon iyong elements of sedition. Maliban na lang 'pag sinabi na, "Nasa

likod mo kami, let's do it. Go, go, go, gagawin namin kung anong gusto mong gawin;" things to that effect.

Mr. Lotoc. *Opo.*

Senator-Judge Tulfo (R). Were there things like those?

Mr. Lotoc. *Meron ho kaming nakita sa mga Facebook comments, although hindi siya nasama—*

Senator-Judge Tulfo (R). *Na?*

Mr. Lotoc. *Na hindi ho siya nasama dito sa investigation.*

Senator-Judge Tulfo (R). *At ano nga ulit, halimbawa?*

Mr. Lotoc. *Iyong mga Facebook comments, Your Honor, na nagsasabing, "O, lusubin na natin ang Malacañang," tapos may ganoon na—*

Senator-Judge Tulfo (R). *Lusubin na natin ang Malacañang.*

Mr. Lotoc. *Iyon iyong comments ho sa Facebook, iyong mga nagko-comment.*

Senator-Judge Tulfo (R). *At meron kang ebidensya tungkol diyan? Hindi mo ito kathang-isip lang?*

Mr. Lotoc. *Kung babalikan ko po, iyon nga po ang sabi ko—*

Senator-Judge Tulfo (R). Okay.

Mr. Lotoc. *—during those times, siyempre nagba-browse ho kami; 'nga lamang, hindi namin naisama sa authentication, Your Honor.*

Senator-Judge Tulfo (R). No further questions, Your Honor.

Thank you.

The Presiding Officer. Thank you, Senator-Judge Raffy Tulfo.

The Senate President is recognized. He has two minutes as well.

QUESTIONS OF SENATOR-JUDGE GATCHALIAN

Senator-Judge Gatchalian. Thank you, Mr. Presiding Officer.

On the same topic on Inciting to Sedition. Attorney Lotoc, *meron ba kayong nakausap na mga tao na naniwala doon sa sinasabi ni Vice President Sara on Inciting to Sedition? Nakita ko kasi doon sa Grave Threats, marami kayong na-interview. Pero in this particular case, meron ba kayong at least man lang nakausap na mga tao, inimbestiga further, na talagang mayroong epekto iyong kaniyang mga sinabi?*

Mr. Lotoc. Insofar as the Cybercrime Division is concerned, Your Honor, *hindi po kami nakapag-focus diyan. Siguro ang puwede pong makasagot niyan, Your Honor, iyong Intelligence Service po namin, diyan sa issue po na iyan. Hindi ho kami nakapag-focus diyan na, to conduct an investigation on people's comments—*

Senator-Judge Gatchalian. *Hindi. Para sa akin kasi, sa kabilang banda, puwede kang magsalita; pero sa kabilang banda, may naniniwala ba sa iyo? So, ang gusto kong malaman kung mayroon kayong nakausap na mga grupo, o mga anyone, o naimbestigahan ninyo na naniniwala talaga doon sa kaniyang pinagsasabi?*

Mr. Lotoc. I think *ang makakasagot po niyan, iyong Intelligence Service, iyong Director po namin, Sir. Sa kaniya po iyong pool ng information.*

Senator-Judge Gatchalian. And then, I believe *na doon sa mga sinabi niya, nangyari rin ito doon sa two-hour video, tama po ba?*

Mr. Lotoc. Yes, Sir. *Opo.*

Senator-Judge Gatchalian. *Pinatawag ninyo rin itong mga—may mga pinatawag kayong media personalities. Tinanong n'yo ba sa kanila kung mayroon sa kanilang naniwala na itong mga sinabi ni Vice President ay Inciting to Sedition? Naniwala ba sila na iyong mga sinabi ni Vice President during the two-hour video ay pinag-aalsa iyong mga nandoon, o naniniwala sila na iyon ang tema ng kaniyang sinabi?*

Mr. Lotoc. Not specifically na Inciting to Sedition. Ang mga comment nila doon is na-shock sila. May comment sila doon na “nasa real battle mode na siya.” May comment siya doon na, “totoo na ito, seryoso na iyong galit niya.” Iyon po iyong mga—

Senator-Judge Gatchalian. *Hindi. Galit naman na talaga siya. Pero, Inciting to Sedition, iyong mag-alsa—*

Mr. Lotoc. *Wala pong ganoong comment during the Q&A portion, Your Honor.*

Senator-Judge Gatchalian. And just to—on a related question, Mr. Presiding Officer, Inciting to Sedition is serious *rin at kailangan din ito ng attention ng mga intelligence agencies natin. Mayroon ba kayong coordination with our iba't ibang intelligence agencies tulad ng National Security Council, PNP, ng NBI—not NBI, but iyong ibang mga security intelligence agencies natin? Nag-coordinate ba ang NBI sa kanila? Kayo mismo, nag-coordinate ba?*

Mr. Lotoc. *Ang nag-uusap po ryan, Your Honor, is—kasi intelligence matter iyan, ang nag-uusap po ryan between Intelligence Service ng NBI, intelligence units ng AFP, intelligence department ng PNP. So, nasa level po nila iyon, Sir.*

Senator-Judge Gatchalian. *Katulad noong Grave Threats, pagko-kontrata, Inciting to Sedition, seryoso rin to? Gusto kong malaman kung mayroong effort na ginawa ang NBI para makipag-coordinate sa AFP, sa PNP? Dahil itong pinag-uusapan natin ay pag-aalsa o hinihimok mo mag-umalsa? Mayroon bang ganoon na mga coordination na ginawa ang inyong opisina o ang NBI?*

Mr. Lotoc. *Ang alam ko po, mayroon iyan pero nasa level na po iyan, Sir, ng Intelligence Service namin, Your Honor.*

Senator-Judge Gatchalian. All right. Thank you, Mr. Presiding Officer.

The Presiding Officer. Noted and entered into the record, Sir. We thank the distinguished Senate President.

What is the pleasure of Senator-Judge Legarda?

QUESTIONS OF SENATOR-JUDGE LEGARDA

Senator-Judge Legarda. Mr. President, Mr. Presiding Officer, just a few questions.

The Presiding Officer. The lady has two minutes, Ma'am. You may proceed when you're ready.

Senator-Judge Legarda. Yes, thank you.

This is just to provide clarity for this representation, and just a few questions to Attorney Lotoc.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Legarda. Attorney Lotoc, sa paragraph 53 ng Affidavit of Investigation na iyong pinirmahan, sabi n'yo po na, “The Vice President’s statements were brought about or motivated by unpleasant circumstances occurring before the November 23, 2024 press conference.”

Mr. Lotoc. I believe, at nabasa ko po iyan, Your Honor.

Senator-Judge Legarda. Yes. Kasama ba po dito iyong pahayag ng Bise Presidente noong Oktubre 18, 2024?

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Legarda. It's part of your affidavit.

Mr. Lotoc. *Opo*, Your Honor.

Senator-Judge Legarda. Yes. *Bago naman po magsimula ang press conference noong November 23, mayroong mga pangyayaring kasama ang Chief-of-Staff, si Atty. Zuleika Lopez, na may kinalaman sa mga na-cite in contempt sa Kamara, detention—*

Mr. Lotoc. *Opo—*

Senator-Judge Legarda. —medical emergency, *at mga planong paglilipat—*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Legarda. *Hindi pa po ako tapos.*

Mr. Lotoc. Sorry *po*.

Senator-Judge Legarda. ...*ng piitan sa Correctional Institute for Women sa Mandaluyong. Tama po ba na mga pangyayaring ito ay naganap ilang oras bago iyong isinagawang press conference na 'pinakita ilang beses sa video?*

Mr. Lotoc. Yes, Your Honor. *Kasama po iyan sa investigation namin.*

Senator-Judge Legarda. Yes. *Kahapon po, sinabi po ng testigo, kayo po, na kinonsider ng NBI iyong so-called "bigger picture"—I think those were the words that you used. Sabi n'yo pa, "You put all the pieces of the puzzle together," in your own words.*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Legarda. *Para malinaw lamang, sa Impeachment Court, trying to absorb everything, saan po yatang bahagi ng Affidavit of Investigation nakasaad iyong mga factual findings ng NBI tungkol sa mga pangyayari ng November 22 and 23, bago iyong press conference?*

I was perusing the Affidavit of the Investigation, and I could not find the detailed circumstances leading to November 23, where, admittedly, there was emotions like an emotional hyperbole or an outburst, but the events leading to the press conference.

Saan po iyon sa inyong affidavit?

Mr. Lotoc. I think, Your Honor, *nasa Affidavit of Transcription po iyan. Trinanscribe [transcribe] po iyan as an attachment—*

Senator-Judge Legarda. I read it a few times. I could not see the detailed events leading to that, having mentioned the medical emergency, the transfers to the Correctional Institutes for Women, so that the person who will read the affidavit will have an accurate, factual, and complete appreciation of the events leading to the press conference. Perhaps your view, having been the person who filed the complaint, may have a different, perhaps, appreciation from my view, because I find it somewhat incomplete, and that is just my comment on this, because you clearly said, you put all the pieces together.

And during that time, *alam ba ninyo na habang isinasagawa ng NBI ang imbestigasyong ito, may nakabinbin na Direct Assault, Resistance, and Disobedience to Authority, at Grave Coercion laban sa Bise Presidente, kaugnay iyong insidenteng nangyari sa ospital, sa Veterans Medical Center?*

Mr. Lotoc. *Narinig ko lang po*, Your Honor, *pero hindi ako aware sa—*

Senator-Judge Legarda. Yes, you heard about that, yes. And was there an investigation that was done regarding that incident?

Mr. Lotoc. I think *ang focus po namin*, Your Honor, *is iyong violation ng Grave Threats by the Vice President and Inciting to Sedition.*

Now, *pagdating po doon sa nangyari sa Bise Presidente, iyon nga, sabi ko, hindi ako aware sa kabuuan ng facts na iyon. Baka iyong ibang agency nag-imbestiga po doon. Hindi ako aware, Your Honor, doon sa circumstance na iyon.*

Senator-Judge Legarda. And so, would the answer, Attorney Lotoc, be a "no?" Were these taken into consideration in the investigation?

Mr. Lotoc. Again, Your Honor, *nasa*—

Senator-Judge Legarda. —Or would this be a “yes?” Meaning it is contained in the affidavit, which I’m trying to look for as well?

Mr. Lotoc. *Nasa* Affidavit of Transcription *po* *iyong nangyaring usapan* during that time. *Nag-execute po ng* Affidavit of Transcription *ang* agent-on-case, Your Honor.

Senator-Judge Legarda. Actually, *ilang beses ko po binasa iyong* affidavit. And what I see is, there was a focus on the October 18, but on all the events on November 22 and 23, the detailed events leading to the emotional outburst did not seem complete. And that’s what I’m trying to elicit from Attorney Lotoc, our witness, because when we say that we had considered the bigger picture, and all the facts and circumstances leading to the cases of grave threat and inciting to sedition that were recommended. We want to understand the whole process and the factual context in which it happened. Because if you are to take snapshots of events and focus on October 18 and the press conference, it can shock any person. However, if you see as well the events leading to the emotions and the detention of the chief of staff and the Vice President herself, *iba pa iyong kasong ito, iba pa iyong na-detina, iba pa iyong isinampang kaso, at pinagsarahan ng pinto ng ambulansiya, kaya nagkaroon ng kasong ganoon.*

I tried to read the affidavit a few times and could not find such a comprehensive enumeration of facts by the NBI, and that’s why, thus, this query.

Mr. Lotoc. *Puwede na po*, Your Honor?

Senator-Judge Legarda. Yes, please.

Mr. Lotoc. *Mayroon hong* affidavit of transcription, *kung anong nangyari*, and then *nag-submit po kami ng* authenticated *na* video *para ho makita ng mga* senator-judges *natin kung* what happened during those dates for appreciation *po ninyo*. So, *makikita ho rito kung ano iyong* *nag-took* place during the November 23, 2024 online press conference. But then again, as I have said *at in-explain ko na rin ito kahapon*, Your Honor, if I may, *kinonsider namin iyong* situation *ni* Atty. Zuleika Lopez. *Nakita namin iyong* complaint *niya, iyong reklamo niya, iyong* health condition *na sinasabi niya. Isinama din po namin iyon, na ano ba iyong nangyari.*

Taking all the situations or the facts and circumstances attendant to that event, *hindi ho na-alter iyong* the fact *na nag-utter ang* Vice President *ng* grave threats against the three, despite of the fact *na mayroong* emotional situation *na ganoon. Hindi rin ho na-alter na mayroong* violation *na ginawa iyong* Vice President during that online press conference. And as a matter of fact, even before that emotional situation, *maliwanag ho doon sa* utterances, even before that emotional situation, *sinasabi ho doon sa* utterances, “*Mayroon na akong kinausap.*” So, *nag-trigger na ho* *iyon, ma’am, “Mayroon na akong kinausap na isang tao na papatay sa Presidente, sa First Lady, at doon po sa* Speaker of the House.”

So, *kahit sinama po namin siya* to consider everything, again, Your Honor, *hindi ho nabago* *iyong* utterances *na ginawa ng* Vice President. *Hindi rin ho nabago na iyong* instruction *niya* is relentless in killing the three.

Senator-Judge Legarda. Yes. Attorney Lotoc, what I’ve been trying to ask is not just the utterances which we’ve watched several times, but all the events leading to the utterances—and that is what I want. I understand what you’re saying, that there were attachments or transcription, but the transcription would not be considered an assessment or an investigation. These were perhaps attached as transcription. And you earlier said that the threats are circumstantial, and that is the reason why I was looking for that in the affidavit of the investigation.

In short, *para pong nakulangan ako. Pero kung sinabi n’yong in-attach n’yo iyong transcript*, so be it. But then, if you will read the 50-plus pages again of your investigation, it seemed to me, at least at this point, that snapshots were taken focusing on the October 18 and the utterances, but there seemed to be events leading to it that may have not been included. I’ll leave it at that.

The Presiding Officer. With the indulgence of Senator-Judge Legarda, kindly wind up, ma’am.

Senator-Judge Legarda. Yes. Thank you, Mr. Presiding Officer.

So, the last question, *na-interview rin po ninyo ang mga miyembro ng media*, and you asked them factual information. Did you also ask them about the emotional state *ng mga kalahok sa media, iyong mga pangyayaring naganap bago ginawa iyong mga naturang pahayag?* In short, not just the factual statement, but the atmosphere, the events leading to that Zoom press conference that led to the perceived or alleged utterances.

Mr. Lotoc. *Wala po iyan sa minutes of meeting; sa Q and A, wala po iyan*, Your Honor.

Senator-Judge Legarda. Should you not have asked the members of the media and the others who were part of that, so that you would have, in your own words, Sir, the “complete picture,” so that everything is taken into consideration on why such a highly placed person would give such utterances? Because such conditions existed that might have, just might have, elicited it, but you did not do that investigation, or at least conversations with the members of the media. I leave it at that.

Thank you for answering my questions.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

The Presiding Officer. Thank you, Senator-Judge Legarda.

Senator-Judge Pangilinan, you are recognized,

Senator-Judge Pangilinan. Thank you, Mr. President.

The Presiding Officer. And you may proceed when you’re ready.

Senator-Judge Pangilinan. Just a few questions on inciting to sedition for the witness *kasi sinasagot mo iyong tanong ni Senate President Win kanina, ano.*

Nasa NBI ka na, Cybercrime Division, since 2018.

Mr. Lotoc. Yes, Your Honor—2018.

Senator-Judge Pangilinan. So, *naalala mo ba iyong kaso ni Ronnel Mas? Iyong taga-Zambales na nagkaroon ng Facebook post na—*

Mr. Lotoc. Yes, Sir. *Naalala ko po, pero hindi ho kami may hawak ng case na iyon.*

Senator-Judge Pangilinan. *Pero kung maaalala mo, dahil division ninyo ang nagsampa ng kasong inciting to sedition, tama ba?*

Mr. Lotoc. I-check ko iyong record; *hindi po yata ako ang may hawak niyan.*

Senator-Judge Pangilinan. Well, to refresh your memory, *nag-post siya sa social media offering P50 million to anyone who would kill former President Duterte. At that time, he was the president.*

Mr. Lotoc. Yes, Sir. Yes, Sir.

Senator-Judge Pangilinan. So, you remember that?

Mr. Lotoc. Yes, Sir. That’s the news, Sir.

Senator-Judge Pangilinan. *Oo. Tapos inaresto siya, sabi niya, “I will give P50-million reward kung sinong makapatay sa dating presidente.” So, nakita ng inyong division na ito ay inciting to sedition, tama?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Pangilinan. And therefore, *sinampahan siya ng Anti-Cybercrime Law.*

Mr. Lotoc. *Opo*, Sir.

Senator-Judge Pangilinan. *Meron ding isang kaso, 14 May 2020, dito naman sa Ozamis, pero palagay ko police investigation ito, ano? Pero same, Cybercrime Prevention Act, inciting to sedition, ginamit ang Facebook account, Jomark Medina, and posted that he would give P150 million to anyone who would kill then-President Duterte. So, ito rin, naging kaso ng Anti-Cybercrime Law.*

Mr. Lotoc. *Nabalitaan din po namin.*

Senator-Judge Pangilinan. Okay. So, *dito sa dalawang ito*, in other words, to explain inciting to sedition, *ang ganitong mga* remarks have the tendency, precisely to, if not attack the government, mobilize individuals or people to go against government, *tama?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Pangilinan. So, that is what you found in the earlier, well, in the later case of inciting to sedition that you have recommended for PI.

Mr. Lotoc. Yes, Sir.

Senator-Judge Pangilinan. *Kay Vice President.*

Mr. Lotoc. As a matter of fact, *iyong isa sa mga* heated arguments *namin* during that time, *noong ina-analyze namin* *iyong* case, *nagtanong kami sa sarili namin*, if we allow this unaddressed, *iyong pag ganiyan na nagbabanta sa buhay ng Presidente, pag hinayaan lang natin, at iyan iyong maging norms na ng ating society, kahit sino na lang po puwedeng gawin iyon. At alam ho natin magkakagulo ho pag ganoon at wala ang regulation, at pag hindi ho ini-strict iyan, sasabihin ho ng mga tao, "Okay naman pala kahit mag- threat ka."*

Senator-Judge Pangilinan. *Lalo na ngayon dahil sa social media, ano?*

Mr. Lotoc. *Opo.*

Senator-Judge Pangilinan. *Malaki ang impluwensiya pag nakikitang nangyayari ito at hindi natutugunan, ang sabi ninyo, may problema.*

Mr. Lotoc. *Opo, Sir.*

Senator-Judge Pangilinan. Thank you. Thank you.

No more questions, Your Honor.

Mr. Lotoc. Thank you po, Your Honor.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

The Presiding Officer. What is the pleasure of Senator-Judge Villanueva?

Senator-Judge Villanueva. Yes, Mr. Presiding Officer. Just one question, a quick question on this particular topic on inciting to sedition, if I may.

The Presiding Officer. The gentleman may proceed.

Senator-Judge Villanueva. Yes. Again, let me ask the witness just to clarify the factual basis for the National Bureau of Investigation's possible inciting to sedition. We recognize, Mr. Witness, your strong criticism of the President may fall within the realm of what we call protected political speech and it's really a balance and somehow *iyon iyong nagpapa-confused pa minsan, kailan nagpo-fall* into grave threats, *kailan nagpo-fall* into inciting to sedition.

Pero bilang imbestigador, ano po iyong nakikita ninyo na mga o sa mga pahayag at sa surrounding circumstances na naging basehan po ng NBI para tingnan ito bilang posibleng inciting to sedition at hindi lamang ito pumapasok doon sa tinatawag na political criticism.

Mr. Lotoc. Yes, Your Honor. Well, *una, kinonsider namin sino iyong utterer.* So, *una, iyong utterer*, the Vice President, the second highest official of the land. Then, *pangalawa, kinonsider namin, ano ba iyong mga ini-utter ng Vice President.* And then, *pangatlo, ano ba iyong surrounding circumstances na, like, naging reaction ng recipient ng utterances o threats.* *Nakita ho namin na kung pwede palang gawin ito ng isa sa pinakamataas na posisyon ng Pilipinas at hindi natin ito ia-address, hindi natin ire-regulate, pwede na po pala itong gawin ng kahit na sino.* Remember, Your Honor, Vice President is *kinokonsider natin na model bilang public official.* So, *tinitingnan po natin siya kung ano iyong actuations niya sa public, kung ano iyong pakikipagrelasyon niya sa ibang public officials.*

So, again, Your Honor, *noong makita ho namin iyan, may effect po sa mga tao. Kung ang Vice President kayang gawin iyan, at wala namang nangyari, gawin na rin natin, iyong iba.*

Iyong ini-explain ko nga kahapon, may pattern, consistent siya and, the fact na bold iyong mga statement, pupugutan ng ulo, this country will go to hell because the person na nakaupo, hindi marunong is hindi marunong maging Presidente.

Iyong mga factor po na iyon, pinaktor-in namin, kapag nakita ito ng taumbayan at walang kilos na ginawa iyong gobyerno, parang domino effect po iyan, "Ah pwede na," so, sunod-sunod na, alam naman po natin ang nangyayari sa social media, so, nakita namin na dangerous ito, alarming siya, so, definitely, noong nag-imbestiga iyong NBI at nakalap niya lahat iyong kinakailangang ebidensiya, iyong findings po namin, kasama po doon iyong inciting to sedition.

Senator-Judge Villanueva. Is it safe to say na iyong pinaka-core nito is that, when it falls under that category na it somehow stirs public uprising?

Mr. Lotoc. Definitely, based on our investigation.

Senator-Judge Villanueva. *Iyon po iyong core?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Villanueva. And do you use the same methodology as you use *doon sa* grave threats, for example, *iyong* four stages na *binanggit po ninyo*, identification, collection, analysis, legal evaluation, *iyong* elements na *binanggit ninyo* yesterday, *iyong* factors considered, delivery, literal meaning, nature, relationship to the parties, blah, blah, blah. *Ito ho ba* same, same?

Mr. Lotoc. *Opo, kasama po iyan sa analysis namin na ano iyong effect nito sa publiko pag ito na iyong naging norms na natin.*

Senator-Judge Villanueva. So, this is the same, the same na *ginamit po ninyo?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Villanueva. And last but not the least, Your Honor, Mr. Witness, for purposes of investigating *itong* inciting to sedition, may we clarify because it was—I don't know if Senator Bong Go made mention about this. To clarify now, is it necessary that someone was actually incited? *Iyon po ba?* Just for purposes of investigating *itong* inciting to sedition, is it necessary that someone was actually incited *para mag-fall* dito?

Mr. Lotoc. Well, *ang basis po namin, iyong People v. Nabong*, if I'm not mistaken, in order to be seditious *iyong* speeches, it is not necessary na *mayroong* actual sedition. The law also penalizes or punishes those statements na *mag-e-encourage* to overthrow the government/ or to stir the people against the government or to disturb the peace of the community or to undermine public safety and public order. *Iyon po ang naging basis namin.*

Senator-Judge Villanueva. Thank you for the clarification. Thank you, Mr. Witness.

Mr. Lotoc. Thank you, Sir.

QUESTIONS OF SENATOR-JUDGE EJERCITO

The Presiding Officer. Senator-Judge Ejercito, thereafter, Senator-Judge Villar (M). What is your pleasure, Sir?

Senator-Judge Ejercito. Yes, Sir. Thank you, Mr. Presiding Officer.

Senator-Judge Ejercito. For just one question.

The Presiding Officer. You may proceed, Sir.

Senator-Judge Ejercito. *Nabanggit mo kanina iyong admission against interest. Maaari po ba ninyong ipaliwanag para mas maintindihan po ng nakararami at why did you rely on this, if ever, itong admission against interest?*

Mr. Lotoc. Yes, Your Honor, *kung maalala po natin noong November 2023, iyong utterances niya, that she had already contracted a person to kill the President, the First Lady, and the former Speaker, and that she instructed to be relentless, itong utterance ho na ito, instead na i-deny niya, which is definitely it should be denied, kasi that's against her interest, instead na i-deny niya po iyon, noong November 26 na video noong tinanong siya openly and in public kung sinabi niya*

iyon, ni-reiterate pa po niya, Your Honor. In fact, in-admit po niya na, oo nga, may kinausap akong tao tungkol diyan. And, in fact, sabi niya, may krimen ba? Ano ang nakikitang krimen doon sa may kinausap akong tao na pag namatay ako, patayin mo si BBM, patayin mo si Speaker, patayin mo si Liza Marcos.

Senator-Judge Ejercito. Was this, *itong sinasabi ninyong* admission against interest, was this considered in your investigation?

Mr. Lotoc. Yes, Your Honor, *kasama po iyon. Iyon nga po iyong naging basis namin na aside doon sa utterances niya na "No joke, no joke," kasi mukhang iyong "no joke, no joke," sufficient na ba na talagang seryoso siya. Noong makita ho namin iyong video, ni-reiterate pa niya at nag-admit siya, we concluded na seryoso ang Bise Presidente noong in-utter niya iyon.*

Senator-Judge Ejercito. Thank you. No more further questions, Mr. Presiding Officer.

Mr. Lotoc. Thank you, Your Honor.

QUESTIONS OF SENATOR-JUDGE VILLAR (M)

The Presiding Officer. Senator-Judge Mark Villar, you/ have two minutes, Sir.

Senator-Judge Villar (M). Thank you.

Just a brief question for the witness. You mentioned earlier that there are many factors that come into play when you decide whether or not to file charges regarding grave threats.

Mr. Lotoc. *Opo*, yes, Your Honor.

Senator-Judge Villar (M). There are many factors in how you decide what constitutes a grave threat.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Villar (M). And I wanted to know what weight do you give those factors? Are there certain aspects of a grave threat that you put more importance on whether it's the type of threat or who the threat is made to? What does, in the end, does the NBA give more weight to a certain element?

Mr. Lotoc. Yes, Your Honor, it's a convolution of these factors *na kinonsider namin. Una, iyong delivery or manner in which the utterances were spoken, which is sabi ko nga, nasa atmosphere na kung saan furious and fumingly mad iyong Vice President noong sinabi niya iyon. And then, aside from delivery and manner, kinonsider namin iyong literal meaning noong statement which is, on its face, makikita natin na even before the press conference was held on November 23, 2024, in fact, even before the questions were thrown by Princess Maui to the Vice President, the Vice President had already contracted.*

Senator-Judge Villar (M). What do you give the most weight to? I'm/ aware that you have different factors that come into play. Is there a specific, because, *binanggit ninyo po, halimbawa, meron kayong two tests for grave threat, binanggit ninyo po kahapon.* I just wanted to know what is the basis for, or if there is a hierarchy in the level, in all these elements, if there is a hierarchy, not what the elements are, but is there a hierarchy in those, whether or not when you decide on whether or not to file charges of great threats?

Mr. Lotoc. It's a combination *ng lahat po na* factor.

Senator-Judge Villar (M). So, nothing is given more weight than not one, in your past experiences, you've never...There's no...everything is equal, all these factors that you've mentioned.

Mr. Lotoc. Well, in this case, *iyong literal meaning, at the same time, iyong nature ng instruction.*

Senator-Judge Villar (M). Is it more of the type of the actual threat, if it's a death threat or if it's a, *halimbawa, sasabihin niya, whether it's a threat of, is the gravity of the threat a factor or is it who the threat is made to?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Villar (M). There's something that triggers your investigation more. I mean, is there a factor that you place more weight to, or that you place more weight to, when you're deciding whether or not to file these charges.

Mr. Lotoc. *Iyong status ho ng nagsasabi noon?*

Senator-Judge Villar (M). Yeah. When you made a decision, I was curious as to what factors did you put the most weight to.

Mr. Lotoc. *Iyong nature of the instruction, as well as iyong fact na may kinausap na siya bago pa man siya tanungin. Iyon po. Iyong dalawa na 'yun, Sir.*

Senator-Judge Villar (M). And these are defined—but are these defined in any legal, or are these just purely the discretion of the NBI, or is there a particular definition in the law that would create a hierarchy?

Mr. Lotoc. I would say it satisfies the elements of Grave Threats, Your Honor.

Senator-Judge Villar (M). Okay. But it's not necessary, defining the law, a lot of it is open to interpretation of the NBI?

Mr. Lotoc. Yes, Your Honor. Based on facts, *nakita ho namin na papasok ba iyong elementong ganito, elementong ganiyan, elementong ganun. Noong nagkaroon na ho kami ng findings, ni-refer na namin sa DOJ. "DOJ, Sir, ito ang findings naming. Ano po ang masasabi n'yo?" Then nag-issue ho ng certification ang DOJ, at ang sabi ng DOJ: "Certified, all of the elements required for the crime charged is complete." So puwede na tayong mag-proceed sa preliminary investigation.*

Senator-Judge Villar (M). Yeah. Thank you. *Importante po kasi na ma-define po natin kung ano po iyong grave threat, kung ano po iyong—and I just want to know what latitude this NBI have in deciding whether or not to file a charge of Grave Threats, ano po?*

Mr. Lotoc. Yes, Your Honor. *Opo.*

Senator-Judge Villar (M). Thank you very much, Sir.

Mr. Lotoc. *Opo.* Thank you, Your Honor.

QUESTION OF SENATOR-JUDGE TULFO (E)

The Presiding Officer. Thank you, Senator-Judge Mark Villar. Counsel for the respondent? Apologies.

Senator-Judge Erwin Tulfo, you may proceed when you're ready, Sir. You have no more than 2 minutes.

Senator-Judge Tulfo (E). All right. Thank you.

Just one quick question to our witness. Inciting to sedition *po iyong kinaso ninyo?*

Mr. Lotoc. *Opo,* Your Honor.

Senator-Judge Tulfo (E). *Pero hindi ho ba nagbo-border ito iyong Inciting to Sedition to propaganda? Kasi po, ayon po sa diksiyonaryo, "propaganda is a form of communication that aims to shake the people's belief, action, or behavior," na you say something para udyukan iyong tao para magalit. So nagbo-border ito between propaganda and Inciting to Sedition. What made you say that this is Inciting to Sedition, iyong pinagsasabi ni Vice President Sarah Zimmerman-Duterte?*

Mr. Lotoc. Again, Your Honor, we continue the elements, *noong* Inciting to Sedition, and one of which is *iyong* whether these speeches disturbs the community; and then *iyong* in-explain *ko na po kanina, iyong mga* comments, at the same time *iyong* responses *ng* recipients, *gaya ng* several government agencies and the President himself, as well as the Speaker of the House. And then, Your Honor, whether it would undermine public safety, and then public order, which is *malinaw ho doon sa* comments *at* reaction *ng ating* government agencies like the PNP, like the National Security Council, *at ganun din po iyong* Presidential Communications Office.

So *pinapakita ho nila doon na alarming iyong situation*, it's an active threat, at the same time, it's a matter of national security, *at hindi ho ito dapat palampasin*. In fact, may classification *pa nga iyong ibang agency natin na iyong kinausap* is assassin—both the PNP and the PCO. So, *sila ho, nakalampag po sila, itong mga government agency na ito doon sa utterances na ginawa ng Bise Presidente*.

So aside from that fact, *nakita ho rin namin iyong comments from social media platforms na meron ho talagang nagbubuo na magiging kaguluhan*. Although *sabi po nga po kanina, iyong comments sa mga Facebook at social media platforms, hindi na ho namin nakasama sa affidavit of investigation po namin*, Your Honor.

Senator-Judge Tulfo (E). All right. Thank you, Mr. Witness.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero ordered that after the completion of the cross-examination and before the re-direct examination, the Impeachment Court would take a 15-minute recess.

CROSS-EXAMINATION BY COUNSEL FOR THE RESPONDENT

(Continuation)

Mr. Vinluan. Attorney Lotoc, does a Filipino citizen have the right to express dissatisfaction with their government?

Mr. Lotoc. Definitely, Sir.

Mr. Vinluan. This is part of freedom of speech, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And as long as we do not commit an act to overthrow the government, this is allowed, correct?

Mr. Lotoc. It depends, Sir, *kung magpo-fall siya sa Inciting to Sedition*.

Mr. Vinluan. Okay. But in that presscon, did VP Sarah directly urge the public to overthrow the government?

Mr. Lotoc. There was no such kind of statement, but there was a sort of tendency because of those utterances.

Mr. Vinluan. All right. She merely voiced out her personal opinions during the press con, correct?

Mr. Lotoc. I cannot answer to that, Your Honor, but based *doon sa nakalap namin, kung ano ho nandito*.

Mr. Vinluan. That's okay. So, and just like any other ordinary Filipino, who has the freedom of speech, she should be allowed to do that, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Unless we are under martial law again, she should be able to speak, correct?

Mr. Lotoc. I cannot speak *kung iyong situation na iyan*. That's hypothetical, Sir.

Mr. Vinluan. Nothing further, Your Honor.

QUESTION OF SENATOR-JUDGE SOTTO

Senator-Judge Sotto. Thank you, Mr. Presiding Officer. This will be very quick. *Naliligaw ako eh*. Because I think, that even some members of the public that are watching *naliligaw doon sa* discussion of Grave Threat and Inciting to Sedition.

Hindi ba sa regular courts naka-charge iyon, Mr. Witness?

Mr. Lotoc. *Wala pa ho.* As far as I know, as far as the NBI Cybercrime Division is concerned, *wala pa ho sa court*, Your Honor, *nasa preliminary investigation pa lang ho iyang case natin.*

Senator-Judge Sotto. So, *pero sa regular courts, ini-file, di ba?*

Mr. Lotoc. Yes *po*.

Senator-Judge Sotto. *Ang naka-file dito sa impeachment court, iyang Betrayal of Public Trust, di ba?*

Mr. Lotoc. *Opo*, Your Honor.

Senator-Judge Sotto. *At tsaka*, other high crimes.

Mr. Lotoc. Yes *po*, Your Honor.

Senator-Judge Sotto. *Hindi* Grave Threats *at tsaka* Inciting to Sedition, *di ba?*

Mr. Lotoc. I think *iyong Article IV yata may nakalagay doon*, Your Honor, *na.*

Senator-Judge Sotto. *Pero hindi iyon ang main charge, di ba?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Sotto. Betrayal of Public Trust?

Mr. Lotoc. *Opo*.

Senator-Judge Sotto. *Ah, sigé. Kasi naliligaw ako, eh.*

Mr. Lotoc. Thank you *po*, Your Honor.

QUESTION OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. Yes, very quickly *lang dahil napag-usapan ito since nag-umpisa tayo ng hearing.*

Iyong authenticated video ba ay AI?

Mr. Lotoc. No, Sir.

Senator-Judge Pangilinan. *Ito ba ay fabricated?*

Mr. Lotoc. No, Sir.

Senator-Judge Pangilinan. *Ito ba ay spliced?*

Mr. Lotoc. *Hindi po*, Sir.

Senator-Judge Pangilinan. So, in other words, *iyong video ay accurate?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Pangilinan. And a representation of what happened?

Mr. Lotoc. Authenticated *po*, Sir.

Senator-Judge Pangilinan. *Kasi dalawang linggo na nating dinedebate kung ia-admit ba o hindi, o et cetera, et cetera, hindi naman din sinasabi ng Prosecution na altered or spliced or iyang Defense altered or spliced, tama?*

Mr. Lotoc. Yes, Sir. Obviously—

Senator-Judge Pangilinan. Yes, go ahead.

Mr. Lotoc. Well, one of the ways to identify whether AI *siya o hindi, isa ho doon iyang tinatawag naming visual analysis. Number one, iyang human anatomy anomalies. So, pag iyang mayroong asymmetrical facial feature, pag mayroong unnatural positioning of hands, pag mayroong tinatawag—*

Senator-Judge Pangilinan. *Nagiging anim o pito iyang daliri, ganun?*

Mr. Lotoc. *Opo po, Your Honor. And then kino-consider din ho namin iyong tinatawag na temporal artifacts doon sa visual analysis. Meaning, kung sa one frame, ito ang condition, then pag tinuloy-tuloy mo na i-play, minsan mawawala iyong buhok, mawawala yung relo. So wala hong ganoon na mga circumstances na nakita namin.*

Senator-Judge Pangilinan. So for the record, *lahat ng mga video na pinakita natin dito sa impeachment court, na pinakita ng Defense at ng Prosecution, lahat iyon authentic, for the record?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Pangilinan. Just to put it also on record, *na dito sa mga sinulat—kasi noong nag-imbestiga kayo sumagot iyong lawyer, hindi ba, ni Vice President Sara—itong dated Annex I, sorry, Annex J. Iyong Annex J, sinasabi sumagot iyong abogado noong Vice President na: "Our client vehemently denies Annex K, having made any threat constituting Grave Threats under Article 282 of the Revised Penal Code in relation to so forth and so on.*

Since your office acknowledges kayo iyon.

Mr. Lotoc. *Opo.*

Senator-Judge Pangilinan. That it has access to publicly available materials on the internet. We are confident that the content will and context of the entire press conference subject matter of your investigation will bear this out.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Pangilinan. So, my question is, *ito ba iyong ginamit ninyong video? Iyong sinasabi nilang "it has access"? Since, your office has access to publicly available material?*

Mr. Lotoc. I believe so, Your Honor. In fact, *iyong video na iyan is existing up to May 2025, if I am not mistaken.*

Senator-Judge Pangilinan. Okay. So, in other words, *kahit ang Vice President's office referred to the video in your possession as part of iyong kaniyang clarification and defense na hindi Grave Threats ang nangyari?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Pangilinan. Okay. Thank you. No other questions to this man.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Maraming salamat po, Ginoong Tagapamahala ng Hukom, at sa ating Ginoong Pangulo. Maaari po bang makapagtanong sa ating mahal na saksi?*

Mr. Lotoc. *Opo, Your Honor.*

Senator-Judge Padilla. *Ang una ko pong katanungan sana ay, taga-saan po kayo na lugar na probinsiya?*

Mr. Lotoc. Tacloban, Sir. Tacloban City, Sir.

Senator-Judge Padilla. *Kayo po ngayon ay Regional Director ng NBI sa BARMM?*

Mr. Lotoc. Yes, Sir. *Opo.*

Senator-Judge Padilla. *Iyon po ba ay isang promosyon para sa inyo na madala sa BARMM? Totoo po ba na kayo ang tinatawag na "golden boy" ngayon sa NBI?*

Mr. Lotoc. I cannot comment on that *po, Your Honor.*

Senator-Judge Padilla. *Kasi po ang—*

Mr. Lotoc. *Nasa BARMM po ako, wala ho ako ngayon sa main office, Sir.*

Senator-Judge Padilla. *Opo. Promosyon po ba iyon, iyong napunta kayo sa BARMM? Balita ko po kasi ilang beses na kayo na-promote sa NBI. 12 years na po kayo sa NBI?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Opo. Ilang beses na po kayo na-promote?*

Mr. Lotoc. Since na pumasok po ako sa NBI, Sir?

Senator-Judge Padilla. *Opo.*

Mr. Lotoc. From Investigator I, II, III, noong 2015, 2016—Well, mula noong pumasok ako sa Academy, from Investigation I hanggang ngayon as Regional Director, Sir.

Senator-Judge Padilla. *Ilang beses po iyon sa isang taon po?*

Mr. Lotoc. Sa isang taon? Kailan—among taon po, Sir, ang tinutukoy n'yo?

Senator-Judge Padilla. *Bago po kayo napunta sa BARMM?*

Mr. Lotoc. *Bago ho ako napunta sa BARMM, Regional Director po ako ng MIMAROPA.*

Senator-Judge Padilla. MIMAROPA.

Mr. Lotoc. Region IV-B, Sir.

Senator-Judge Padilla. *Opo. Kayo po ba ang pumili sa BARMM?*

Mr. Lotoc. *Hindi po, Sir. In the exigency of service, doon po kami nilalagay kung ano ang tingin ng Director na makakatulong kami sa Bureau.*

Senator-Judge Padilla. *Bakit po kaya naisip ng Director na sa BARMM po kayo? Kayo po ba ay may kaalaman sa Islam?*

Mr. Lotoc. *Hindi ko po alam kung ano ang naging basis ng Director, pero—*

Senator-Judge Padilla. *Kayo po mismo? Ang BARMM po kasi is Muslim Mindanao.*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Padilla. *Opo. Mayroon po kayong kaalaman sa Islam?*

Mr. Lotoc. In terms of what do you mean “kaalaman,” Sir?

Senator-Judge Padilla. *Sa religion po ng Islam, kasi Muslim Mindanao, so ibig sabihin kahit basic po siguro ng Islam, no?*

Mr. Lotoc. Yes, Sir. *Kahit naman ho sino, puwedeng i-assign kahit saang regional office dito sa Pilipinas ‘pag Regional Director.*

Senator-Judge Padilla. *Ah, di ba po parang autonomous region ng Muslim Mindanao so kailangan naman siguro kahit paano mayroon kayong kaalaman sa Islam?*

Mr. Lotoc. *Konti siguro, Sir.*

Senator-Judge Padilla. *Ano po iyong konti na iyon?*

Mr. Lotoc. Well, isa po akong Kristiyano, at hindi ko ho malalaman iyong kabuuan.

Senator-Judge Padilla. *Siguro po dapat mayroon kayong basic din na knowledge ng Islam. Pangalawang tanong po, okay na po iyon.*

Pangalawang tanong po, sa tagal n'yo po sa NBI, 12 years, mayroon po ba kayong na-encounter na kaso ninyo sa NBI? Kayo po mismo napaylan (file) ng kaso?

Mr. Lotoc. Your Honor, normal po sa mga NBI agents na makakasuhan, in fact, maging sa sinumang law enforcement agency. That's the price we pay for doing our job and for protecting the country. As a matter of fact, in the NBI, Your Honor, we avoid the noise; we just finish the job.

Senator-Judge Padilla. So ano po iyan, “yes?” “Yes” po iyan iyong sagot ninyo? Yes?

Mr. Lotoc. Normal po iyon sa amin.

Senator-Judge Padilla. So “yes” po?

The Presiding Officer. Attorney Lotoc, kindly answer the question.

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. Yes. *Puwede po bang malaman kung ano pong mga naikaso sa inyo?*

Mr. Lotoc. Well, *wala pa akong natanggap na official case galing sa Ombudsman, pero may nakita na ho akong complaint na binigay sa akin from NBI. Hindi ko na ho maalala iyong sa case na iyan. Pero noong chineck (check) ho namin iyong case na iyan, Your Honor, sabi ko doon sa mga kasama ko, "Tingnan ninyo nga iyong validity at authenticity ng case na to."*

Pinuntahan ho namin iyong notaryo, at iyon ay Makati court iyon. Iyong Makati court nag-issue ho ng certification na peke iyong notary diyan sa reklamo na iyan. So, sabi ko, "Eh, huwag n'yo nang pansinin, marami tayong trabaho. Kung fake iyong notaryo na iyan, mere scrap of paper iyan. Huwag na natin pansinin."

Although, nag-aantay po ako, Your Honor, na mag-notify sa akin ang OMB kasi sasagutin po namin na "Heto ho ang nakalam namin, may dalawang Chinese na nagreklamo." Chineck ho namin doon sa BI, iyong dalawang Chinese na iyan, I think nine months nang overstayer, at pinaghahanap din ng Bureau of Immigration.

Senator-Judge Padilla. *Ano pong kaso po iyon ipinatong sa inyo?*

Mr. Lotoc. *Hindi ko ho maalala, Your Honor. Mayroon ho na mga kaso ho doon na nakalagay. Pero again, sabi ko nga—*

Senator-Judge Padilla. *Wala po kayo kahit isa na maalala na ipinatong sa inyo?*

Mr. Lotoc. *If I'm not mistaken, arbitrary detention? May ganoon ba? May unlawful arrest? Wala ho sa akin ang record. Kasi nga, sabi ko nga, noong makita namin na fake iyong notary, hindi na ho namin binigyan ng pansin, Your Honor.*

Senator-Judge Padilla. *Kasi napakakapal po nitong hawak ko.*

Mr. Lotoc. *Wala hong problema, Your Honor. Sasagutin po namin iyan.*

Senator-Judge Padilla. *Opo.*

Mr. Lotoc. *Sasagutin ko po iyan.*

Senator-Judge Padilla. *Hindi na po ninyo nasagot magmula noong February 29?*

Mr. Lotoc. *Kasi wala pa hong official notice galing sa kung anong ahensiya.*

Senator-Judge Padilla. *Na nakarating po sa inyo? Wala pa?*

Mr. Lotoc. *Wala pa ho. Ang nakuha ko lang, iyong kopya niyan, siguro may nagpadala sa akin. Sabi ko, "Teka muna, wala akong official na nare-receive from OMB." So, noong chineck (check) po namin kung nag-i-exist ba iyong kaso, fake iyong notary, hindi na namin—*

Senator-Judge Padilla. *So, ibig ninyo pong sabihin, hanggang ngayon, hindi kayo sigurado kung nag-i-exist ito?*

Mr. Lotoc. *Dapat may notice na ako from Ombudsman, Sir.*

Senator-Judge Padilla. *Di ba po dapat ang reaksiyon ng isang tao kapag may kaso, harapin?*

Mr. Lotoc. *Precisely, Your Honor. Hinihintay ko nga po iyong notice from Ombudsman. Pag mayroon na ho—*

Senator-Judge Padilla. *Wala po kayong notice hanggang ngayon sa Ombudsman?*

Mr. Lotoc. *Wala pa po, Your Honor. Iyon nga ang inaatay ko, kasi sasagutin namin, kasi mayroon po kaming certification na fake iyong notary. Inaatay ko po, Your Honor.*

Senator-Judge Padilla. *Mas maganda po maharap n'yo kaagad.*

Mr. Lotoc. *Definitely. Hindi ho namin tatakbuhan iyan, Sir.*

Senator-Judge Padilla. *Kasi napakahalaga po ngayon nito.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Oo. Ito po ay, uh, ang pinag-uusapan natin dito ay napakahalaga.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Opo. At ito pong mga kasong ipinatong sa inyo, perjury, robbery, extortion, theft, mainam po ito ma—*

Mr. Lotoc. As I have said, Your Honor, in the NBI, we avoid the noise; we just finish the job, Sir.

Senator-Judge Padilla. *Opo. Mayroon pa po akong tanong, pangatlo. Opo. Kanina po na— ang ganda nung talakayan n'yo tungkol sa Romanov.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Opo. Alam n'yo po ba iyong istorya ng Romanov? At ang gaganda po ng mga sagutan ninyo. Alam n'yo po ba iyong historical background ng Romanov?*

Mr. Lotoc. *Ang alam ko lang po diyan, Your Honor, iyon iyong nangyari sa, I think, Czar, kung hindi ako nagkakamali, sa Russia. Sa Russia. Opo. Sino po ba yung nakalaban nung Czar, kung hindi ako nagkakamali, sa Russia.*

Senator-Judge Padilla. *Sino po ba iyong nakalaban noong Czar?*

Mr. Lotoc. Again, hindi ko po maalala, hindi ko nakita iyong buong—

Senator-Judge Padilla. *Iyon. Kasi napakahalaga po malaman ng taong bayan kung sino po ang tinatawag natin na Romanov, at sino iyong nakalaban nila. Kasi po, katabi ko ang isa sa Marcos family.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Alam naman po natin lahat, batid natin lahat, na si Apo Lakay, Ferdinand Marcos Sr., ang number one na lumaban sa komunista dito sa Pilipinas. Batid naman din po natin na ang nag-execute sa Czar, kay Nicolai, sa kanyang mga anak, sa kanyang pamilya, ay ang komunista. Alam po ba ninyo iyon?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Opo. Ngayon, sino po ba ang pangalawang pangulo na lumaban sa komunista?*

Mr. Lotoc. *Sino po, Sir?*

Senator-Judge Padilla. *Si Pangulong Rodrigo Roa Duterte. Hindi ba po dapat isipin natin iyong Romanov ay tungkol sa threat na pumapasok sa mga pamilya ng mga namumuno dito sa ating bayan na lumalaban sa komunista? Komunista po ako, ha. Gusto ko lamang pong alamin ninyo.*

Mr. Lotoc. Yes, Sir. Well, insofar as the investigation, on the issue of whether or not may Romanov or Operation Romanov, nasabi ko po kanina nasa Intelligence Service po namin iyan, at I think ang makakasagot po niyan, Your Honor, iyong Director po namin.

Senator-Judge Padilla. *Opo. Kasi nabanggit ninyo kanina sa usapan po ninyo, si Baste.*

Mr. Lotoc. *Iyon po 'yung—*

Senator-Judge Padilla. *Na ang sinasabi n'yo po kasi kanina, sa usapan po ninyo, sa napakagandang usapan, na 'yung Romanov—hindi naipapaliwanag kasi kung ano ba iyong ugat noon. Napakahalaga po na alam natin 'yung ugat. Si Presidente Marcos Sr. ang lumaban sa komunista kaya nagkaroon ng threat noong 1986.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Padilla. *Ngayon, sinasabi ni Baste na nagkakaroon ng threat sa kanilang*

pamilya sapagkat alam naman nating lahat na ang nagpatuloy ng paglaban sa komunista pagkatapos ni Pangulong Rodrigo Roa Duterte ay si Inday Sara Duterte, ang ating Vice President. Sumasang-ayon po ba kayo doon?

Mr. Lotoc. *Wala po akong personal knowledge, Sir.*

Senator-Judge Padilla. *Ay, bakit po kayo walang personal knowledge? Iyon po ang sumunod na assignment ng ating Bise Presidente pagkaupo niya. Siya po ang nag-take over ng NTF-ELCAC. Hindi po alam ng NBI iyon?*

Mr. Lotoc. *Well, nag NTF-ELCAC siya pero iyong factual circumstances doon, wala pa po akong—*

Senator-Judge Padilla. *Wala po kayong? Pero alam n'yo po? Sagutin na lang po ninyo, na siya ang nag-take over ng NTF-ELCAC.*

Mr. Lotoc. *Yes, Your Honor.*

Senator-Judge Padilla. *Opo. Isa na lamang po, Ginoong Tagapamahalang Hukom.*

Sabi n'yo po kanina—ulitin ko lang po, gusto ko lang pong malaman uli. Inamin n'yo po na wala kayong personal knowledge tungkol doon sa threat ng Pangulo? Ng pangalawa—sabi n'yo po kanina, wala kayong personal knowledge na kumuha na ng assassin o papatay sa Pangulo ang Pangalawang Pangulo? Narinig ko po kanina.

Mr. Lotoc. *During that time?*

Senator-Judge Padilla. *Yes or no lang po.*

Mr. Lotoc. *During that time, ongoing po ang validation namin.*

Senator-Judge Padilla. *So, ibig n'yo pong sabihin ngayon, meron na kayong personal knowledge na meron na kayong—*

Mr. Lotoc. *Hindi po. Ongoing for validation, at sabi ko nga po, ang makakasagot po niyan, 'yung intelligence service namin at ang director po namin, Sir.*

Senator-Judge Padilla. *So, hanggang ngayon po, wala pa kayong personal knowledge?*

Mr. Lotoc. *Insofar as the Cybercrime Division is concerned back then—*

Senator-Judge Padilla. *Yes or no po, ngayon po, ngayon po, Sir, mahal naming saksi, ngayon po.*

Mr. Lotoc. *Kung ako ang tatanungin, wala pa po akong idea, pero baka meron ang Intelligence Service o ang Director po namin.*

The Presiding Officer. *Attorney Lotoc, kindly answer the question directly. It is answerable by yes or no. And I think, you know the answer.*

Mr. Lotoc. *Opo. Ako, personally, wala pa po, Sir.*

Senator-Judge Padilla. *Iyon lang po. Maraming salamat po, mahal na saksi.*

The Presiding Officer. *Thank you, Senator-Judge Padilla.*

SUSPENSION OF TRIAL

With the permission of the Body, the trial was suspended.

It was 5:23 p.m.

RESUMPTION OF TRIAL

At 5:40 p.m., the trial was resumed.

REDIRECT EXAMINATION OF THE WITNESS

The Presiding Officer. Attorney Lotoc, you are still testifying and you will be on redirect by Counsel for the Prosecutors. You are going to testify still under the same oath that you took yesterday.

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. The Chair notes that the witness understands that he is under the same oath.

Counsel for the Prosecutors, Attorney Ligutan, you may proceed with your redirect, if you have any.

Mr. Ligutan. Thank you so much, Your Honor, please.

Again, good afternoon, Attorney Lotoc.

Mr. Lotoc. Good afternoon, Sir.

Mr. Ligutan. Earlier, the defense showed you a video where the President, Ferdinand Marcos Jr., mentioned that he is open to reconciliation with the Duterte, correct?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. And if you know, when did that event, the interview, happen, if you know?

Mr. Lotoc. I think *narinig ko po kanina parang* June, Sir, this year.

Mr. Ligutan. June of this year.

Mr. Lotoc. If I am not mistaken, Sir, June 2026.

Mr. Ligutan. In your investigation, Attorney Lotoc, you mentioned during direct that you considered the statements of the President. Do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. And do you also remember that you considered a video of the President giving his statement?

Mr. Vinluan. Objection, leading.

Mr. Ligutan. Your Honor, these are preliminary questions. This is just based on his direct examination.

Mr. Vinluan. This is already redirect, Your Honor.

Mr. Ligutan. I know. Preliminary question is allowed.

The Presiding Officer. Reform, Counsel.

Mr. Ligutan. Okay. Now, you mentioned in your direct examination of a video where the President gave his reaction to the threats of the President.

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, if shown a copy of the video, will you be able to identify the same?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, Your Honor, I move that the same video marked as Exhibit P-IV-13, be played for consideration of the witness and the court.

The Presiding Officer. So, directed. Is it in a USB? Is that in the USB?

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. So, you will, again, have to break the seal?

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Mr. Witness, kindly break the seal—

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. —in front of the assisting counsels for both the prosecutor and the respondent. Counsel, do you know the timestamp?

Mr. Ligutan. Your Honor, we will be showing only the first half of the video, Your Honor. It is not too lengthy, Your Honor, please.

The Presiding Officer. Okay.

[Video presentation]

Mr. Ligutan. Your Honor, in fact, in the booth, we are satisfied. We may end the video.

The Presiding Officer. The tech is instructed to kindly pause and cease the playing of the video.

Mr. Ligutan. May I proceed, Your Honor?

The Presiding Officer. You may proceed, Sir.

Mr. Ligutan. Attorney Lotoc, again, when did the press conference, online press conference, of the Vice President happen where she uttered that she already contracted a person to kill the president, for example?

Mr. Vinluan. Objection, Your Honor. It is misleading, Your Honor.

Mr. Ligutan. Why?

Mr. Vinluan. She never mentioned that there was a contract to begin with.

Mr. Ligutan. “*May kinausap na akong tao.*”

The Presiding Officer. Reform counsel, reform the word, “contract.”

Mr. Ligutan. If I may, Your Honor, where the Vice President stated that she already contracted a person to kill the president.

Mr. Vinluan. Objection, Your Honor. The Vice President never said the word “contracted.”

The Presiding Officer. *Kinausap*, counsel.

Mr. Ligutan. *Kinausap, kinausap.*

Mr. Lotoc. November 23, 2024, Sir.

Mr. Ligutan. November 23, 2024. Now, if you know, if you know, when did the President, Ferdinand Marcos Jr., issue that statement through the video that was shown a while ago?

Mr. Lotoc. If I am not mistaken, I think, November 24, or 25.

Mr. Ligutan. Of what year?

Mr. Lotoc. 2024, Sir.

Mr. Ligutan. So, one or two days after the threats were made, correct?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Okay. Now, you also mentioned earlier—in fact, I remember that—that instead of denying the threat...

Mr. Vinluan. Objection, Your Honor.

Mr. Ligutan. Wait, wait. I am not yet done.

Mr. Vinluan. Objection on the use of the word “threat,” Your Honor.

The Presiding Officer. Kindly let him finish his question, Counsel.

Counsel for the prosecutor, finish your question.



Mr. Ligutan. Yes, Your Honor. The question now is: you said that instead of denying her statement that she already spoke to a person to kill the President and the two others, you said that the Vice President did not deny that. Do you remember that?

Mr. Vinluan. Objection, Your Honor, leading.

Mr. Ligutan. Your Honor, just the basis, Your Honor. And in fact, the—

The Presiding Officer. Witness may answer.

Mr. Lotoc. Yes, Your Honor, based on the video dated November 26, 2024.

Mr. Ligutan. A video dated what?

Mr. Lotoc. November 26, 2024, Your Honor.

Mr. Ligutan. Your Honor, at this juncture, we move that that video be presented again but this time with a limited timestamp, Your Honor, please. And for the record, the same is marked as Exhibit P-IV-26, Your Honor, please. It is sealed.

I move that the defense may also observe the unsealing of such documents, Your Honor, please.

The Presiding Officer. Let the witness be the one to unseal it, in full view of counsels for both parties. Thereafter, tech is instructed to kindly play the timestamp to be identified by the counsel for the prosecutors.

Mr. Ligutan. And the timestamp is, 10 minutes to 40 seconds, to 11 minutes 50 seconds.

The Presiding Officer. For the record, assisting counsel for the prosecutor, accompanied by assisting counsel for the respondent, are bringing the USB to the tech booth to be played.

[Video presentation]

Mr. Ligutan. Mr. Witness, when did this event where the Vice President uttered those statements, when did that happen?

Mr. Lotoc. Again, Your Honor, November 26, 2024.

Mr. Ligutan. That is three days after she uttered in that November 23 press conference that she already spoke to a person, and the person said yes to kill the President and two others.

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Okay. Now, Mr. Witness, what is your impression, if any, as to the emotional state of the Vice President when she confirmed that, in fact, she uttered those threats?

Mr. Vinluan. Objection, Your Honor, the witness is incompetent.

Mr. Ligutan. All right, good. Your Honor, I invoke Rule 130, Section 53 of the *Rules of Court*, if I may read, "opinion of ordinary witnesses," general rule, not allowed, but I think if we read the exceptions, Your Honor, it says "the witness may testify," however, "on his impressions of the emotion, behavior, condition, or appearance of a person." Section 53, Rule 130, specifically allows that question I just posed as to his impression as to the emotional state of the Vice President when she uttered those confirmation threats. It's in the *Rules*, Your Honor.

Mr. Vinluan. Comment, Your Honor.

The Presiding Officer. Comment.

Mr. Vinluan. Your Honor, the *Rules* provide that the person should be sufficiently acquainted, Your Honor.

Mr. Ligutan. No. No.

Mr. Vinluan. And that is not the case here so such rule does not apply.

Mr. Ligutan. Your Honor, uh—

The Presiding Officer. Overruled. Witness may answer, if he knows.

Mr. Ligutan. Okay, so—

The Presiding Officer. Attorney Lotoc, kindly answer if you know?

Mr. Lotoc. Yes, Your Honor.

Mr. Lotoc. What is the emotional state of the Vice President three days after November 23 when she confirmed that she uttered those statements?

Mr. Lotoc. Yeah, again, Your Honor, when we tried to connect that in the November 23, 2024 event and the November 26, 2024 utterances, it shows *na hindi ho nagbibiro ang Bise Presidente noong in-utter niya yung mga utterances noong November 23*. At the same time, *iyong pagiging furious niya at, iyon nga, iyong sabi ko eh, yung "fuming mad" noong November 2023, dala pa niya hanggang doon sa November 26 kasi ni-reiterate ho niya, Your Honor, at in-admit ho niya na meron siyang kinausap na tao to take revenge*.

Mr. Ligutan. So, she admitted, again, three days after—

Mr. Vinluan. Objection, Your Honor, asked and answered.

Mr. Ligutan. All right. Let me proceed, Your Honor, please.

The Presiding Officer. Go on, Counsel.

Mr. Ligutan. Mr. Witness, earlier, it was pointed out by the defense that now that line where the Vice President said that she spoke to a person and the person said yes to kill the President and the two others— that was just in response to a question by a certain Princess Maui.

Mr. Vinluan. Objection, Your Honor, leading.

Mr. Ligutan. Your Honor, these are just preliminary questions. Your Honor, this is the purpose of redirect.

The Presiding Officer. Let's move on. Let's move on, Counsels. We all know what we're talking about here.

Mr. Ligutan. Yes.

The Presiding Officer. Witness may answer.

Mr. Ligutan. Did you consider that statement, that fact, that it was only in response to Princess Maui's statements, if any, if at all?

Mr. Vinluan. Objection, leading.

The Presiding Officer. Witness may answer.

Mr. Lotoc. Well, I don't think so, Your Honor, *kasi yung utterances, yung nature ng utterances, "may kinausap na ako, ma'am, huwag kang mag-alala."* So, *ibig sabihin*, even before the question was asked, *may kinausap na ho ang Bise Presidente base doon sa utterances niya*.

Mr. Ligutan. Again, what is the significance, if any, and if you know, and if at all, that fact to your investigation?

Mr. Lotoc. Well, it's very much significant because we were able to determine *na* there is intent on the part of the Vice President. The Vice President is determined insofar as that statement is concerned. At the same time, the utterances were not a product of a temporary fit of anger or spur of the moment.

In other words, the utterances—the threat was real, was serious, Your Honor.

Mr. Ligutan. Do you remember, during cross-examination yesterday, the good Counsel for the Defense presented you with a diagram using their props that the NBI is under the DOJ? Remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. And that the DOJ is under the—or the NBI is under the DOJ and the DOJ is under the President, correct?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. In fact, you were asked point blank whether the President, if they referred to the President as BBM, I would like to refer to our President as President Ferdinand Marcos Jr. You were asked if he intervened. Do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Did he, in fact, intervene, the President, to your investigation?

Mr. Vinluan. Objection, Your Honor, leading.

Mr. Ligutan. Your Honor, if you know. If you know.

The Presiding Officer. What's the objection, Counsel?

Mr. Vinluan. Objection. Leading, Your Honor.

Mr. Ligutan. If you know.

The Presiding Officer. Witness may answer.

Mr. Lotoc. None at all, Sir.

Mr. Ligutan. Why did you say that, none at all?

Mr. Lotoc. Well, *wala hong dumating sa akin na* any information or any direction or any directive, even from the Director, *na nakipag-communicate ang Presidente sa* NBI during that time *na nag-iimbestiga kami*.

Mr. Ligutan. If you know, what is the basis of your findings in filing the cases for grave threats and inciting to sedition against the Vice President, if you know?

Mr. Lotoc. *Ano*, Sir? What is the—?

Mr. Ligutan. Basis of your findings?

Mr. Vinluan. Objection, vague.

The Presiding Officer. Witness may answer.

Mr. Lotoc. Basis of the findings? Well, as I have explained that, Your Honor, there were several factors that we considered before we come up with a conclusion. *Iyong una nga, yung* manner of delivery, or the manner in which the utterances were spoken, and then the literal meaning of the statement, *in-explain ko na rin ho iyan*, and then the nature of the instruction *na* relentless, *"huwag kang tumigil, hangga't hindi mo mapapatay sila."*

Mr. Ligutan. All right.

Mr. Lotoc. As well as the relationship between the parties involved, meaning the Vice President and the President, Your Honor.

Mr. Ligutan. Thank you so much.

Earlier, the counsel for the defense in their argument that it was merely an exercise of the freedom of expression of the Vice President when she uttered that, and she said, they said, that the Vice President is an ordinary citizen. Do you remember that?

Mr. Vinluan. Objection, leading.

Mr. Ligutan. Your Honor, again. This is the purpose of redirect.

The Presiding Officer. Witness may answer.

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Do you agree with that, that the Vice President is an ordinary individual?

Mr. Lotoc. Definitely not, Your Honor. The Vice President is the second highest official of the land, Sir.

Mr. Ligutan. Okay. Let's proceed.

Mr. Witness, yesterday, the defense devoted more than two hours in pointing, for example, number one, an alleged discrepancy in the subpoena dated November 6, 2024, and according to the defense, the NBI supposedly started its investigation on November 23, but there was already a subpoena dated November 6. Do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Mr. Witness, how do you characterize this error if at all?

Mr. Lotoc. Typo, Sir, typographical error.

Mr. Ligutan. Typographical. *Para maintindihan ng ating mga kababayan, Atty. Lotoc, ano ba ang ibig sabihin, kung alam mo, ng isang typographical error?*

Mr. Lotoc. Well, basically, *hindi ito* substantial insofar as the document is concerned. *Ito ho iyong may mga instance maling spelling o nagkamali lang ng date. Then, pag makita mo naman doon sa surrounding circumstances, ito naman ang tinutukoy na date, o gaya noong mga case numbers.*

Mr. Ligutan. Case numbers. Now, what effect, if any, did this typographical error have on the statement of the Vice President threatening the President and the two others? What's the effect, if any, of these errors?

Mr. Lotoc. They don't have any effect at all insofar as the findings of the NBI is concerned, Sir.

Mr. Ligutan. Why is that?

Mr. Lotoc. Well, because those typographical errors do not alter the fact that the video exists. It does not alter the fact that the Vice President uttered those statements, and it does not alter the fact that the findings of the NBI is that the Vice President committed the crime of grave threats, and inciting to sedition, Your Honor.

Mr. Ligutan. Okay. Now, the Defense also mentioned that there is a lack of signature of Atty. Ria Asuncion on one of the several minutes of the interview. This time with a certain Jayson Rubrico of SMNI. How do you characterize that error again, if you know?

Mr. Lotoc. Typo, Sir. Typographical.

Mr. Ligutan. Typo error. What effect, if any, does that typo error have on the statements of the Vice President threatening the President and the two others?

Mr. Lotoc. Again, Sir, *hindi ho nabago iyong utterances ng Bise Presidente. Hindi rin ho nabago iyong video. Hindi rin ho nabago iyong findings namin na indeed kumpleto iyong mga ebidensya, at ang Bise Presidente ay nag-commit ng crime of grave threats and inciting to sedition.*

Mr. Ligutan. Okay, third point. What about the alleged discrepancy in docket numbers? How do you characterize that error?

Mr. Vinluan. Objection, Your Honor. The witness already testified during cross-examination that he was not privy to the assignment of docket numbers as that is the function of the DOJ. So, he won't be competent to answer.

Mr. Ligutan. Your Honor, I do remember. Despite that, the Counsel asked several questions after that, and the witness was able to answer those questions.

Mr. Vinluan. Your Honor.

Mr. Ligutan. It's up for the witness to answer that.

Mr. Vinluan. Your Honor, he mentioned, Your Honor, that he does not have personal knowledge, Your Honor.

The Presiding Officer. Counsel, if he gives a different answer, then you can address that in your re-cross.

Mr. Ligutan. Yes.

The Presiding Officer. Witness may answer.

Mr. Ligutan. This discrepancy in the docket numbers, how do you characterize this error?

Mr. Lotoc. Again, Your Honor—

Mr. Vinluan. Objection, Your Honor. He won't be competent to answer that because docket numbers are signed by the DOJ, not by the NBI.

Mr. Ligutan. Exactly. That's the point.

The Presiding Officer. Again, again, Counsel, let him answer. If he answers that he's not competent, then that's his answer. Witness may answer.

Mr. Lotoc. Well, *kung* docket number lang ho ang pag-uusapan, hindi ho nawala iyong existence ng video. Hindi rin ho nabago na ang Bise Presidente ay nagsalita na mayroon na siyang kinausap na tao—

The Presiding Officer. Atty. Lotoc, your answer is not responsive, though. Kindly answer the question of the Counsel.

Mr. Ligutan. Okay. How do you characterize that error?

Mr. Lotoc. Typographical error.

Mr. Ligutan. Okay, next question. What effect, if any, does that typographical error have on the statements of the Vice President threatening the President Ferdinand Marcos Jr., His Excellency, and the two others?

Mr. Lotoc. No effect at all, Your Honor. *Hindi ho na-alter iyong utterances ng Bise Presidente.*

Mr. Ligutan. Okay. Now, let's go to the Affidavits of Investigation which the good Counsel mentioned in yesterday's cross-examination. During your cross-examination, you were asked questions concerning the January 30, 2025 Affidavit of Investigation. After that affidavit was submitted, now the question is: what action, if any, did the Department of Justice take, and if you know?

Mr. Lotoc. The Department of Justice evaluated the referral by the NBI. And then, after evaluation, *nag-issue po sila ng certification na kulang pa, insufficient iyong inyong sinubmit so dapat i-comply niyo muna itong mga requirements na 'to. So, nagbigay ho sila ng, I think, seven ho ang nandodoon. Iyon po ang ginawa ng Department of Justice.*

Mr. Ligutan. All right. Now, what did the NBI do, if any, in response to that recommendation from the DOJ?

Mr. Lotoc. The NBI complied [with] the requirements of the Department of Justice. And as a matter of fact, *noong na-comply na ho namin*, the DOJ issued a certification stating to the effect *na* you have complied all the elements of the crime charged and you are now good for preliminary investigation, Sir.

Mr. Ligutan. In fact, you also remember yesterday, that you mentioned that the NBI also submitted a letter to the DOJ. Do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Why did the NBI submit a letter to the DOJ, if you know?

Mr. Lotoc. Well, I think, that letter was signed by the then Director Jaime B. Santiago, and the then Director was notifying the Department of Justice that the NBI has already complied with all the requirements and that the NBI is now submitting its affidavit with all the requirements attached therein, and with explanation specifically *iyong* requirement *na kailangan* may complaint ang recipient, *gaya ng Presidente. Ang explanation ho doon sa letter na iyon na* for purposes of preliminary investigation under the new NPS rules, *hindi ho kailangan iyong complainant himself, kundi puwede ang law enforcement agency gaya ng NBI, na mag-file ng complaint. Again, for purposes of preliminary investigation.*

Mr. Ligutan. Atty. Lotoc, if shown a copy of that letter of former Director Santiago, will you be able to identify the same?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, we are now in the process, through Atty. Stephen Magallon of SALiGAL Law, showing you a copy of a letter dated February 11, 2025. We invite the Defense to also peruse the same.

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Also, assisted by a lawyer also from Cebu, what relation, if any, does this document have with the one you mentioned?

Mr. Lotoc. The same docs that I mentioned, Sir.

Mr. Ligutan. Your Honors, at this juncture, we move that the letter dated February 11, 2025, by Director Santiago, identified by the witness, where the NBI informed the DOJ that it already complied with all the requirements, be marked as Exhibit P-IV-34, for the Prosecution.

The Presiding Officer. This is not yet premarked, Counsel.

Mr. Ligutan. Not yet premarked. Introduced in response to the direct to the cross-examination by the Defense.

The Presiding Officer. Comment. Comment from the Counsel for Respondent.

Mr. Vinluan. We do not object.

Mr. Ligutan. No comment.

Mr. Vinluan. We do not object, Your Honor.

Mr. Ligutan. No.

The Presiding Officer. The Counsel may...

Mr. Vinluan. It is just a photocopy, Your Honor. The comment is that the document is a photocopy.

The Presiding Officer. That's what I was waiting for. Counsel may proceed.

Mr. Ligutan. Right on cue, we have a certified true copy of the same. We invite the Defense.

The Presiding Officer. Assisting Counsel for the Respondent, kindly confirm.

Mr. Ligutan. May we have a stipulation from the Defense?

The Presiding Officer. Is the photocopy a faithful reproduction of the original or certified true copy presented by the Assisting Counsel for the Prosecutor?

Mr. Vinluan. For the record, Your Honor, it's a photocopy.

The Presiding Officer. Is it a certified true copy, Counsel?

Mr. Ligutan. It is a certified true copy, compared with a photocopy, so we are moving for stipulation that the photocopy is a faithful reproduction of the certified true copy documents.

Mr. Vinluan. Same manifestation, Your Honor.

The Presiding Officer. Noted.

Mr. Ligutan. All right. Now, Mr. Witness, which part of the attached letter did the NBI explain that no law requires the offended party to execute a complaint to conduct preliminary investigation for grave threats?

Mr. Lotoc. I think, first page; the last paragraph which says, "It is to be emphasized that on 2024, New Rules on Preliminary Investigation and Inquest Proceedings, a law enforcement agency, like the NBI, can file a complaint for the purpose of Preliminary Investigation, unless the crime to be filed falls under Section 5, Rule 110 of the Rules of Criminal Procedure."

Mr. Ligutan. Okay. Thank you so much.

May I proceed, Your Honor?

The Presiding Officer. You may proceed, Counsel.

Mr. Ligutan. Mr. Witness, you were asked whether the NBI already identified the particular individual contracted by the respondent, the Vice President—to kill the President and the two others. Okay, you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, to clarify for the record, what investigation, if any, did your own NBI Cybercrime Division conduct on this matter, if any, if you know?

Mr. Lotoc. Again, again, Sir, may you clarify it?

Mr. Ligutan. Okay. You were asked whether the NBI already identified the particular individual contracted by the respondent to kill the President and the two others, and you said you remember that.

Mr. Vinluan. Objection, Your Honor—

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. —on the use of the word “contracted.” We never said “contracted.”

The Presiding Officer. Reform, Counsel.

Mr. Ligutan. That the Vice President already spoke to a person to kill the President, and that person said “yes.” So, that’s a contract.

Now, do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Objection, Your Honor. It is a conclusion of law made by the Counsel for the Prosecution.

The Presiding Officer. Witness may answer. We allow.

Mr. Ligutan. Sorry, Your Honor.

This is now the question, Attorney Lotoc. To clarify, for the record, what investigation did your own NBI Cybercrime Division conduct on the identity of this person that said yes to the order of the Vice President to kill the President and the two others?

Mr. Lotoc. Yes, Your Honor. Again, the reason why we sent a letter on December 2, 2024 to the Vice President is for that purpose. We informed the Vice President that we are also investigating on that alleged threats against her life. Unfortunately, *hindi ho siya nag-appear*. So, *wala ho kaming makitang validated information*.

Then, aside doon, we also issued a subpoena to the media personalities who were present during those press conference, and who have personal knowledge *na nangyari iyong event na iyon*. And in fact, *tinanong po namin din sila isa-isa, “Kilala niyo ba iyong kinausap ng Bise Presidente? May idea ba kayo kung sino iyong tao na iyon?” At bawat isa sa mga na-subpoena ho namin at nag-appear, sinabi nila na, “Hindi ho namin kilala, wala po kaming alam,”* Your Honor.

And then *nung tsinek namin iyong open source, noong nag-conduct kami ng open source investigation—kasi, iyon nga, iyong sinasabi ko kanina, Your Honor—tine-trace namin iyong sinabi ni Princess Maui na “Romanov,” ang nakita lang ho namin doon, iyong statement ni Mayor Baste noong January 2024.*

Tiningnan din ho namin kung relevant ba iyong pag-aalis ng 75 PNP personnel from the VPSPG at inilipat sa Manila para doon sa peace and security, parang i-o-augment yata sila—kinonsider din po namin iyon—pero wala ho kaming na-validate na information relative to the threat against the life of the Vice President.

But *ganun pa man*, Your Honor, I know for a fact, *na iyang aming Intelligence Service ay continuously hong nagmo-monitor at naghahanap kung sino iyang tao na iyan. Baka ho sila ang puwedeng sumagot o iyang aming director*, Your Honor.

Mr. Ligutan. Okay. Thank you, Attorney Lotoc. Let us move to another point.

Now, in your investigation, Attorney Lotoc, what significance, if any, did the NBI give to respondents' own admission that she already spoke to a person to kill the President and the two others? What significance, if any?

Mr. Lotoc. Well, *mabigat ho iyon kasi lumalabas na hindi lang ho siya nagjo-joke noong ni-reiterate niya iyon, noong in-admit niya [noong] November 26. Ibig sabihin, may intention ho doon ang Bise Presidente, base doon sa mga utterances na iyon, pinag-isipan ho niya iyan*. In fact, I can classify it as—

Mr. Vinluan. Objection, Your Honor. The answer is already based on his own interpretation. May we move Your Honor that it be stricken off the record?

Mr. Ligutan. Your Honor, whose interpretation should he be answering?

The Presiding Officer. Witness, will please complete his answer and then the Chair will consider the objection of the Counsel for Respondent. Finish your answer, Attorney Lotoc.

Mr. Lotoc. Yes po, Your Honor. *Iyon nga sinasabi ko*, it was contemplated, Sir.

Mr. Ligutan. Okay. Now, Attorney Lotoc—

Mr. Vinluan. Objection, Your Honor. I move to strike it off the record considering that he included conclusions of law in his answer.

Mr. Ligutan. Your Honor, he is a lawyer. I mean, you have been asking questions on the basis of law and we did not complain. Now, I am asking questions to him as a lawyer then you are moving—

The Presiding Officer. Counsel, please, motion is denied. Let it remain in the record for whatever purpose it may serve. Let the senator-judges give its due weight according to their discretion. Counsel may proceed.

Mr. Ligutan. Thank you so much.

Mr. Witness, you were also asked about the NBI's alleged lack of coordination with certain government agencies such as the PNP, the Armed Forces of the Philippines, and the National Security Council in its investigation on the threats to the President and the two others. Do you remember being asked that?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Objection, Your Honor. It was not covered by my cross-examination. It was a query from one of the senator-judges.

Mr. Ligutan. Your Honor, please. It was raised—

The Presiding Officer. At the discretion of the Court, the Counsel can ask questions not covered by the cross-examination. We will allow it.

Mr. Ligutan. Now, could you explain to the Court how is this so, if you can.

Mr. Lotoc. Insofar as communication with other agencies, the Cybercrime Division, back then, *naka-focus ho kami sa investigation aspect. Pagdating doon sa security ng highest officials*, again, for a fact, I know *na may ginagawa iyang aming Intelligence Service insofar as communicating with other relevant agencies gaya ng AFP, PNP, PCO, and even National Security Council*.

Iyon nga lang, iyang sa amin, Your Honor, *naka-focus ho kami doon sa investigation. Ngayon, kung may binababa ho ang director base sa mga impormasyong nakalap niya from different agencies, mag-i-instruct ho siya sa amin*.

Mr. Ligutan. All right. Now, let me proceed.

Mr. Lotoc, you were asked during cross-examination about the investigation that you conducted on the alleged threats to the life of the Vice President. You were asked whether there was an Affidavit of Investigation report on such investigation that you conducted and you answered there was none, correct? You remember having said that there is no Affidavit of Investigation?

Mr. Lotoc. For the Vice President?

Mr. Ligutan. For the Vice President.

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Okay. And you said that there was an investigation, but there is no Affidavit of Investigation?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Then the question now is, so whatever happened, what happened to that investigation?

Mr. Lotoc. Again, Your Honor, since *wala ho kaming ma-establish na validated information, hindi ho gaya rito noong sa Presidente na may apparent commission of crime, dito ho kasi wala kaming mapagsimulan, hindi ho kami puwedeng mag-produce ng Affidavit of Investigation kung that is the case. Ang ginawa ho namin, although nag-aantay kami ng validated information at nangangalap kami, continue ho na nagmo-momitor iyong aming Intelligence Service. I know that for a fact kasi iyon yung trabaho nila. Siguro ho pag sila ang tinanong natin baka meron silang masabi kung ano iyong nangyari diyan, ano iyong update niyan, maging ho ang aming director.*

Mr. Ligutan. All right. But, Mr. Witness, you were also confronted with the fact that a certain "Princess Maui" mentioned in that press conference a certain "Operation Romanov," that allegedly is a security threat to the Vice President. Do you remember that?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, what did you do, if any, on this information?

Mr. Lotoc. Yes, a security threat. *Ang nakita naming relevant diyan, iyon nga po, iyong pag-aalis ng 75 personnel sa VPSPG then nilipat doon sa Manila, then aside from that, base ho kasi sa record ng COA, meron pa ring 335 more or less na naiwan na security personnel ng Vice President. At narinig ko yata kay Honorable— iyong sa comment ng Ombudsman na ba siya noon or Secretary of Justice siya, na iyong number na iyan ay mas malaki pa sa bilang ng security personnel ng Presidente.*

Mr. Ligutan. Okay. Now, I am referring to, Mr. Witness, to Operation Romanov, okay. What did you do, if any, on that information offered by Princess Maui—information on Operation Romanov?

Mr. Vinluan. Objection, asked and answered.

Mr. Ligutan. No, no.

Mr. Vinluan. That was his answer in the previous question.

The Presiding Officer. Asked and answered, Counsel. Move on.

Mr. Ligutan. All right. Now, what else did you do, if any, in relation to your investigation on the security threat to the Vice President?

Mr. Lotoc. Yes, Your Honor. *Paulit-ulit ko hong sinasabi, iyong open source— we traced kung ano iyong mga relasyon noong security threats. Iyong Romanov na iyan, uulitin ko, narinig namin iyan first time sa bibig ni Mayor Baste during Maisug Rally in January 2024. And insofar as the NBI is concerned during that time, noong ako iyong hepe, wala po kaming na-establish na validated information vis-à-vis iyong threat to life against the Vice President, Sir.*

Mr. Ligutan. Okay. Now, you also mentioned that you issued a subpoena to the Vice President and a letter asking her to shed light on the threats she said she was facing. Do you remember having mentioned that?

Mr. Lotoc. Yes, sir.

Mr. Ligutan. Okay. Now, again, what was the response of the Vice President to the NBI's official invitation to her to appear before it to shed light on the threats she was complaining about?

Mr. Lotoc. The—

Mr. Vinluan. Objection, Your Honor.

The Presiding Officer. What is it, Counsel?

Mr. Vinluan. Your Honor, that is misleading because the subpoena was for her to answer.

The Presiding Officer. I think he mentioned "letter," Counsel.

Mr. Ligutan. Yeah.

The Presiding Officer. I heard "letter" if I am not mistaken.

Mr. Ligutan. Letter. Let's focus on that letter, if you may.

Mr. Lotoc. Yes, I think that was the December 2, 2024 letter, if I'm not mistaken, and then *nag-reply po sila ng letter at sinabi po roon ng lawyers na*, "The Vice President is confident that the NBI will also investigate the alleged threat against her life." *Iyon po iyong tenor noong letter na iyon*, sir.

Mr. Ligutan. All right. Now, Mr. Witness, you also mentioned that since the Vice President did not heed the letter you issued, you were not able to elicit information from her. Do you remember having said that, correct?

Mr. Lotoc. Yes, sir.

Mr. Ligutan. However, on the part of the threats to the life of the President and the two others, you did not need to interview them personally to proceed with the investigation. Do you remember having said that?

Mr. Lotoc. Yes, sir.

Mr. Ligutan. Now, the question now is, for clarification, before our Honorable Senator-Judges, what's the difference? Why the difference between the two?

Mr. Lotoc. Again, *uulitin ko po*, Your Honor, insofar as the threat against the life of the Vice President, we have not established a validated information that remains to be allegation. Insofar as the threat based on the utterances against the President, the First Lady, and the former Speaker of the House, that was apparent, *nasa video, narinig po namin*. Therefore, based *sa aming jurisdiction*, which is primary jurisdiction, *kaya po kami nag-imbestiga kaagad doon*.

Mr. Ligutan. Okay. Three more points, Your Honor, before the prosecution winds up its redirect.

The Presiding Officer. Thank you.

Mr. Ligutan. Now, it was also raised during the discussion during cross-examination that the Vice President was merely exercising her freedom of speech, and she was not committing a crime of inciting to sedition. Do you remember being confronted with that issue?

Mr. Lotoc. Yes, sir.

Mr. Ligutan. Now, you tell the Honorable Court, what is your response to that issue, if any?

Mr. Vinluan. Objection, Your Honor. It will call for his opinion.

Mr. Ligutan. Exactly. He is a lawyer.

The Presiding Officer. Will call for?

Mr. Vinluan. Opinion, Your Honor. He's not an expert on the matter.

Mr. Ligutan. He's a lawyer.

The Presiding Officer. Witness may answer if he knows.



Mr. Lotoc. Well, again, I already said, Your Honor, to reiterate: If the second highest official of the land uttered openly and in public that she had already contracted a person to kill the President, the First Lady, the former Speaker of the House, and she instructed that person to be relentless in killing them, and that person said yes, we failed to see any amount of freedom of speech in that utterances.

Number two, should we allow that kind of argument; should we allow that to become the norm of our society, then nobody would prevent from anyone from doing the same. Imagine the chaos, the disorder, and the anarchy, Your Honor.

Then number three, as a lawyer and being in the law enforcement, freedom of speech protects lawful expression, but it does not protect utterances that satisfy the elements of a criminal offense like this one, Your Honor.

Mr. Ligutan. "A criminal offense like this one." Now, as a lawyer, as a lawyer, Atty. Lotoc, when the Vice President uttered in public that she already spoke to a person to kill the President, the First Lady, and the two others, as a lawyer, did the Vice President betray public trust?

Mr. Vinluan. Objection, Your Honor. That will call for a conclusion of law already, and as a lawyer, it will call also for his personal opinion.

Mr. Ligutan. Your Honor, If I do recall, the counsel was propounding questions on all —

Mr. Vinluan. Your Honor, may we get a ruling in the motion of the objection, please—

Mr. Ligutan. —felony versus crime; what is the penalty? I am also asking the same line of questions, Your Honor. What is sauce for the goose should also be sauce for the gander, Your Honor.

The Presiding Officer. A similar question was asked by the counsel for the respondent, and the witness may answer if he knows. If he knows.

Mr. Lotoc. Yes, Your Honor, as a lawyer.

Mr. Ligutan. She betrayed public trust.

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Last question. Listen, Attorney Lotoc. As a matter of law, if the President, Pres. Ferdinand Marcos Jr. is killed, God forbid, who assumes the presidency?

Mr. Vinluan. Objection, Your Honor.

Mr. Lotoc. The Vice President.

Mr. Vinluan. Speculative.

Mr. Ligutan. Asked and answered. The Vice President.

No more redirect, Your Honor.

The Presiding Officer. Before recognizing the counsel for respondent for his re-cross, the Chair would like to recognize Senate President Gatchalian for his interjections.

You may proceed, sir, and you have two minutes.

QUESTIONS OF SENATOR-JUDGE GATCHALIAN

Senator-Judge Gatchalian. Thank you, Mr. Presiding Officer.

Attorney Lotoc, *napakidding ko kanina iyong isang sagot ninyo, at sinabi ninyo dito na—* just this afternoon—"yes, we do believe that the Vice President had contracted." *Naputol lang siya*, but obviously contracted someone to commit a crime or to kill the President and the others.

Kahapon, narinig ko na ipinapasa ninyo sa investigative division ng inyong or intelligence service ng inyong ahensiya itong tanong na ito. So, ano ba, mayroon bang nakontratang papatay o walang nakontratang papatay?

Mr. Lotoc. Yes, Your Honor—

Senator-Judge Gatchalian. —*Dahil this morning lang, sinabi ninyo you believe na mayroong nakontrata.*

Mr. Lotoc. Yes, Your Honor. *Base po doon sa utterances, we believe the Vice President na hindi po siya nagbibiro noong sinabi niya iyon. So, ang stand po namin, meron na po siyang kinausap na tao.*

Senator-Judge Gatchalian. *Anong ebidensiya na mayroon kayo o mayroon ka o mayroon iyong Cybercrime Division na made you believe na mayroong nakontrata?*

Mr. Lotoc. *Una, Your Honor, kung iyong pagbabasehan po namin is iyong November 23 na may kinausap siya, puwede pong sabihin na nagjo-joke lang siya doon kahit galit na galit siya or et cetera. But then, noong na-incorporate po natin iyong November 26 na ni-reiterate pa niya, at sinabi niya doon, openly and in public, na totoo, may kinausap na siya to take revenge kung sakaling mamatay siya, so ang belief po namin, may kinausap ang Bise Presidente. Now, insofar as kung sino iyong kinausap na iyon, insofar as iyong existence ng tao na iyon, ang makakasagot po, Your Honor, since trabaho nila iyon, iyong aming intelligence service po, o kaya iyong aming director.*

Senator-Judge Gatchalian. So, *iyong belief mo ay nanggaling doon sa mga statements—*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Gatchalian. —*ng Vice President Sara, no more?*

Mr. Lotoc. Statements and admission, sir.

Senator-Judge Gatchalian. *Doon lang nanggaling, wala nang iba?*

Mr. Lotoc. Insofar as the Cybercrime Division, Your Honor, yes.

Senator-Judge Gatchalian. Okay. And then, *mayroon din siyang reply at sinabi ninyo nga kanina, nagpadala kayo ng letter dated—*

Mr. Lotoc. December 2, Your Honor.

Senator-Judge Gatchalian. December 2. And *may reply rin si VP na dini-deny niya na mayroong grave threat. So, kapag dini-deny niya na ginawa niya iyong grave threat, obviously, dini-deny niya na may kinontrata siya, hindi ba? So, bakit pa rin ninyo i-finile o ni-recommend na mag-file ng grave threat and inciting to sedition kung may denial na?*

Mr. Lotoc. Hindi po, Your Honor. *Ang na-establish po namin doon iyong the elements of the crime of grave threat. So, noong nakita namin na na-satisfy siya at nag-comply siya, noong ni-refer po namin ito sa Department of Justice, nag-concur sa amin ang Department of Justice, nag-concur sa amin ang Department of Justice na, "Indeed na-comply ninyo," and therefore tuloy iyong proseso, iyong preliminary.*

Senator-Judge Gatchalian. But what made you not—*bakit hindi ninyo tinanggap itong paliwanag ni VP Sara sa kaniyang letter? Dahil kaagad, dito sa letter niya, may denial na ginawa niya iyong grave threat, and therefore wala ring nakontrata kasi magkadugtong iyon.*

Mr. Lotoc. Well, Your Honor, mere denial would not discount the fact *na na-utter niya iyon at may kinausap na siyang mga tao. Iyon nga ang problema doon, kaya namin siya gustong makausap personally para makapagtanong pa kami ng other questions para makita namin, totoo ba itong kinontrata ng Bise Presidente o kinausap o hindi. Kaya lang, Your Honor, wala ho doon—hindi ho siya nag-appear. Iyong kaniyang sagot is mere denial lang, walang mga basehan, even circumstantial na basehan. So, hindi ho namin siya sinama sa factor in considering whether or not the crime of grave threat has been committed by the Vice President.*

Senator-Judge Gatchalian. With your permission, Mr. Presiding Officer, just one last question.

Nakita n'yo ba kung mayroong capability si Vice President Sara na gawin ito?

Mr. Lotoc. Definitely. Definitely po.

Senator-Judge Gatchalian. *Ano ang nakita n'yong mga ebidensiya kung mayroon siyang capability gawin iyong kaniyang sinabing pagbanta at iyong kaniyang gagawin?*

Mr. Lotoc. Well, for one, she is the Vice President of the Republic of the Philippines. And number two—

Senator-Judge Gatchalian. *Hindi naman porket Vice President ka, may capability ka gumawa noon, di ba?*

Mr. Lotoc. Yes, Your Honor, not necessarily. But *alam naman po natin iyong background, naging presidente ang—*

Senator-Judge Gatchalian. *Hindi naman porket Senate President, may capability kang gumawa noon.*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Gatchalian. So, *anong ebidensiya na mayroon kayong nakita na kaya niyang gawin iyon?*

Mr. Lotoc. *Alam naman po natin iyong background, na iyong tatay niya na dating Presidente ay hinaharap ngayon iyong kaso sa ICC dahil sa mga extrajudicial killings, et cetera. So, tiningnan namin iyon na indeed, being in that situation, may capability ho aside from the fact na Bise Presidente siya.*

Senator-Judge Gatchalian. Thank you, Mr. Presiding Officer.

The Presiding Officer. Senator-Judge Ejercito and, thereafter, Senator-Judge Hontiveros, for their interjections.

You may proceed, Sir, when you are ready.

QUESTIONS OF SENATOR-JUDGE EJERCITO

Senator-Judge Ejercito. Thank you, Mr. Presiding Officer.

Attorney Lotoc, given that the Vice President repeated her alleged threats as presented *kanina. Sabi n'yo*, twice or thrice *sa mga* videos.

Mr. Lotoc. *Opo.* Yes, sir.

Senator-Judge Ejercito. Did you consider her persistence in making the threat, or in going through with the threat? Because these two are different.

Mr. Lotoc. Yes, Your Honor. I think *in-explain ko po iyan, iyong nature of instruction. Kasi iyong nature of instruction niya, sabi niya doon, "Pag namatay ako, huwag kang tumigil hangga't hindi mo mapapatay sila."* So, there, that is indicative of persistence *na determined din po ang Bise Presidente na gawin iyon, at pursigido siya doon sa kaniyang mga utterances kasi maliwanag po sa instruction na, "Hangga't hindi mo sila mapapatay, huwag kang titigil."*

Senator-Judge Ejercito. So, *hindi ba ito iyong tinatawag na persistent lamang doon sa threat kung may mangyari sa kaniya*, if something happens to her? *Di ba parang iyon iyong nasa—*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Ejercito. Does the heat of the moment still matter here? *Kasi maaaring dahil lang sa bugso nung galit o sa takot noong gabing iyon, noong nangyari dahil sa sitwasyon na nandoon po sila sa Batasan.*

Mr. Lotoc. Again, Your Honor, *puwede pong mag-matter iyan kung iyan lang ho ang pinagbasehan namin, iyong November 23, 2024. Kaya lang, gaya nga ng explanation ko, kinonsider namin iyong mga previous statements na may patterns, may consistencies, iyong October 18, 2024, as well as after ng November 23, which is November 26, 2024. So, marami ho ang mga factor na kinonsider namin bago kami nag-conclude na, indeed, may violation ang Bise Presidente.*

Senator-Judge Ejercito. *Dahil doon po, Attorney Lotoc, sa Israel vs. People, G.R. No. 265736, dated November 19, 2025, sinabi ng Korte Suprema na sa pagtukoy kung may mens rea o kriminal na intensyon, kinakailangan ding umiral ang pagpupursigi or persistence na binabanggit natin.*

Mr. Lotoc. Yes, sir.

Senator-Judge Ejercito. *Kung walang ganitong pagpupursigi, walang krimeng grave threats.*

Mr. Lotoc. Yes, sir.

Senator-Judge Ejercito. *Gaya ng mga bantang binitiwang lamang sa tindi ng galit o bugso ng damdamin, iyong nabanggit natin kanina.*

Mr. Lotoc. Opo.

Senator-Judge Ejercito. *O bilang biro at hindi naman sinundan ng anumang kilos o karagdagang pagbabanta.*

Mr. Lotoc. Yes, Sir. Insofar as persistence is concerned, *nakita po natin iyan noong November 23 utterances. At the same time, persistence in the sense na aside doon sa November 23, in-admit po niya at ni-reiterate niya iyon in the November 26, 2024 statement.*

Senator-Judge Ejercito. *Dahil mayroon po sa Article 282, iyong threats without persistence are not considered grave.*

Mr. Lotoc. Yes, sir.

Senator-Judge Ejercito. So, in conclusion, Mr. Presiding Officer, *sa inyong palagay, ano-anong ginawa ng Bise Presidente ang maituturing na pagpupursigi o persistence sa kaniyang mga banta?*

Mr. Lotoc. Well, Your Honor, October 18, *sinabi niya doon na "I imagine myself cutting his head," na "Gusto kong tanggalin iyong ulo niya ba." In fact, may instance doon na sinabi niya na, "Pag di kayo tumigil, huhukayin ko iyong tatay ninyo, itatapon ko sa West Philippine Sea." Mayroong ganoon noong October 18.*

And then pagdating dito sa November 23, she was hurling profanities and invectives habang galit na galit siya at sinasabi niya, "This country will go to hell dahil, iyong tao na iyan na nakaupo, hindi marunong maging presidente. Wala akong kinokonsider na mas mataas sa akin." At the same time, "He was lying through his teeth para lang makuha yung boto ng mga tao." And then, noong kinausap niya na papatay sa tatlo.

At the same time, dinugtong ho namin iyong November 26. Inulit pa ho niya iyon. Aside na persistence na iyong nature ng kaniyang utterances, inulit pa ho niya noong November 26, openly and in public, na indeed may kinausap siya to take revenge, na kung mamatay siya, "Papatayin n'yo iyong tatlo." That's much persistence kung ii-establish po natin iyong persistence, Your Honor.

Senator-Judge Ejercito. *Maraming salamat, Attorney Lotoc.*

That's all. No more further questions, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Ejercito.

Mr. Lotoc. Thank you po.

The Presiding Officer. Senator-Judge Hontiveros, you may proceed, ma'am, when you are ready. You have two minutes.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Salamat, Mr. Presiding Officer.

Mr. Witness—

Mr. Lotoc. Yes po, Your Honor.

Senator-Judge Hontiveros. *Nabanggit n'yo kay Senator-Judge Ejercito—hindi ngayon lang, kanina—iyong admission against interest. Sabi n'yo po, ang mga pahayag ng Bise Presidente ay maituturing na admissions against interest, tama po?*

Mr. Lotoc. Yes, ma'am.

Senator-Judge Hontiveros. *May diperensiya po ba sa pagtrato sa pahayag ng isang tao kung pabor sa kaniya o against sa interest niya ang admission?*

Mr. Lotoc. I think so, ma'am.

Senator-Judge Hontiveros. *Ano po?*

Mr. Lotoc. *Kasi base dito sa issue natin, ang Bise Presidente is abogada. Alam na po niya iyon na the moment she uttered those kind of statements, puwede ho siyang mag-fall in any criminal violation. So, pagdating ho ng November 26, instead of avoiding mentioning those utterances, instead of denying mentioning, or instead of denying that she made those utterances, ang sinabi po niya, ni-reiterate niya, "Yes, sinabi ko iyan, na someone has to take revenge kung sakaling mangyari ito, mamatay ako." Iyon po, Your Honor, ang nakita namin kaya ko nasabi na admission against interest ho iyon.*

Senator-Judge Hontiveros. *So, kung sa halip na i-reiterate niya, i-deny niya iyong naunang sinabi, kung sinabi niya na, "Hindi ko talaga mine-mean iyan," or may sinabi siyang maituturing na pabor sa kaniya, iba po iyong pagtrato n'yo sa ganiyang klaseng pahayag sana?*

Mr. Lotoc. *Baka maging iba, Your Honor.*

Senator-Judge Hontiveros. *Okay. So, ano po iyong diperensiya at saka halaga doon sa bigat na ibinibigay ng batas doon sa admission against interest?*

Mr. Lotoc. *Well, ipinapakita ho rito, in the natural order of things, hindi ho i-a-admit ng isang tao iyong isang bagay na ikakasira niya sa isang paglilitis, something like that.*

Kapag in-admit ng isang ta iyong isang bagay na ikasisira niya, maliwanag na ginawa niya iyon, sinabi niya iyon, at determinado siya sa mga pangyayaring iyon o pursigido siya sa mga pangyayaring iyon.

Senator-Judge Hontiveros. *So, masasabi po bang mabigat o napakabigat ang diperensiya, ang halaga na ibinibigay sa ilalim ng batas ang isang admission against interest?*

Mr. Lotoc. Yes, Your Honor, *opo.*

Senator-Judge Hontiveros. *Panghuli na lang po, Mr. Witness. Bakit nga po pinaparusahan ng batas ang Grave Threats kahit pa hindi natuloy sa physical act?*

Mr. Lotoc. *Well, Your Honor, for purposes of peace and order among the populace, 'pag hindi ninyo in-address iyong speeches o iyong utterances na magka-qualify as Grave Threats, magkakagulo ho iyong mga tao. Pwede na lang ho sabihin kahit na sino, "papatayin kita pag ito ang nangyari, gagawin ko ito sa iyo, 'pag ito ang nangyari.'" So, I think the wisdom of the law is to avoid the disorder, the anarchy, and the chaos that it would create, Your Honor.*

Senator-Judge Hontiveros. *So, iyong sinasabi ninyong "wisdom of the law" ay hindi lamang sitahin o parusahan iyong isang bagay na tumuloy sa physical act, kundi mag-serve nang deterrence para gawin iyon ng taong iyon—or ng ibang ta—iyong Grave Threats?*

Mr. Lotoc. Yes, Your Honor, *pwede po iyon, Your Honor, to serve as a deterrence, Your Honor.*

Senator-Judge Hontiveros. *So, may preventive na value ding nakikita kayo.*

Mr. Lotoc. Yes *po*, Your Honor.

Senator-Judge Hontiveros. *Bukod sa curative.*

Mr. Lotoc. *Opo*, Your Honor.

Senator-Judge Hontiveros. All right. *Salamat po*, Mr. Witness; *salamat po*, Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Hontiveros. Senator-Judge Raffy Tulfo; thereafter, Senator-Judge Alan Cayetano before the re-cross of Counsel for the Respondent, if any.

Senator, Judge Tulfo (R), you may proceed and you have two minutes.

QUESTIONS OF SENATOR TULFO (R)

Senator-Judge Tulfo (R). Thank you, Mr. Presiding Officer.

Mr. Witness, *aware ba kayo*, at what point in time—I just don't remember what date was it—*na na-pull out iyong* certain numbers of security personnel *ni VP Sara*?

Mr. Lotoc. Yes, Your Honor, based on the news, *may nakita po kami noon*.

Senator-Judge Tulfo (R). When was that? When did that happen?

Mr. Lotoc. 2024 *yata*, 75 PNP personnel from VPSPG, Sir.

Senator-Judge Tulfo (R). Was that before the utterance of VP Sara *doon sa* presscon, or after?

Mr. Lotoc. Before, Sir.

Senator-Judge Tulfo (R). Before.

Mr. Lotoc. I think, that's before, Sir.

Senator-Judge Tulfo (R). So, would it be possible *na* because of that *nakapag-isip siya na merong* threat against her life because security *niya* was being pulled out and *walang binigay na* reason *kung bakit, kaya maaaring inisip niya*, well, *medyo sabi/ nga sa kalye, "na-praning" at....*

Mr. Lotoc. Very much possible, Sir, *iyon po*.

Senator-Judge Tulfo (R). *Hindi ninyo ba inimestigahan bakit nai-pull out iyong* security details *niya*?

Mr. Lotoc. *May nakita ho kami*, Sir, *doon sa* November 26 *na* video, *nalimutan ko lang* iyong time stamp *niya*. *May sinasabi siyang* issue *sa* security *niya*, *doon nga sa* VPSPG, *parang* from military-attached unit *ginawang* under *na* ng Presidential Security Command. I'm not familiar with that.

Senator-Judge Tulfo (R). *Sino po ang* nag-cause ng pullout? *Sino po ang* nag-utos? *Saan po galing* iyong utos?

Mr. Lotoc. *Hindi ko ho siya masyado....* Pero, I think part ng reorganization, Your Honor, ng PSG, if I'm not mistaken.

Senator-Judge Tulfo (R). Part ng reorganization.

So, *ilan po* iyong *na* pull-out, 75?

Mr. Lotoc. *Hindi ko po alam kung ilan iyon*. *Ang sinasabi ko po*, Your Honor, *iyong* dating VPSPG *ay* under ng attached unit ng Armed Forces of the Philippines, *kung hindi ako* nagkakamali. And then *inilagay na* *siya sa* ilalim ng Presidential Security Command. *Iyon po* *iyong* sinabi ng Bise Presidente during November 26 *na* security threat *dahil sa* event *na* *iyon*. *Iyon* *iyong* tiningnan namin, tiningnan din namin iyan, *pati nga* *iyong* 75 personnel, *kaya lang*, again, *hindi ho* *siya* sufficient *na* *ma-establish* ng apparent violation of any criminal offense *kasi nga* *para* *siyang* normal *na* function ng agencies and departments.

Senator-Judge Tulfo (R). Yeah.

Mr. Witness, *iyong sa* akin *kasi*, *iyong* pag pull-out ng security, was it sudden? Did it, I mean, *ano ang* naging dahilan, *at* *kanino* *galing* *iyong* order *para* *i-pull out* *iyong* *ilang* members of security details *niya*, particularly, the PNP and, *sabi ninyo nga*, *iyong sa* PSG, *nabawasan din* *ba*, *base sa* *inyong* imbestigasyon? *Bakit nga* *po* nangyari *iyon*? *Anong* nag-trigger *doon*?

Mr. Lotoc. *Opo*. *Iyong sa* 75, *ang* *naalala ko po sa* news, *parang* *inilipat po* *sila*, Your Honor, *sa* Manila *kasi* *mayroong* issue *na* *kailangan* *nilang* *i-augment* *dahil* *may* peace and order

issue sa Manila. So, iyon ang nakita kong nasa news na ginawa ng PNP o reason ng PNP bakit mayroong ganoong pullout. Nang nakita na ho naming ilan na lamang iyong natira sa Bise Presidente...noong tsinek namin ho iyong news, per record ng COA, if I'm not mistaken, mayroon pa siyang 335 na security personnel.

Senator-Judge Tulfo (R). *Ah, so, marami pang naiwan?*

Mr. Lotoc. Yes po, Your Honor. And in fact, kung hindi ako nagkakamali, narinig ko po iyong sinabi niHon. Boying Remulla na iyang bilang na iyan, mas marami pa doon sa bilang ng mga security personnel ng Presidente. So, nakita ho namin na hindi siya sufficient para maging valid basis ng investigation, hindi ho katulad dito sa threat against the President na apparent po iyong utterances na nangyari.

Senator-Judge Tulfo (R). Okay, dalawang katanunan na lamang, Mr. Witness. So, base sa inyong imbestigasyon at karanasan, ilan ba dapat ang security detail ng isang Vice President?

Mr. Lotoc. Sorry po, Your Honor, wala po akong idea kung ilan po dapat ang....

Senator-Judge Tulfo (R). Last na lamang.

So, noong na-pull out iyong ilan sa mga security personnel niya—sabi nila 75, right, sa PNP, and then meron pa yata sa PSG—nagreklamo ba siya, sa inyong pagkakaalam?

Mr. Lotoc. Doon sa November 26, Your Honor, I think, ang isa sa issue niya na may threat sa security, is iyong paglipat ng VPSPG from attached unit ng AFP na maging under siya ng Presidential Security Command. Iyon po iyong narinig namin. Pero dito sa 75 personnel, insofar as I'm concerned, wala ho akong nakita sa reports, sa news, sa social media na nagreklamo siya na nawala iyong 75. Pero baka mali ho ako, baka meron lang akong hindi nakita. Pero, as far as I'm concerned, wala ho akong nakita sa news na nagreklamo siya doon sa 75 transfer ng PNP personnel from VPSPG na dinala doon sa Manila, Your Honor.

Senator-Judge Tulfo (R). At hindi na siya nag-request ng augmentation o dagdag doon sa mga nawala na security detail?

Mr. Lotoc. Mukhang hindi na po, Your Honor. Wala ho kaming nalaman kung may ni-request ba siyang dagdag.

Senator-Judge Tulfo (R). So, is it possible na dahil doon sa pag pull-out ng security details, nasabi ko na kanina, naitanong ko na, again one more time, iyon iyong probably and tinitingnan na reason o reasons ng mga sumusuporta sa kanya or anybody sa circle niya na ito na siguro iyon.

Mr. Lotoc. Tama po kayo, Your Honor.

Senator-Judge Tulfo (R). Thank you.

The Presiding Officer. Senator-Judge Alan Cayetano, you have two minutes, Sir. You may proceed when you're ready.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Mr. Presiding Officer, dear colleagues, susundan ko lang po iyong kay Senator-Judge Risa at Senator-Judge JV, at iyong ibang nagtanong sa admission against interest.

You stated this already, but just for the record, you viewed the whole video, right, the whole two-hour video?

Mr. Lotoc. The November 23, Sir.

Senator-Judge Cayetano (A). Yes.

Mr. Lotoc. Isang beses, Sir.

Senator-Judge Cayetano (A). Isang beses lang.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). Okay. And how many times there has the Vice President made admissions against her interest?

Mr. Lotoc. No, Sir, *ang tinutukoy ko pong* admission against interest, *doon sa* November 26, Sir.

Senator-Judge Cayetano (A). No. *Sabi mo, iyang* November 23 *din na ayaw ng* Defense gamitin "contracted," so, "kinausap" is also an admission against her interest, 'di ba?

Mr. Lotoc. Hindi, Sir. *Ang sinasabi ko pong* admissions against interest *iyong* November 26 video *po*, Sir.

Senator-Judge Cayetano (A). *Na sinasabi niyang totoo iyon at hindi niya....*

Mr. Lotoc. Yes, Sir, *opo*.

Senator-Judge Cayetano (A). Okay. So, *doon sa* November 23, *may nakita ka doon na* admissions against interest?

Mr. Lotoc. Insofar as I'm concerned, *ni-reiterate niya*.

Senator-Judge Cayetano (A). Hindi, not reiterate. *Siguro, para malinaw*, in your mind, as a lawyer or as an NBI agent, what is an admission against interest?

Mr. Lotoc. *Iyon lang po, iyang ini-explain ko po kanina, ito po iyang isang bagay na ginawa ng isang tao na—*

Senator-Judge Cayetano (A). Hindi ginawa—*sinabi, kasi* it is admission.

Mr. Lotoc. *Sinabi ng isang tao na ikasisira niya*, but then, instead of denying *na sinabi niya iyon, in-admit pa niya ito, ni-reiterate niya sa—*

Senator-Judge Cayetano (A). Okey, very clear *iyon*. And you and the agent John Mark Calilung said that the basis of the investigation was the November 23 video, the basis *sa inyong* Affidavit of Investigation *sa nag file ng kaso* is certain portions of the November 23 video.

Mr. Lotoc. As well as the November— as well as the....

Senator-Judge Cayetano (A). As well as other evidence, okay.

Mr. Lotoc. *Opo*.

Senator-Judge Cayetano (A). *Sa* November 23, *ilan ang* admission *niya* against interest?

Mr. Lotoc. *Ang sinasabi ko pong* admission against interest *noong* November 26—

Senator-Judge Cayetano (A). This is a new question. If you evaluated well the November 23 video, is there any circumstance in that video that you believe that the Vice President made admissions against her interest?

Mr. Lotoc. Plain *iyong* utterance *niya doon*, Your Honor. *Noong nakita lang ho namin iyang* utterances *niya*, insofar as I'm concerned, *iyong* admission against interest *nangyari noong* November 26.

Senator-Judge Cayetano (A). Mr. Witness, *sagutin mo na lang ako. Lahat ng* admissions are utterances.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). Admissions is verbal, *di ba? Hindi ito iyang parang* admission *sa court? Puwede mong i-admit iyang* documentary evidence, *puwedeng* object evidence, *puwede iyang* statements. When we talk about "admissions against interest," especially in context of what we're talking about, *may statement na laban sa* interest *niya*.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). So *tinatanong ko, doon sa buong* video, *meron ka bang* nakita? *Wala? Yes or no lang iyon. Meron o wala? O meron at wala, hindi yes or no? Kayo nag-evaluate noon eh. Meron o wala? Admissions* against her interest?

Mr. Lotoc. Yes, Sir, the fact *na in-utter niya iyon*, uh—

Senator-Judge Cayetano (A). So which one *nga*? So *meron? Ilan at ano iyon?* A little leeway, Mr. Presiding Officer, *kasi hindi natukoy masyado yung tanong*.

The Presiding Officer. Senator-Judge

Alan may proceed.

Senator-Judge Cayetano (A). So, which statement is that? That one you're mentioning now? *So iyong sagot mo, meron.*

Mr. Lotoc. *Ang understanding ko*, Sir, *noong sinabi ko iyan*, I'm referring to the November 26, 2024.

Senator-Judge Cayetano (A). Mr. Witness, *paulit-ulit tayo*.

Mr. Lotoc. Yes, Sir?

Senator-Judge Cayetano (A). *Burahin mo na 'yung pinag-uusapan natin* you're referring to. I'm asking you a direct question.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). Sa November 23, *meron o wala bang* statements *na* you will consider in your profession as a lawyer and as an NBI agent in charge of investigating this. *Meron ba siyang* admissions against interest?

Mr. Lotoc. *Ang tinutukoy ko lang po*, again, Your Honor, *iyong 26—*

Senator-Judge Cayetano (A). No, I don't care—I'm sorry, I don't care, Mr. Presiding Officer, *kung anong tinutukoy mo*. I'm asking you a direct question. November 23 video, *meron o wala siyang* admissions against her interest *doon?*

The Presiding Officer. Attorney Lotoc, yes, no, I do not know, I do not remember. We're referring to November 23, not 26.

Mr. Lotoc. I do not know, Sir,

Senator-Judge Cayetano (A). You do not know. Okay.

Mr. Lotoc. *Ang nire-refer ko na—*

Senator-Judge Cayetano (A). Don't tell me *na*. So, you do not know. *Okey*. When she said, *"kung papatayin ako, may kausap na ako, patayin niyo yung tatlo,"* is that an admission against interest, yes or no?

Mr. Lotoc. Based on that utterances, Sir, yes, I think so.

Senator-Judge Cayetano (A). Yes. *O kakasabi mo lang kanina*, "I don't know," *ngayon*, "yes."

O ano pa sa video na iyon na admission against interest? *Meron o wala*, or I don't know?

Mr. Lotoc. *Iyong* utterances *na iyon*, Sir, *ang—*

Senator-Judge Cayetano (A). Sir, *bukod nga doon*.

Mr. Lotoc. To me, Sir, *iyong* utterances *na iyon*, that's admission against interest.

Senator-Judge Cayetano (A). Sir, *klaro na iyon*. *Tinanong ka na ng Presiding Officer, sagot mo*, "I don't know". *Tinanong kita nang direktso na sa video, biglang* you know, *biglang sasabihin mo na iyong* utterance *na iyon*. So *ang tanong ko na ngayon, bukod doon*, aside from that.

Mr. Lotoc. Sir, *uulitin ko po iyong sagot ko*.

Senator-Judge Cayetano (A). No, you don't need to answer.

Mr. Lotoc. *Iyong sinabi ko po na* admission against interest—

Senator-Judge Cayetano (A). No, I'm asking you. Aside from the utterance, the statement na "*kung papatayin nila ako, patayin sila*," is there any other utterance during... in that video that you would consider admission against interest?

Mr. Lotoc. Yes, insofar as I remember, *wala na po iyon*.

Senator-Judge Cayetano (A). *Wala na*, okay. When the Vice President said, *iyong "pinamigay sa DepEd,"* isn't that an admission against her interest *kung may 'pinamigay'?*

Mr. Lotoc. *Siya po iyong namigay, Sir?*

Senator-Judge Cayetano (A). *Ikaw ang nanood ng video, ikaw nag-evaluate, ako pa magsasabi sa iyo kung ano laman ng video? Akala ko ba tiningnan n'yo nang mabuti 'yung video? Bakit hindi mo alam 'yung laman ng video?*

Mr. Lotoc. *Iyong DSW—Sir, puwede ko pong tingnan 'yung sinasabi n'yo.*

Senator-Judge Cayetano (A). No, no, so you do not know what the...*ang laman ng video?*

Mr. Lotoc. Again, *tiningnan ko po ang laman ng video one time and ang nag-review po ng video iyong agent-on-case.*

Senator-Judge Cayetano (A). Yes, but you're the agent-in-charge, and you're the one who filed this affidavit, okay?

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). Next question. *Noong sinabing, ano, mag-People Power, tapos ang sinabi niya, "hindi iyon 'yung solusyon." o kung nag-People Power, sino magiging Presidente?*

Mr. Lotoc. *Siya.*

Senator-Judge Cayetano (A). *Kung nag-People Power at mawawala ang Pangulong Marcos, sino magiging Presidente?*

Mr. Lotoc. *Siya, Sir.*

Senator-Judge Cayetano (A). So *hindi ba* admission against her interest *din? Siguro sa interest niya, maging presidente? Pero ang sinabi niya, "huwag?"*

Mr. Lotoc. I think so, Sir.

Senator-Judge Cayetano (A). Okay. So, I mentioned three. So, my next question: when you have an admission against interest, do you take the whole admission, or you can cut it up into parts?

Mr. Lotoc. Again, Your Honor, *iyong—*

Senator-Judge Cayetano (A). If my admission against interest is one sentence, or one paragraph, or three sentences, can you take one sentence and say "*yun lang iyong admission and the two other sentences are not?*" Can you divide it up?

Mr. Lotoc. I think it should be the whole, Sir.

Senator-Judge Cayetano (A). The whole sentence. So, the whole sentence *niya noong sinabi niyang "kung papatayin ako"* is *pinagbibintangan niya 'yung tatlo na papatayin na siya*. So, if you say it's an admission against interest and you believe it, you also have to believe *na papatayin siya noong tatlo*. The same thing, if you're going to say *na "nangmudmod siya sa DepEd,"* ang sinabi niya, "*galing sa First Lady iyong pera.*" So, you're also going to have to believe that. So if you're going to believe her, *na iyong ibang sinabi* is seditious, *eh ngayon sinabi nga niya, "hindi solusyon ang People Power."* So as the evaluator, *bakit hindi consistent iyong evaluation n'yo noong video?*

Mr. Lotoc. No, I think *iyong* insofar as People Power is concerned, I think, *sinabi niya yata na "yes, Ma'am, natutuwa ako doon sa ginagawa niyo."* *Iyon.*

Senator-Judge Cayetano (A). *Hindi.*

Mr. Lotoc. *Puwede ko pong ulitin.*

Senator-Judge Cayetano (A). Let the record speak for itself. It's on page 26, same paragraph *noong sinabi niyang "papatayin," ano?*

But having said that, last question. *Bakit sa Cybercrime ni-refer? Bakit hindi sa Anti-Terrorism or sinabi mo meron Intel Group? Bakit sa Cybercrime?*

Mr. Lotoc. Your Honor, may cyber aspect *po kasi* iyong violation.

Senator-Judge Cayetano (A). Okay. What are the aspects of the alleged threat? One, is the cybercrime Grave Threat, the other one is a possible assassination threat, right?

Mr. Lotoc. No, Your Honor, *iyong sinasabi kong may* cyber aspect, the utterances was made through—

Senator-Judge Cayetano (A). Through cyber, and the utterance, in accordance with you, constitutes Grave Threat.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). But if she meant it, and if it is true, and if it is accurate, it's also an assassination plot, isn't it? *Kung totoo iyong utterance niya na "Ipapapatay kita, may kausap na ako," hindi ba* assassination plot *iyon?*

Mr. Lotoc. Maybe, Sir, yes.

Senator-Judge Cayetano (A). *Hindi "maybe." NBI kayo, kayo nag-aano eh. May nagsabi sa Presidente "papatayin kita,"* how much plain can that be as an assassination plot?

Mr. Lotoc. That's why, Sir, may validation process.

Senator-Judge Cayetano (A). That's why may validation. *Kaya iyon iyong tanong ko. Ano bang mas mabigat, iyong* assassination plot *o* *iyong* cyber aspect?

Mr. Lotoc. No, Your Honor, the—

Senator-Judge Cayetano (A). No. *Diretsong tanong. Hindi "no, no, no." Anong mas mabigat?* It's a direct question. If you are NBI Director now, or whatever, you are— PNP Chief—*dalawa ang iniimbestigahan mo, iyong* cyber aspect *na puwedeng* cyber libel, *puwedeng* Grave Threat, *at iyong* assassination plot, *anong mas mabigat sa dalawa? Ano iyong ipa-prioritize mo?*

Mr. Lotoc. Your Honor, *iyong* cyber aspect, based on the law, *mag-a-add siya ng* one degree higher, *at doon sa—*

Senator-Judge Cayetano (A). So *magde-debate tayo kung anong* higher. *Papabayaang mong mapatay ang Presidente?*

The Presiding Officer. Kindly wind up, Senator-Judge Alan.

Senator-Judge Cayetano (A). Yes, I'm winding up. The point I want to make, Mr. President, is whether I was the PSC, the Executive Secretary, NBI, or an ordinary citizen, my first concern is *huwag mapatay iyong Presidente.*

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). But instead of the NBI Director taking it upon himself, giving it to the Anti-Terrorist or to the Intelligence, *sa Cybercrime ibinigay.*

Mr. Lotoc. Your Honor, again, *uulitin ko, iyong* utterances was made through information and communication technology, *kaya may* jurisdiction—

Senator-Judge Cayetano (A). Yeah, and I hope if any one of my colleagues here become President, *magbago iyong* attitude *ng* NBI. *Mas importante pala ang cyber kaysa sa buhay ng Presidente?*

Mr. Lotoc. Not necessarily, Your Honor.

Senator-Judge Cayetano (A). Thank you, Mr. President.

The Presiding Officer. Noted.

Counsel for the Respondent is recognized for his re-cross, if any.

Mr. Vinluan. Just a few points, Your Honor.

The Presiding Officer. You may proceed, Sir, when you're ready.

RE-CROSS EXAMINATION OF THE WITNESS

Attorney Vinluan made the following re-cross examination of the witness:

Mr. Vinluan. So, during your testimony, you mentioned that an unsigned document is a mere scrap of paper?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. But you also said on re-direct, that the lack of signature is a typographical error.

Mr. Lotoc. No, *iyong* typographical error based *sa tanong sa akin kanina ng abogado, iyong* misspelling, *mali iyong* docket number, *kung mali man iyon. Iyon*, Your Honor.

Mr. Vinluan. Okay. Now, you mentioned on the redirect also about the November 26, 2024 presscon, correct?

Mr. Lotoc. Yes, Your Honor, yes, Sir.

Mr. Vinluan. So, after that presscon, did you interview VP Sara?

Mr. Lotoc. No, Sir.

Mr. Vinluan. And despite not having interviewed her, you made findings on her mental state?

Mr. Lotoc. No. Findings *ng* mental state, Sir? What do you mean by that?

Mr. Vinluan. My question is, despite not having the chance to interview VP Sara, nevertheless you included in your investigation or findings about her mental state.

Mr. Lotoc. Based on the serious events, Your Honor, as I have said, the state of mind can be shown through the overt acts, Your Honor.

Mr. Vinluan. Okay. So, you were also asked about persistence, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Now, the subject video was on November 23, 2024, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. But to demonstrate persistence, you referred to a presscon on October 18, 2024.

Mr. Lotoc. No, Sir. To demonstrate persistence, *iyong* nature *ng* utterances *niya*. *Uulitin ko, Sir, in-explain ko muna*. The nature of the instruction was persistent because of the fact *na ang sabi niya*, "*Huwag kang tumigil hangga't hindi mo siya—hindi mo sila mapapatay*." And then *ni-reiterate niya ito noong* November 26. Now, as to consistency patterns *at* persistence *pagdating sa galit niya sa Presidente, iyong* October 18 *may kinalaman kasi ang unang sinabi niya doon*, "*Walang kino-consider kong number one hanggang number two lang iyong Pilipinas na ito*. Then *pangalawa*, I imagined myself cutting his head." Then *kinumpara namin siya noong* November 23, consistent *po* *iyong*—

Mr. Vinluan. Already satisfied with the answer.

The Presiding Officer. What is that Counsel for respondent?

Mr. Vinluan. We are already satisfied. No need to elaborate.

The Presiding Officer. I think it's already answered, yes.

Mr. Vinluan. All right. Last two questions. So, you said that the February 14, 2025, DOJ

certification found your findings, or your—sorry, your investigation, or the case that you filed, sufficient.

Mr. Lotoc. Based on the certification, the DOJ stated that you had complied with all the elements of the crime charged, Sir.

Mr. Vinluan. All right. So, this DOJ evaluation, does this amount to a final verdict of guilt or innocence by VP Sara?

Mr. Lotoc. Your Honor, *ang maliwanag ho doon*, “for purposes of preliminary investigation.” *Wala ho akong sinabi na final verdict.*

Mr. Vinluan. All right. So, you also mentioned the concept of open-source investigation.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Does this include internet browsing?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. So, you Google search? *Kasama ba iyon?*

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. So, you Google search *mga* news articles, websites, videos, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Including *mga* YouTube videos?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. I’ll show you a short video, and I’ll ask one final question.

The Presiding Officer. Kindly show the video tech.

[Video presentation]

Mr. Vinluan. So in the course of your open-source investigation, did you encounter this video?

Mr. Lotoc. *Hindi ko po na-encounter iyan, Sir.*

Mr. Vinluan. Nothing further, Your Honors.

The Presiding Officer. Before we let go of the witness, the presiding officer just has a few points.

Number one, to clarify, Attorney Lotoc.

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. *Sa pagtatanong po ni Senate President Gatchalian kanina, sabi n’yo po, maliban sa mga salitang binanggit o sinambit ng ikalawang pangulo na may nakausap na siya na gagawa ng kanyang kautusang patayin, diumano, ang tatlong opisyal ng bansa, wala po kayong hawak na ibang ebidensyang may kinausap na nga siya?*

Mr. Lotoc. In so far as the cybercrime division is concerned, Sir, *opo.*

The Presiding Officer. *Pangalawa po, sabi n’yo po, sa ilang katanungang pinukol sa inyo, na hindi n’yo alam kung totoo o hindi ang ilang mga sinabi ng ikalawang pangulo sa video na napanood po ninyo nang isang beses, iyong mahigit dalawang oras. Sa kabuuan po, totoo po iyon. Ang kaya ninyo lang pong sabihin na sinabi niya iyon, pero kung totoo man iyon o hindi, wala po kayo sa lugar sabihin na totoo nga ba lahat ng mga sinabi niya.*

Mr. Lotoc. Well, *una*, since *Bise Presidente* siya, at base doon sa sirkumstansiya na galit na galit siya at nagbabato siya ng mga pagmumura, we believe na totoo iyong mga sinasabi niya, Your Honor.

The Presiding Officer. And as an advisement, perhaps, to the senator-judges, and the public as well, an admission against interest, as mentioned in the rules, is nothing really special.

An admission against interest under the rules is simply an exception to the hearsay rule, where a person is about to die or is unavailable to testify, his statements against his or her interest may be admitted, testified to by another person, not the way we seem to be giving admission against interest *na parang umamin na, dahil labag sa interes niya iyon*. The rules are specific, and the purpose also is specific. It is an exception to the hearsay rule. If there are no other points or questions to be raised, any of the senators-judges, attorney—*talagang photo finish*.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Puwede po bang magtanong ulit?*

The Presiding Officer. You have two minutes, Sir. Yes, of course, Sir.

Senator-Judge Padilla. *Kanina po nabanggit ng isang senador na mayroon pong dalawang kaso sa panahon ni Pangulong Rodrigo Roa Duterte na inimestigahan n'yo po, P150 million, tsaka ano po iyong isa?*

Mr. Lotoc. *Ang naalala ko, Your Honor, iyong kay Mas yata. Hindi po ako ang may hawak noon, Your Honor. Hindi ho ang Cybercrime Division. I think ibang unit ang nanghuli, although cybercrime division yata iyong nag-file. Pero hindi ho ako may hawak noon.*

Senator-Judge Padilla. *Hindi po panahon ninyo. Pero ano pong nangyari doon? Na-dismiss po ba iyon?*

Mr. Lotoc. *Ang alam ko, na-dismiss yata, Sir.*

Senator-Judge Padilla. *Nagsagawa din po ba sila ng masusing imbestigasyon?*

Mr. Lotoc. *Hindi ko po masasagot. Hindi ho ako nag-imbestiga, Your Honor.*

Senator-Judge Padilla. *Wala po kayong nabalitaan kung gumawa din sila ng masusing imbestigasyon?*

Mr. Lotoc. Again, Your Honor, kung ibang unit ho ang nagsagawa noon, wala po akong personal knowledge.

Senator-Judge Padilla. *Opo. Kasi po doon, malinaw eh na mayroong involved na pera. Alam n'yo, matagal din po akong nakulong, tatlong taon din po ako sa kulungan. Marami po akong nakasama diyan na mga hired killers. Katunayan, pati po hindi hired killers, mga kasama ko din po diyan, sila Teehankee. Katunayan, excuse po, ano sa aking seatmate. Marami po talaga. Pag-usapin po kasi ng pera, talagang may threat. Pero sa tingin po ba n'yo, iyong mga nangyari noong November 23, birthday ko pa po iyon. Sa tingin ninyo po ba, walang involved na kahit anong pera dito? Threat pa rin po ba iyon sa palagay ninyo? Kasi ang hired killer, pera-pera po iyan.*

Mr. Lotoc. Based on our findings, grave threats, Your Honor, and inciting to sedition.

Senator-Judge Padilla. *Mayroon po bang... Inciting? Okay. Maganda pong pag-usapan iyan. Doon po ba, pagkatapos po noong November 23 na mga sinabi ng ating Bise Presidente, mayroon po bang ginawa ang ating mga taumbayan para maging inciting to sedition? Nagbunga po ba ito?*

Mr. Lotoc. Your Honor, uulitin ko po iyong sagot ko. In the case of People versus Nabong, hindi ho necessary—

Senator-Judge Padilla. *Pakisagot na lang po kung yes or no, kung mayroon po bang naganap na pagkilos ang mga tao.*

Mr. Lotoc. Insofar as iyong seditious act, wala kaming nakita, Sir.

Senator-Judge Padilla. *Wala po. Opo. Mayroon pa pong isang tanong. Doon po ba sa mga naganap na maraming protesta, mayroong Trillion March, mayroong kung ano-anong march, nakita n'yo po ba doon ang Bise Presidente? Yes or no lang po.*

Mr. Lotoc. Saan pong protesta, Your Honor?

Senator-Judge Padilla. *Sa lahat po ng protesta na naganap—Dilawan, Pinklawan, Duterte—anuman po.*

Mr. Lotoc. *Wala po akong personal knowledge, Sir, at—*

Senator-Judge Padilla. *Yes or no lang po. Nakita n'yo po ba roon si Bise Presidente, nagsalita po ba siya, at nagbigay po ba siya ng panahon diyan sa mga iyan?*

Mr. Lotoc. *Insofar as I'm concerned, wala akong nakita, Sir.*

Senator-Judge Padilla. *Wala pong nakita. Iyon lang po. Maraming salamat po.*

The Presiding Officer. Thank you, Senator- Judge Padilla.

Attorney Lotoc, you are excused, and the Court thanks you for your time and cooperation with this Impeachment Court.

Mr. Lotoc. Thank you very much, Your Honor.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer clarified that the subpoena issued to Atty. Zuleika Lopez, Chief of Staff of the Office of the Vice President, covered only the previous and the current day's proceedings, while Capt. Belinda Bello, head of the Legislative Security Bureau of the House of Representatives (HOR), had not been subpoenaed but was merely scheduled to testify the following day.

REQUEST OF REPRESENTATIVE DEFENSOR

Representative Defensor requested a five-minute recess before the proceedings resumed. The Presiding Officer stated that the Prosecution may confer while he proceeded to recognize Senator-Judge Cayetano (A).

INQUIRY OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) sought clarification on whether the oral arguments on the requests for subpoenas covering bank records, Bureau of Internal Revenue (BIR) records, and Anti-Money Laundering Council (AMLC) documents would proceed the following day. Presiding Officer Escudero confirmed that they would and informed the Body that the parties' memoranda had already been submitted and distributed to the senator-judges.

Noting that the memoranda comprised approximately 60 pages, Senator-Judge Cayetano (A) inquired whether the Court would rule immediately after the oral arguments or deliberate further before rendering its decision on Monday. Presiding Officer Escudero replied that the Court intended to decide the matter the following day to give the parties ample time to examine records produced in case the subpoenas were granted, adding that the requested documents were in relation to Article II, the hearing of which would only begin in August. While Presiding Officer Escudero confirmed that under the current schedule, it was the last article to be heard, the Prosecution has the discretion to alter the sequence of its presentation.

Clarifying that he was not proposing to defer the oral arguments, Senator-Judge Cayetano (A) suggested that the senator-judges first hold a caucus and deliberate before voting on the requests. He noted that a similar procedure had been followed in a previous impeachment trial and that the issues involving the AMLC and BIR records could establish important precedents. Presiding Officer Escudero then referred the proposal to convene a caucus to Senate President Gatchalian.



REMARKS OF SENATE PRESIDENT GATCHALIAN

Senate President Gatchalian agreed with Senator-Judge Cayetano (A) that the parties' memoranda were lengthy and complicated, requiring review by the senator-judges and their legal teams. He initially proposed holding a caucus at 10:00 a.m. the following day.

Upon Senator-Judge Cayetano (A)'s suggestion, however, the Court agreed to convene the caucus after the oral arguments, during a break in the proceedings, to allow the senator-judges to first hear the parties' presentations before deliberating.

MANIFESTATION OF ATTORNEY KAPUNAN

Attorney Lorna P. Kapunan, Counsel for the Prosecution, manifested that the Prosecution would no longer present Attorney Zuleika Lopez and Capt. Belinda Bello as witnesses. She explained that the Prosecution considered their testimonies unnecessary in light of admissions made by the Defense, after four trial days of testimony, the presentation of 19 documentary exhibits authenticated by NBI Agent John Mark Calilung and 45 documentary exhibits authenticated by Atty. Lotoc, together with the questions of the senator-judges.

She further explained that Attorney Lopez's proposed testimony had become unnecessary because the Defense had effectively admitted the Vice President's statements, the presence of the media, and the authenticity of the video, including by relying on the same video as evidence. She emphasized that the Impeachment Court's role is not to determine criminal liability for Grave Threats or Inciting to Sedition, but to decide whether the Respondent's admitted acts constitute impeachable offenses under the Constitution. She further stated that Captain Bello's testimony would have been merely corroborative, limited to the detention transfer order and its relation to the Vice President's November 23, 2024 press conference.

She added that dispensing with the two witnesses would promote the Respondent's right to a speedy trial and expressed hope that the defense would adopt the same approach

REMARKS OF SENATOR-JUDGE GATCHALIAN

Senate President Gatchalian expressed gratitude to the Prosecution for dispensing with the presentation of two witnesses, noting that it would help expedite the proceedings. He observed that the pre-trial order listed 57 prosecution witnesses and 45 defense witnesses, or 102 witnesses in total, and estimated that, at the current pace of two hearing days per witness, the trial could last about 17 months. He thus encouraged both parties to continue adopting measures that would shorten the proceedings.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero thanked the Prosecution for dispensing with the two witnesses and announced that the July 15, 2026 hearing would instead be devoted to the oral arguments on the Prosecution's motions for subpoenas covering bank, AMLC, and BIR records. With NBI Director Melvin Matibag's testimony reset to July 20, 2026, he directed that the motions be argued jointly in accordance with the parties' consolidated memoranda. He initially allotted 10 minutes per side for the principal arguments and three minutes each for rebuttal and surrebuttal, and informed the Body that the senator-judges would deliberate in caucus before the Court ruled on the motions.



MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) proposed extending the time for oral arguments to 15 to 20 minutes per side, emphasizing the importance of the subpoena motions and the need to distinguish legitimate requests for evidence from a fishing expedition. He added that more comprehensive presentations would better assist both the Court and the public and could reduce the need for questions.

ORDER OF THE PRESIDING OFFICER

Upon the parties' manifestation, Presiding Officer Escudero approved 15 minutes per side for the principal arguments and 10 minutes each for rebuttal and surrebuttal. He likewise reminded the senator-judges that, under the *Rules*, each may speak for up to 10 minutes, subject to an aggregate limit of one hour per side during plenary debate, if necessary, and urged the parties to maximize their allotted time.

INQUIRY OF SENATOR-JUDGE SOTTO

Senator-Judge Sotto sought clarification on the application of the time limits for the senator-judges. Senator-Judge Cayetano (A) explained that the extended speaking time would apply only if the Court failed to reach a consensus in caucus. Presiding Officer Escudero clarified that the two-minute limit applied only to clarificatory questions during evidentiary proceedings, clarifying that in this case, both sides will be given enough time to present their arguments in chief and on rebuttal. The Senators will have the opportunity to listen and thereafter go into caucus. Failing a consensus in caucus, a debate may ensue for a maximum of two hours – one hour for each side. He also ruled that the AMLC and BIR subpoena motions would be heard jointly because the parties had submitted consolidated memoranda. Senator-Judge Sotto then suggested deferring any adjustment of the senator-judges' speaking time until after the caucus, to which the Presiding Officer agreed.

MANIFESTATION OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan clarified for the record that *People v. Mas* was not dismissed on the merits. He explained that the Regional Trial Court (RTC) dismissed the case on June 24 after granting a Motion to Quash based on unlawful arrest, resulting in the court's lack of jurisdiction over the accused, and emphasized that the dismissal was purely procedural and did not resolve the Inciting to Sedition charge on the merits.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero directed Representative Defensor to submit the Prosecution's witness list for the following week's hearings the next day.

In response to the Presiding Officer's inquiry, Representative Defensor confirmed that no subpoena would be necessary for the appearance of NBI Director Melvin Matibag on Monday, July 20, 2026. Thereafter, Attorney Vinluan manifested that the Respondent had no further matters to raise.

At the Prosecution's request, the Presiding Officer directed the Assisting Counsel for both parties to reseal the USB devices opened during the witness's testimony after adjournment. Representative Defensor then manifested that the Prosecution had no further matters for the Court's consideration.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until two o'clock in the afternoon of Wednesday, July 15, 2026.

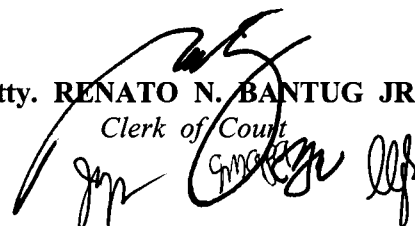
It was 7:41 p.m.

I hereby certify to the correctness of the foregoing.

Approved on July 15, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

The block contains a handwritten signature in black ink, which appears to be "Renato N. Bantug Jr.". To the right of the signature is a circular official stamp. The text "Clerk of Court" is visible within the stamp, along with some other illegible markings.